

Cc No.10/2019 State vs . Dilip Singh Chauhan Etc. on 31 March, 2021

CC No.10/2019

State Vs. Dilip Singh Chauhan etc.

IN THE COURT OF MS. KIRAN BANSAL,
SPECIAL JUDGE (PC ACT) (ACB)-01, RADCLIFFE, NEW DELHI

CC No.10/2019
CNR No.DLCT11-000149-2019

State (Govt. of NCT of Delhi)

VERSUS

1. Dilip Singh Chauhan
S/o Late Jai Dayal Singh
R/o 0-8, Police Colony,
Model Town-II, Delhi.

2. Sahashtra Bahu Yadav
S/o Sh. Mahender Singh
R/o B-346, East of Loni Road
New Delhi.

FIR No. : 100/2011
U/S : 7/13(i)(d) Prevention of Corruption Act, 1988
r/w 120B IPC & 120B IPC
PS : Jahangirpuri

Date of institution : 07.03.2013
Judgment reserved on : 19.02.2021
Judgment delivered on : 31.03.2021

JUDGMENT

I. BRIEF FACTS

1. The allegations of rape, whether true or false, loom large in the society and a respectable person's life is often ruined by such CC No.10/2019 State Vs. Dilip Singh Chauhan etc. accusations even if he is finally acquitted by a court of law.

2. The facts of the present case are that on 17.02.2011 Sh. Naresh Gupta lodged a complaint wherein he stated that he had been residing at C-23, Phase-II, Ashok Vihar, Delhi since last 25 years and that on 02.02.2009, his sister-in-law Neelam (wife of his younger brother Naresh Gupta) was admitted at Parnami Clinic and Ortho Joint Replacement Centre as she had broken her hipbone. It is further stated that a girl namely girl "R" was working as a helper in said hospital whose work was quite good and after discharging Neelam from the hospital, doctors advised her to take rest for 3-4 months. It is further stated that after negotiating with girl "R"'s mother Smt. Ansaro Khatoon, girl

"R" was hired as a domestic help on a monthly salary of Rs.5,000/□and she worked till July 2009. It is further stated that during this period, she got friendly with another domestic help Niranjana Sardar which was disliked by house mates and girl "R"'s mother was called and facts were told to her. It is further stated that after clearance of accounts, girl "R" was sent back with her mother Smt. Ansaro. Later on SI Shri Bhagwan of PS Jahangirpuri came to Naresh Gupta and told that girl "R" had run away from her house and her mother had got registered FIR No.540/2009, PS Jahangir Puri. It is further stated that on 15.07.2010, HC Dilip Singh Chauhan sent a notice to Naresh Gupta for joining the investigation on 19.07.2010 but on the intervening night of 15.07.2010/16.07.2010, police reached his CC No.10/2019 State Vs. Dilip Singh Chauhan etc. house to arrest him and told that girl "R" in her statement had named Naresh Gupta for committing gang rape on her. It is further stated that Naresh Gupta along with his brother in law met the SHO concerned and HC Dilip Singh Chauhan who said that the matter can be patched up whereafter SHO left the house of Naresh Gupta/complainant. Naresh Gupta further stated that HC Dilip Singh Chauhan had taken Rs.20,000/□and Rs.2,50,000/□in cash from his brother□in□law Ratan Lal. It is further stated that thereafter, two days later a meeting was arranged between the girl, her mother and Ratan Lal and in the presence of SHO S.B.Yadav, HC Dilip Singh Chauhan had taken Rs.3,00,000/□in cash. It is further stated that after complainant was called to police station upon serving a notice under section 160 Cr.P.C., Rs.50,000/□in cash was taken from him and Dilip Singh Chauhan said that SHO was demanding more money. It is stated further that SHO S.B.Yadav and HC Dilip Singh had extorted a sum of about Rs.7,00,000/□in cash. It is further stated that this amount had been given to save his honour.

3. Thereafter, a case under sections 7 & 13 of Prevention of Corruption Act and under sections 384/201/120B IPC was registered in PS Jahangir Puri. During investigation, IO recorded the statements of Sh. Ratan Lal, Sh. Uma Shanker, Sh. Anil Gupta and Sh. Naresh Gupta who all stated that the IO had demanded bribe from them. Ratan Lal also produced an audio CD with respect CC No.10/2019 State Vs. Dilip Singh Chauhan etc. to his conversation with Smt. Ansaro Begum where she accepted that HC Dilip Singh Chauhan had taken money from Ratan Lal and that Rs.3,00,000/□was given to Dilip Singh in front of the SHO. Ratan Lal in his statement stated that on 16.07.2010 HC Dilip Singh Chauhan had got changed five tyres of a Santro Car belonging to a police officer whose payment was given by him and Naresh Gupta. It is further stated that HC Dilip Singh Chauhan along with Bal Bahadur, driver of Naresh Gupta, had gone to Ashok Vihar, Phase□ for getting the tyres of the car changed bearing registration No.DL 4C AG 1568. It is further stated that Ratan Lal also presented a copy of the bill and HC Dilip Singh Chauhan later arrested Anil Gupta and demanded Rs.25,000/□in lieu of his release. It is further stated that on non payment of the same, he arrested Anil Gupta on 06.08.2010 and sent him to jail while photos of marriage of Anil Gupta with girl "R" had been produced to HC Dilip Singh Chauhan. It is further stated that on 27.07.2010, Dilip Singh Chauhan demanded delivery of wheat, rice and grams of value around Rs.10,000□2000/□at his house in Model Town, Delhi. It is further stated that on 27.04.2012 and 03.05.2012, Inspector S.B.Yadav and HC Dilip Singh Chauhan surrendered before the court and they were arrested and taken in police custody.

4. During investigation, it was revealed that on 16.07.2010 Bal Bahadur, driver of Naresh Gupta accompanied HC Dilip Singh CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Chauhan to Roop

Nagar to pick a car from a house which belonged to ACP Jai Bhagwan and that car was found registered in the name of Ved Parkash, brother in law of Sh. Jai Bhagwan, ACP, Jahangirpuri. Thereafter, sanction to prosecute the accused persons was obtained and they were chargesheeted under sections 7, 13(i)

(d) of Prevention of Corruption Act and under sections 384/201/120B IPC.

5. Cognizance of the offences was taken against accused Dilip Singh Chauhan and Sahastra Bahu Yadav vide order dated 23.03.2013. Thereafter, accused persons were summoned and after hearing the arguments on charge, accused Sahastra Bahu Yadav was discharged, vide order dated 11.02.2014, whereas charge for the offences under Section 7 and Section 13(2) r/w 13(1)(d) of POC Act, 1988 was framed against the accused Dilip Singh Chauhan on 03.03.2014 to which accused pleaded not guilty and claimed trial.

6. Thereafter, prosecution evidence was led by the prosecution and 28 witnesses were examined in the present case against accused Dilip Singh Chauhan.

7. However, the revision no. 224/14 filed by the State against the discharge order dated 11.02.2014, was dismissed by Hon'ble High Court, vide order dated 29.07.2016. Thereafter, the State filed SLP against the order dated 29.07.2016 which was allowed, vide order dated 28.07.2017 passed by Hon'ble Supreme Court in Criminal Appeal no. 1280/17 directing accused S.B. Yadav to appear before CC No.10/2019 State Vs. Dilip Singh Chauhan etc. the trial court for proceeding against him. As a result of which, charge has been framed against accused S.B. Yadav for the offence under section 120B IPC, section 7 of PC Act read with section 120B IPC and section 13(1)(d) read with section 13(2) of PC Act read with section 120B IPC and charge against accused Dilip Singh Chauhan has been amended to one under section 120B IPC, section 7 of PC Act read with section 120B IPC and section 13(1)(d) read with section 13(2) of PC Act read with section 120B IPC, to which both the accused pleaded not guilty and claimed trial.

8. Thereafter, pursuant to the Hon'ble Supreme Court order dated 28.07.2017, the prosecution witnesses already examined were accordingly recalled.

II. PROSECUTION EVIDENCE :

9. Prosecution, thereafter, examined 33 witnesses in order to prove its case. In the present case, 28 witnesses were examined twice. After the charge was amended against accused Dilip Singh Chauhan, he had right to cross-examine the witnesses afresh. Accused Dilip Singh has cross-examined some witnesses after the amended charge was framed against him and for some witnesses, he has adopted his earlier cross-examination. The testimony of witness recorded prior to 28.07.2017 cannot be read against accused no. 2 S.B. Yadav as per law. Even for the amended charge against Dilip Singh Chauhan i.e. specifically the charge for offence U/s 120B IPC, Section 7 CC No.10/2019 State Vs. Dilip Singh Chauhan etc. PC Act read with Section 120B IPC and Section 13(1)(d) read with Section 120B IPC, the testimony recorded

after the amended charge was framed has to be taken into account. Thus, the chief examination of witnesses recorded after 28.07.2017 has been taken into consideration. However, the testimony recorded before 28.07.2017, wherever referred in the judgment is only for appreciation of evidence and to arrive at a conclusion as to whether the witnesses are reliable, trustworthy and consistent or not because both the defence counsels have argued that the witnesses have not been consistent and have been given contradictory statements. In fact, accused S.B. Yadav in his written arguments has extensively referred to the evidence of witnesses recorded prior to 28.08.2017 in support of his arguments that the witnesses are not reliable and are giving contradictory statements.

10. PW□ HC Phool Kumar has proved the deposition of case property i.e. CD in the Malkhana on 07.04.2011, vide Ex.PW1/A. He also proved the deposition of CD on 25.04.2011 in the Malkhana, vide Ex.PW1/B. He further deposed that on 07.06.2011, pullandas were sent to Truth Lab and he made entry in this regard vide Ex.PW1/A and on 06.09.2011, Truth Lab Report alongwith pullandas of two CD was brought by Ct. Mahavir and entry Ex.PW1/B was made by PW□. PW□ has also brought the original RC Book vide Ex.PW1/C. The copy of acknowledgment of depositing the pullandas is Ex.PW1/D. CC No.10/2019 State Vs. Dilip Singh Chauhan etc.

11. PW□ ASI Mohan Lal has produced the record pertaining to case FIR No.540/09, U/s 366/376G/34 IPC, vide Ex.PW2/A.

12. PW□ HC Arun proved the memo dated 23.07.2010 signed by ACP Jai Bhagwan, vide Ex.PW3/A and also proved entry regarding aforesaid memo in Dispatch Register Ex.PW3/B. PW□ has also proved copy of order dated 29.05.2017 Ex.PW3/C vide which old record of Sub□ Division Jahangirpuri, North□ West District was destroyed upto year 2012.

13. PW□ HC Nitesh has also proved the order dated 29.05.2017 which is Ex.PW3/C regarding destruction of record upto year 2012.

14. PW□ ASI Surender Kumar has proved the certified copy of Standing Order no. 303 of 2009 Ex.PW4/B regarding guidelines to be followed by the Police while investigation of case of rape.

15. PW□ HC Sumit has proved the vigilance enquiry report from Punishment Branch of Delhi Police (Vigilance) against police personnel Ex.PW5/A.

16. PW□ ASI Rohtash Kumar has proved the present FIR No. 100/11 Ex.PW6/A and endorsement Ex.PW6/B on the rukka on the basis of which the present FIR was registered.

17. PW□7 HC Mahavir Prasad proved the deposition of pulandas which were handed over to him by the IO on 25.04.2012 and he handed over the same to MHC(M).

18. PW□8 Narinder proved the deposition of pulandas which were handed over to him by the IO on 07.04.2011 and he handed over CC No.10/2019 State Vs. Dilip Singh Chauhan etc. the same to MHC(M) of PS Jahangirpuri. He further clarified that in his testimony before the court on 23.09.2014, he had stated date to 08.04.2011 instead of 07.04.2011 due to inadvertence. He has also identified the seizure memo Ex.PW8/A.

19. PW□9 HC Vijender Tyagi deposed that on 25.04.2011, he had deposited a sealed puallanda alongwith the carbon copy of seizure memo with the MHC(M), PS Jahangirpuri which was handed over by ACP Mahinder Singh.

20. PW□10 Insp. Rakesh Kumar had collected the FSL form alongwith forwarding letter addressed to Truth Lab, Safdarjang from MHC(M) and deposited the same at Truth Lab, Safdarjang.

21. PW□11 ACP L.C. Yadav deposed that he was posted at Vigilance Branch as Inspector and was associated with the IO during investigation of this case. He further deposed that on 07.04.2011, Ratan Lal has produced one audio CD which was played on the computer system and Ratan Lal identified his voice as well as voice of Smt. Ansaro. The CD was thereafter, seized vide Ex.PW20/H and sealed. He further deposed that on 15.04.2011, Ratan Lal and Uma Shankar had come to Vigilance Branch and Uma Shankar produced 10 photographs Mark□PW19/A1 to PWA□10 pertaining to Anil Gupta, girl "R" and family of Anil Gupta which were seized vide memo Ex.PW29/A. Again on 25.04.2011, Uma Shankar has produced another CD which was also played on computer system and Uma Shankar had identified voice of girl "R", Uma Shankar CC No.10/2019 State Vs. Dilip Singh Chauhan etc. and one Raj Kumar and the said CD was seized vide memo Ex.PW25/A. He further deposed that on 06.05.2011, he alongwith IO and Ratan Lal had gone to Ashok Vihar at shop namely Tyre Station and Ratan Lal had told the IO that the tyres were purchased from the said shop for the purpose of installing the same in the vehicle of some police official at the instance of accused Dilip Singh Chauhan. The photocopy of bill/cash memo was seized by the IO vide Ex.PW25/B. He further deposed that on 13.06.2011, one Ved Prakash, owner of car registration no. 1568 has produced photocopy of the RC of the car as well as details of five tyres and the booking receipt of the car and all these documents were seized by the IO vide memo Ex.PW11/E. Again on 09.04.2012, he had joined the investigation with the IO when Insp. S.N. Rajoja has produced one CD alongwith transcript of conversation. The CD was played and seized and sealed vide memo Ex.PW11/F. The transcript is Ex.PW14/C. On 25.04.2012, Uma Shankar has produced original chip/memory card which was containing the original recording of the conversation between Raj Kumar, girl "R"

and himself. The said chip was seized vide memo Ex.PW11/A. Thereafter, on 27.04.2012, accused S.B. Yadav has surrendered himself in the court and IO after interrogating him with the permission of the court, arrested him vide arrest memo Ex.PW11/G. One day PC remand of the accused was obtained but nothing incriminating was recovered during the period of PC. Again on CC No.10/2019 State Vs. Dilip Singh Chauhan etc. 03.05.2012, accused Dilip Singh Chauhan has surrendered himself and he was also arrested after interrogation, vide arrest memo Ex.PW11/D. His one day PC was also obtained by the IO but nothing incriminating was recovered. PW□1 L.C. Yadav identified the CD produced by Ratan Lal on 07.04.2011 Ex.P1, the CD produced by Uma Shankar on 25.04.2011 as Ex.P2, the micro SD card produced by Uma Shankar on 25.04.2012 as Ex.P3.

22. During the cross□examination by Ld. Counsel for accused S.B. Yadav, he denied that no CD or micro SD card/chip was produced by Uma Shankar or that he was a false witness to the Ex.PW11/A, Ex.PW23/H, Ex.PW25/A. He further stated that the IO has not obtained the specimen voice of Uma Shankar and Ratan Lal in his presence nor Raj Kumar appeared before the IO in his presence. He also denied the suggestion that no photographs were produced by Uma Shankar or that he has stood as a false witness. He further stated that the CD produced by Insp. S.N. Rajora was containing the recording between N. Dilip Kumar, Joint C.P., ACP Jai Bhagwan and Addl. C.P. Garima Bhatnagar.

23. PW□1 was also cross□examined by accused Dilip Singh Chauhan and during the said cross□examination, he denied the suggestion that he had signed the memo merely at the instance of the IO or that accused Dilip Singh Chauhan has not given any disclosure statement Ex.PW11/B.

24. PW□2 SI Shri Bhagwan deposed that on 06.10.2009, complainant CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Smt. Ansaro came to PS Jahangirpuri and informed regarding her missing daughter "R" on the basis of which, he prepared his endorsement and gave the same to Duty Officer for registration of FIR No. 540/09, U/s 363 IPC. He further deposed that two persons Niranjana and Santosh @ Sumit were named in the FIR. He further deposed that on 30.01.2010, he handed over the case file to MHC(R) on the directions of SHO Sahastra Bahu Yadav and further investigation was marked to HC Dilip.

25. PW□3 Satya Prakash has proved the record Ex.PW13/A pertaining to car bearing no. DL□4CAG□568 which was registered in the name of Ved Prakash S/o Sh. Karan Singh, R/o H. No. 44, Shahi Pur Village, Shalimar Bagh, Delhi.

26. PW□4 N. Dilip Kumar has proved the prosecution sanction against Insp. S.B. Yadav and HC Dilip Singh Chauhan, vide detailed sanction order Ex.PW14/A.

27. PW□5 Dr. S.R. Singh, the Director, Truth Lab deposed that he had received two parcels on 07.06.2011 for examination of recorded conversation and preparation of transcript and he proved his report Ex.PW15/A as well as transcript prepared by him Ex.PW15/B and the forwarding letter Ex.PW15/C vide which the reports were sent to Addl. C.P. He has also identified the CD Ex.P1 and another CD Ex.PW15/D.

28. During the cross-examination on behalf of accused Dilip Singh Chauhan, he deposed that he had not received any specific voice.

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29. During the cross-examination on behalf of accused S.B. Yadav, he admitted that he has mentioned in his report that the date modified in audio recording in Ex.1 show variation with the date as indicated in the brief facts of the case and that the examination of original recording instrument was required for detailed examination of CD marked as Ex.1 and 2.

30. PW-6 Insp. Aarti Sharma deposed that on 07.05.2012, she joined the investigation of the present case and IO had recorded her statement wherein she stated that on transfer of investigation in FIR No.540/09, PS Jahangirpuri to Crime Branch, she had taken up further investigation of the case in compliance of the court order. She had filed the supplementary chargesheet before the court of Ld. MM after completion of the further investigation. She further deposed that during investigation, she found on the basis of CDR analysis that prosecutrix "R" was in touch with her mother prior to her recovery and the parents of "R" had not revealed this fact to the investigating agency. She further deposed that no evidence came on record to suggest that prosecutrix "R" was confined by accused Anil Gupta. She further deposed that she had supplied to the IO soft copies of the CDRs of the mobile phone used by "R" and her mother and also gave a pdf file which contained the scanned copy of CAF of Smt. Ansaro Khatoon. Supplementary chargesheet is Ex.PW16/A and statement of witnesses are Ex.PW16/B (Colly).

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. She further deposed that she had also concluded in her investigation that recovery of prosecutrix "R" was doubtful from Muradabad in view of the fact that the vehicle allegedly used by them was in Jammu Kashmir on the date of alleged recovery.

31. PW-7 Abraham George deposed that he was Head of Technical Services, MRF Tyres Ltd. in the year 2012 and on the basis of letter Ex.PW17/A of investigating agency, he replied in his letter dated 23.04.2012 Ex.PW17/B. He further deposed that they do not keep any track of the details of supply like date of supply, name and address of the dealer/retailer etc. He further deposed that retail price as on 16.07.2010 for the tyre size 155/70R13ZVTS is Rs.2,576/- inclusive of all taxes.

32. PW-8 Manish Mehra deposed that he has an agency of Bridgestone Tyre Company and at about 11:00 AM, one Bal Bahadur came to his shop in a Santro Car who asked him to replace all the five tyres of the said Santro Car. He further deposed that he replaced all the old five tyres with the new tyres of Bridgestone Tyre Company and approximately Rs.14,000/- was the bill amount for replacing the aforesaid tyres and he paid the said amount. He further deposed that he does not remember the registration number of the said Santro Car. During his testimony, on seeing photocopy of document Mark-PW18/A, he submitted that Bal Bahadur came to his shop on 16.07.2010 and it is the photocopy of the bill which CC No.10/2019 State Vs. Dilip Singh Chauhan etc. he had issued regarding the replacement of the aforesaid Santro Car. He further deposed that some police officials had come to him perhaps in the year 2014 and had made some enquiries. He further deposed that Bal Bahadur was driver of one Naresh Gupta. He further deposed on seeing the

bill Mark PW18/A that the exact amount of bill was Rs.14,250/-

33. On being asked a leading question by Ld. Addl. PP for the State, he deposed that he does not remember if Bal Bahadur had paid Rs.12,000/- out of the total bill amount of Rs.14,250/- at the time of replacement of tyres and later on on the same day after some time he came to his shop and paid the remaining amount of Rs.2,250/- to me. He volunteered that they had received the complete payment on the same day. He admitted that some police officials had made enquiries from him on 02.06.2011 and had recorded his statement under section 161 Cr.P.C.

34. PW19 Nain Singh has proved the ten photographs Ex.PW19/A1 to Ex.PW19/A10 which were clicked in his shop by Ajay Kumar who was working in his shop in the month of September and October 2009.

35. PW20 Retired Insp. Ishwar Singh deposed that he took charge as SHO, PS Jahangirpuri on 18.10.2010 and FIR No. 540/09, PS Jahangirpuri was registered prior to his taking charge. He further deposed that he had prepared a report Ex.PW20/A in respect of lapses/lacuna being made by IO HC Dilip Singh Chauhan in the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. investigation of FIR No. 540/09.

36. PW21 Neeraj Bhardwaj has proved the bill dated 14.07.2010 Ex.PW21/A of five tyres sold to one Ved Prakash. During the cross examination by Ld. Addl. PP for the State, he denied the suggestion he has issued aforesaid bill in connivance with some police officials after registration of the present FIR or no such kind of tyres were sold by him on 14.07.2010.

37. PW22 Bal Bahadur deposed that he was driver of Naresh Gupta and Ashok Gupta and on 16.07.2010, Naresh Gupta had asked him telephonically to come to his house and thereafter, at the residence of Naresh Gupta, Bal Bahadur was asked to go to PS Jahangirpuri and to meet Ratan Lal. Thereafter, he reached the PS and met Ratan Lal who gave him Rs.12,000/- and asked him to get replace the tyres of one car. He further stated that he alongwith Dilip Singh Chauhan went to Roop Nagar on the bike of Dilip Singh Chauhan to the house of ACP Jai Bhagwan which was situated at first floor. He further stated that Dilip Singh Chauhan pressed the door bell and a person came out and gave car keys and asked Dilip Singh Chauhan about him. Dilip Singh Chauhan replied that "ye mera chela hai". He further deposed that Dilip Singh Chauhan thereafter, gave car keys to him of one Santro car of white colour having registration no. 1568. Bal Bahadur then took the car to Ashok Vihar to get replaced the tyres. He further deposed that Dilip Singh Chauhan asked him to get replaced the tyres of the car CC No.10/2019 State Vs. Dilip Singh Chauhan etc. and also directed him to get prepare the bill of the payment without mentioning the registration number of Santro Car on the bill and thereafter, Dilip Singh Chauhan left. Bal Bahadur got the five tyres of the Santro car replaced and got the bill prepared for an amount of Rs.14,000/- Bal Bahadur further deposed that he paid Rs.12,000/- and as the owner of the shop knew Bal Bahadur through his employer, therefore, he allowed Bal Bahadur to pay the remaining amount later on. Bal Bahadur further deposed that after some time, Dilip Singh came back and he obtained bill from Bal Bahadur and thereafter, Dilip Singh on his bike and Bal Bahadur in Santro car reached to the house of ACP Jai Bhagwan at Roop Nagar and parked the car there. He further deposed that Dilip Singh Chauhan left

Bal Bahadur on his bike at Ashok Vihar. He further deposed that he had paid the remaining amount of Rs.2,000/- to Manish on the same day or the next day. He also identified the photocopy of the bill of the tyres Mark PW18/A and stated that he had given the original bill to Dilip Singh.

38. During his cross examination on behalf of accused Dilip Singh, he produced his ID card Ex.PW24/A issued by Karamchari Bima Nigam and admitted that no contract of employment was entered between him and Naresh Gupta when he joined the services in the year 1992. He denied the suggestion that he was never employed by Naresh Gupta. He further stated that he does not remember that he has stated before the police that the name plate of ACP Jai CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Bhagwan was installed outside the house no. 1/18, Roop Nagar. He admitted that in his statement under section 161 Cr.P.C. Ex.PW22/DB it is mentioned that Saheb has asked him to purchase good quality tyres for the Santro car. He also admitted that the number of Santro car is not mentioned in the statement Ex.PW22/DB. He also admitted that the name of M/s Bridgestone Tyres is not mentioned in the statement Ex.PW22/DB. He further stated that Ratan Lal had not accompanied him to Roop Nagar from the PS. PW22 during his cross examination on 24.08.2015 also produced various challans Ex.PW22/DC and Ex.PW22/DD of the vehicle of Naresh Gupta in his name, his ESIC card Ex.PW22/DE and the letter received at the address of Naresh Gupta Ex.PW22/DF as proof of his employment with Naresh Gupta.

39. PW22 during his cross examination on behalf of accused S.B. Yadav deposed that he used to go with Naresh Gupta to Shahdara and Ghaziabad in the office. This witness has been extensively cross examined regarding his duty hours and what all places he had visited on 16.07.2010, 17.07.2010 and a week thereafter. The witness further stated that he visited Barakhamba Road at Connaught Place and Asaf Ali Road after 16.07.2010 alongwith Naresh Gupta but he does not remember the date and time. He further stated that he had gone to ITO after 16.07.2010 but did not remember the exact date. The witness admitted that he had not accompanied Ratan Lal on 16.07.2010 to Roop Nagar. He further CC No.10/2019 State Vs. Dilip Singh Chauhan etc. stated that he accompanied Dilip Singh Chauhan and not Ratan Lal. He denied the suggestion that accused Dilip Singh had not told him that "mere sahib bahut kadak hai, achi company ke tyre dalwana nahi to tere babuji ko murga bana dunga".

40. PW23 Naresh Gupta, the complainant deposed that he is having a joint family and one girl "R" was employed to look after and attend Neelam Gupta who is the wife of brother of Naresh Gupta. He further deposed that in June 2009, during the period of stay of girl "R" in his home, girl "R" was often found talking to servant Niranjana in the backyard and in July 2009, wife of Naresh Gupta called Smt. Ansaro and told her to take back girl "R" after settling her account. He further deposed that after about a month, girl "R" called on the landline phone when the call was received by his wife and girl "R" told that she wanted to speak to Niranjana. Wife of Naresh Gupta did not permit girl "R" to speak to Niranjana and called Smt. Ansaro and told her about the said call. Smt. Ansaro told the wife of Naresh Gupta that girl "R" had run away from the house 4-5 days ago. Thereafter, the number from which girl "R" had called was checked on the caller ID installed in their phone and found that the number was of some PCO in Ashok Vihar. He further deposed that they apprehended that girl "R" would again make call to Niranjana so they also settled the account of Niranjana in the end of August or first week of September.

41. PW-23 further deposed that in October 2009, ASI Shri Bhagwan CC No.10/2019 State Vs. Dilip Singh Chauhan etc. came to their residence and enquired about servant Niranjan and also sought a photograph of Niranjan and ASI Shri Bhagwan also told that an FIR regarding kidnapping of girl "R" was lodged against Niranjan and one servant of neighbour of Naresh Gupta. PW-23 gave the details as sought by ASI Shri Bhagwan. He further deposed that on 02.11.2009, ASI Shree Bhagwan came to their house with a notice under section 160 Cr.P.C. in the name of Ashok Gupta, brother of Naresh Gupta. However, Ashok Gupta was busy and therefore, Naresh Gupta went to the PS on next date i.e. 03.11.20209 and was made to sit there for about 5 hours by IO Shri Bhagwan. He further deposed that on 16-18 November, 2009 at around 09:30 AM, girl "R" called from a phone number 08010299986 and told that she had married with her boy friend and that she was calling from Hyderabad. PW-23 further deposed that wife of Naresh Gupta told girl "R" that girl "R" should tell this fact to her mother herself. Thereafter, on 04.01.2010, a notice under section 160 Cr.P.C. was received in the name of Naresh Gupta and he was asked to come to PS on 06.01.2010 and on 06.01.2010 at around 03:30 PM, Naresh Gupta went to PS and inquiries regarding Niranjan were made from him. He further deposed that on 15.07.2010, he again received a notice under section 160 Cr.P.C. signed by Dilip Singh Chauhan and Naresh Gupta was asked to attend PS Jahangirpuri on 19.07.2010 at 10:30 AM. He further deposed that on the intervening night of 15/16.07.2010 at around CC No.10/2019 State Vs. Dilip Singh Chauhan etc. 03:30 AM or 04:00 AM, his brother Ashok Gupta came to him and told that 8-10 police officials came to his house, then Naresh Gupta came out from his room and went to drawing room where SHO S.B. Yadav, IO Dilip Singh Chauhan alongwith 5-6 other police officials were sitting and SHO S.B. Yadav told him that there was a court order in compliance of which statement of victim was recorded under section 164 Cr.P.C. and 2-3 lines of the statement under section 164 Cr.P.C. were read over to him and he was told that victim "R" leveled allegations of rape against him. Naresh Gupta pleaded before SHO S.B. Yadav that he is innocent and he is being implicated in a planner manner to which the SHO and IO (both accused) told that they knew that Naresh Gupta was implicated. PW-23 further deposed that he became perplexed and informed his brother in law (Saadu) Ratan Lal telephonically that police officials had come to his house to arrest him. Ratan Lal came to their house in about half an hour. Both the SHO and IO told that "yeh bahut mota case hai, tum zindagi bhar jail me sadoge, isme acchhe paise lagenge aur ladki humare kahe mein hai, hum jaisa kahenge woh waisa hi karegi". Accused SHO S.B. Yadav also told Naresh Gupta to talk about money with IO Dilip Singh Chauhan on his behalf in this regard. After about two hours, SHO alongwith some police officials left but IO Dilip Singh Chauhan remained at his house. After leaving of the SHO S.B. Yadav, accused Dilip Singh Chauhan told him that "kuch seva paani ACP sahib ki bhi CC No.10/2019 State Vs. Dilip Singh Chauhan etc. karni padegi". PW-23 further deposed that at about 07:00 AM in the vehicle of Ratan Lal, IO Dilip Singh Chauhan alongwith 1-2 police officials demanded money from Ratan Lal and this fact was told by Ratan Lal to him. He further deposed that Ratan Lal further told him that he paid Rs.20,000/- to IO Dilip Singh Chauhan on his demand. Thereafter, Ratan Lal alongwith accused no. 1 had reached PS Jahangirpuri where S.B. Yadav and Dilip Singh Chauhan demanded Rs.Ten Lakh from Ratan Lal and after scaling down the amount, both accused agreed on the amount of Rs. Eight Lakh and it was further settled that Rs.2.5 Lakh was to be delivered on the same day. He further deposed that at about 08:30 AM, he received a telephone call of Ratan Lal who asked him as to send driver Bal Bahadur as the tyres in the vehicle make Santro car of ACP Jai Bhagwan were to be changed. The complainant Naresh Gupta sent his driver to PS Jahangirpuri and to meet Ratan Lal. He further

deposed that Ratan Lal gave Rs.12,000/- to Bal Bahadur for getting the tyres changed in the vehicle of ACP and this fact was told to him by Bal Bahadur when he came to his house to collect the amount of Rs.2,250/- as the total bill for replacement of tyres was of Rs.14,250/-. He further deposed that Bal Bahadur also told Naresh gupta that IO Dilip Singh Chauhan had told the concerned person at the shop to not to put the vehicle number on the bill, however, the vehicle number was DL-4CAG-568 white colour Santro car. Bal Bahadur also told about the fact regarding change CC No.10/2019 State Vs. Dilip Singh Chauhan etc. of tyres. He further deposed that at around 11:05 AM, Ratan Lal came to his house to collect amount of Rs.2.5 Lakh which was to be given to accused S.B. Yadav and Dilip Singh Chauhan and after collecting Rs.2.5 Lakh from his house Ratan Lal went to PS Jahangirpuri and gave the same to IO Dilip Singh Chauhan. He further deposed that Ratan Lal told him that one packet containing Rs.50,000/- was also to be delivered to ACP Jai Bhagwan at his residence. He further deposed that on 16.07.2010 at around 08:00 PM or 08:30 PM, Naresh Gupta alongwith Ratan Lal reached at the house of ACP Jai Bhagwan situated at the first floor in the area of Roop Nagar and they gave a packet containing Rs.50,000/- to ACP Jai Bhagwan which was kept by him on which ACP Jai Bhagwan told them that "aap jao aur aaram se raho aur kisiko yeh baat batana nahi". He further deposed that on 17.07.2010 or 18.07.2010, Ratan Lal received a call from Dilip Singh Chauhan that parents of victim "R" demanded Rs.Three Lakh and on 18-19.07.2010, Ratan Lal collected Rs. Three Lakh from Naresh Gupta from his residence and thereafter, Ratan Lal reached at PS Jahangirpuri and gave the same to accused Dilip Singh Chauhan in the presence of ACP Jai Bhagwan, SHO S.B. Yadav, victim "R" and her parents. He further deposed that after about 2-3 days, Smt. Ansaro, mother of victim "R" called Ratan Lal and told that she was given only Rs.Two Lakh by Dilip Singh Chauhan.

42. PW-3 further deposed that on 21/22.07.2010, victim "R" gave an CC No.10/2019 State Vs. Dilip Singh Chauhan etc. application to SHO S.B. Yadav in PS Jahangirpuri mentioning the fact that Naresh Gupta is like a father to her and she prayed in the application for getting statement of victim "R" recorded under section 164 Cr.P.C. again in FIR No. 540/09, PS Jahangirpuri, however, the said application was rejected by the concerned court. He further deposed that after about 2-3 days, Dilip Singh Chauhan called Ratan Lal and asked for some wheat, gram and rice which Ratan Lal purchased approximately for an amount of Rs.12,000/- and delivered at the residence of accused Dilip Singh Chauhan at third floor. He further deposed that again on 29.07.2010, a notice under section 160 Cr.P.C. was received at his residence and the complainant was asked to report at PS Jahangirpuri on 02.08.2010. Thereafter, on 02.08.2010 at around 10:30 AM, the complainant alongwith Ratan Lal reached PS Jahangirpuri and Ratan Lal gave an amount of Rs.50,000/- to IO Dilip Singh Chauhan as part of total demanded amount of Rs. Eight Lakh. He further deposed that again on 08.08.2010, a notice under section 160 Cr.P.C. was received at his residence and he was asked to report at PS Jahangirpuri on 10.08.2010. Thereafter, on 10.08.2010 at around 10:30 AM, the complainant alongwith Ratan Lal reached at PS Jahangirpuri and on the advice of his lawyer, Naresh Gupta asked Dilip Singh Chauhan to make a report regarding his joining investigation and in the room of S.B. Yadav, Naresh Gupta gave an amount of Rs.50,000/- to Dilip Singh Chauhan in the presence of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. S.B. Yadav to get a report regarding his joining of investigation. He further deposed that again after 10-15 days, Smt. Ansaro called Ratan Lal telephonically and told him that IO Dilip Singh Chauhan was not giving further money to her and she was paid only Rs.Two Lakh. He further deposed that Smt. Ansaro told Ratan

Lal that her daughter made a mistake by naming Naresh Gupta and Ratan Lal made a recording of the said conversation. He further deposed that thereafter, IO Dilip Singh Chauhan called Ratan Lal and told that SHO S.B.Yadav was demanding more amount and if the said amount was paid, his name would be put in column no. 12, otherwise he would be declared as proclaimed offender. He further deposed that thereafter, Naresh Gupta moved an anticipatory bail application on 28.10.2010 and he was granted bail. He further deposed that he then got typed a complaint Ex.PW14/B and met Commissioner of Police on 17.02.2011 and gave his complaint alongwith his written application Ex.PW23/B of one page.

43. He further deposed that on 19.07.2010, he alongwith Ratan Lal had appeared at PS Jahangirpuri in response to a notice under section 160 Cr.P.C. where Dilip Singh Chauhan had told that SHO had demanded Rs.50,000/□for releasing him after proceedings dated 19.07.2010 and Ratan Lal paid Rs.50,000/□in his presence. Thereafter, on 21/22.07.2010 also Dilip Singh Chauhan demanded Rs.50,000/□for making a DD entry of application moved by victim "R" for re□recording of her statement under section 164 Cr.P.C. and CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Ratan Lal had paid Rs.50,000/□to Dilip Singh Chauhan. He further deposed that Ratan Lal had told about this fact to him. He further deposed that in the month of August 2010, several times ACP Jai Bhagwan had threatened him telephonically that "agar kahi bhi mera naam aya to tumhe false case me fasa dunga". He further deposed that after anticipatory bail was granted, Ratan Lal received a telephonic call from PS Jahangirpuri and he was asked to meet ACP Jai Bhagwan and in the evening on 28.10.2010, Ratan Lal went to PS Jahangirpuri where ACP Jai Bhagwan, SHO Ishwar Singh alongwith Dilip Singh Chauhan were present and Rs.98,000/□were returned by Dilip Singh Chauhan to Ratan Lal and Rs.2,000/□were returned later on.

44. He further deposed that in January 2011, one Anil Gupta met Naresh Gupta at Rohini Court and then he came to know from Anil Gupta that one known of Anil Gupta brought victim "R" and Anil Gupta was told that she was an orphan and her name was Gudia and she was a Hindu and Anil Gupta further told Naresh Gupta that Anil Gupta had married to victim "R". He further deposed that Anil Gupta also moved an application before the concerned Magistrate in FIR No. 540/09 for further investigation and directions for further investigations were issued in the said FIR. He further deposed that on 17.02.2011, on his application Commissioner of Police transferred the case FIR No.540/09 from PS Jahangirpuri to Vigilance or Crime Branch. He further deposed CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that on 28.02.2011, he went to Vigilance Office and gave an application to ACP R.K. Jha and on 16.03.2011, ACP R.K. Jha made enquiries from him and the same is Ex.PW24/A. He further deposed that he has not named ACP Jai Bhagwan at that time as ACP Jai Bhagwan had extended threats to him. Thereafter, on 28.03.2011, the present FIR was registered on his application dated 28.02.2011. He further deposed that on 07.04.2011, he was called at Vigilance Branch and he met IO L.C. Yadav and Ratan Lal gave a CD to L.C. Yadav which was played and thereafter, seized. The said CD contained two audio recordings between Smt. Ansaro and Ratan Lal. The complaint is Ex.PW23/A and copy of the application dated 08.02.2011 addressed to Commissioner of Police is Ex.PW14/B, copy of acknowledgment letter is Ex.PW23/B, copy of notices under section 160 Cr.P.C. received from PS Jahangirpuri dated 03.11.2009, 04.01.2010, 19.07.2010, 02.08.2010 are Ex.PW23/C, Ex.PW23/D, Ex.PW23/E and Ex.PW23/F respectively. The copy of notice dated 10.08.2010 is Mark□PW23/X. PW□23 also proved the

remaining document regarding seizure memo and the notices and also identified the CD Ex.P1 as well as transcript Ex.PW25/C and CD Ex.PW15/D.

45.PW□24 R.K. Jha, proved the complaint of Naresh Gupta Ex.PW23/A regarding vigilance enquiry against police officials namely Insp. S.B. Yadav, HC Dilip Singh Chauhan and other police officials of PS Jahangirpuri, and clarifications in CC No.10/2019 State Vs. Dilip Singh Chauhan etc. question/answer form Ex.PW24/A. He further deposed that he has made endorsement Ex.PW24/B and the present FIR was registered. Photocopy of vigilance enquiry report is Ex.PW5/A.

46. PW□25 Ratan Lal deposed that on the intervening night of 15/16.07.2010 at around 03:30 PM to 04:00 PM, he received a call from his brother in law (Sadu) i.e. complainant Naresh Gupta who told him that police officials from PS Jahangirpuri had come to arrest him regarding some allegations of rape. He further deposed that he got perplexed and told that earlier also some notices under section 160 Cr.P.C. were received in connection with a maid, as the said maid had gone from her home without informing her parents and some report regarding this was lodged by her mother. He further deposed that as they were not aware about legal issues and therefore, they had consulted with one or two persons for legal advice and also called some advocates and he was told that in the statement under section 164 Cr.P.C. recorded before the magistrate, if a person is named then he would have to go to jail. He further deposed that he then reached the house of the complainant where he found that the complainant and some police officials including the SHO S.B. Yadav were present. He spoke to the SHO and told him that they belong to a business and respectable family. He further deposed that SHO S.B. Yadav told him that the girl "R" had given some statement under section 164 Cr.P.C. He further deposed that at that time they did not even know CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that the girl had already been recovered by the police and SHO S.B. Yadav told them that she was recovered from Muradabad where she had gone to a milk booth to purchase milk. He further deposed that he asked the SHO S.B. Yadav to supply him the copy of statement under section 164 Cr.P.C. but SHO S.B. Yadav refused to give the copy. He further deposed that SHO S.B. Yadav received a phone call and told that HC Dilip Chauhan would talk to them regarding the case. He further deposed that SHO S.B. Yadav further told that that girl was within their influence and the matter could be settled "le de ke sulta lenge". He further deposed that as the girl "R" had also implicated another servant of the neighbour Santosh, accused Dilip Chauhan went to the house of neighbour to arrest Santosh but Santosh could not be arrested as he had gone to his native place and thereafter, the accused Dilip Chauhan returned to the house of Naresh Gupta. He further deposed that he alongwith Dilip Singh Chauhan went to PS Jahangirpuri and on the way to PS, he talked to accused Dilip Singh Chauhan and told him that this was a conspiracy and the allegations were totally false. He further deposed that accused Dilip Singh Chauhan told that he could get the matter settled as the girl "R" was under their influence. The accused Dilip Singh asked Ratan Lal as to whether he had brought any money, Ratan Lal told that he was having only Rs.20,000/□and he had handed over the said amount to accused Dilip Singh Chauhan. He further deposed that on reaching CC No.10/2019 State Vs. Dilip Singh Chauhan etc. the PS, accused Dilip Singh told him to go and come back after having his bath etc. He further deposed that when he came back home, he received a phone call from Dilip Singh who again called Ratan Lal to PS and when he went to PS again he saw that the parents of "R" were sitting in the room of the accused. Accused Dilip Singh told him that he had spoken to the parents of "R" and there would be an expenditure of around Rs.10□15 Lakh and

some amount out of the same was to be paid to the girl "R" and her parents and thereafter, the name of the complainant Naresh Gupta would be kept in column no. 12. He further deposed that he told Dilip Singh that Naresh Gupta is innocent and the amount was highly exorbitant and the matter was thereafter, settled at Rs.8 Lakh. He further deposed that accused Dilip Singh received a phone call and on receiving the phone call, Dilip Singh asked him as to whether he was having a driver. He further deposed that accused Dilip Singh told that "ek senior afsar ki fatigue aa gai hai, unki gadi me tyre dalwane hai". Thereafter, Ratan Lal called Naresh Gupta and called the driver Bahadur and told the driver to accompany accused Dilip Singh and had given Rs.12,000/□to Bahadur to get the tyres replaced and also accompanied Dilip Singh. Accused Dilip Singh further told him to arrange Rs.2 to 2.5 lakh and he left with the driver Bahadur. He further deposed that Ratan Lal came to the house of Naresh Gupta and told him that matter has been settled to Rs.8 lakh and Rs.2.5 Lakh would be CC No.10/2019 State Vs. Dilip Singh Chauhan etc. given as advance. He further deposed that Naresh Gupta gave Rs.2.5 Lakh to Ratan Lal who went to PS Jahangirpuri and gave the said amount to accused Dilip Singh and Dilip Singh then took the amount of Rs.2.5 Lakh and told him that he had to go to the room of SHO to give the said amount. Accused Dilip Singh left the room and returned after some time and took Ratan Lal to the room of SHO for meeting. He further deposed that SHO was in his retiring room and was without uniform and SHO told Ratan Lal that he should not worry and should act as per the directions of accused Dilip Singh Chauhan. He further deposed that accused Dilip Singh Chauhan told him that he should meet ACP in the evening and should hand over a packet of Rs.50,000/□to ACP and when Ratan Lal asked about the address of the ACP, then Dilip Singh told that Bahadur knew the address as the replaced car tyres were of the car of ACP. He further deposed that in the evening he alongwith Naresh Gupta went to the house of the ACP Jai Bhagwan and ACP Jai Bhagwan opened the door, they then told the ACP that SHO and accused Dilip Singh had sent them there and they handed over the packet of Rs.50,000/□to ACP Jai Bhagwan who accepted the same. He further deposed that ACP asked as to who was Naresh Gupta and then Ratan Lal introduced Naresh Gupta to ACP. ACP also told them to relax and assured that Naresh Gupta would not be implicated in the case and they thereafter, returned back. He further deposed that after 2□3 days, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. accused Dilip Singh again made a phone call to him and called him to PS Jahangirpuri and told Ratan Lal that he had prepared the documents and the statement of girl "R" would be recorded again under section 164 Cr.P.C. He further deposed that Dilip Singh Chauhan also told him to bring Rs.3 Lakh which was to be given to the girl "R" for changing her statement. He then went to the house of Naresh Gupta and told him about the phone call and Naresh Gupta gave him an amount of Rs.3 Lakh and he went with the said amount to PS Jahangirpuri where "R" alongwith her mother was present in the room of the accused Dilip Singh. He then told accused Dilip Singh that he had brought the amount and accused Dilip Singh took him to the room of ACP where SHO S.B. Yadav was also present alongwith ACP Jai Bhagwan and in the presence of SHO and ACP Jai Bhagwan, Ratan Lal handed over Rs.3 Lakh to accused no. 1 Dilip Singh Chauhan and thereafter, Ratan Lal returned home.

47. He further deposed that he then came to know that an application for recording fresh statement under section 164 Cr.P.C. of girl "R" was moved but the concerned court has refused to record the second statement of girl "R". He further deposed that Dilip Singh Chauhan showed him a document which was on behalf of girl "R" in which it was stated that Naresh Gupta was like a father to the girl "R" and that Naresh Gupta had done nothing wrong with her. He further deposed that accused Dilip

Singh Chauhan also told that CC No.10/2019 State Vs. Dilip Singh Chauhan etc. some DD entry was to be made regarding the said document and asked for an amount of Rs.50,000/□for the said entry and Ratan Lal gave Rs.50,000/□to Dilip Singh for lodging of DD entry and then Dilip Singh shown him a document on which DD entry no. 43 was mentioned alongwith stamp of the PS. He further deposed that Dilip Singh Chauhan again told them to relax. He further deposed that on 25.07.2010, accused Dilip Singh told him telephonically to send some foodgrains to his house in model town and Ratan Lal asked Virender, Broker in the market to arrange some wheat and pulses and also to give two bags of rice to Virender to send the same to the house of Dilip Singh Chauhan at Model Town. He further deposed that Virender arranged around 8 bags of wheat, 20 to 30 Kg of pulses and he sent all the articles through a tempo to police colony, Model Town.

48. He further deposed that Smt. Ansaro frequently called him and asked for complete payment and Ratan Lal told Smt. Ansaro that they had already paid Rs.3 Lakh which were to be given to her through Dilip Singh Chauhan. He further deposed that Smt. Ansaro kept on persisting for the payment and Ratan Lal told her to go to PS to sort out the issue in the presence of Dilip Singh Chauhan. He further deposed that Smt. Ansaro, mother of "R" reached PS Jahangirpuri and Ratan Lal asked Dilip Singh to make remaining payment to mother of "R" but Dilip Singh stated that some paper work is yet to be completed and further gave a sum of Rs.1 Lakh to CC No.10/2019 State Vs. Dilip Singh Chauhan etc. mother of "R" and obtained her signatures on some green papers. He further deposed that accused Dilip Singh received a call and he went outside to attend a call and then Ratan Lal spoke directly to mother of "R" and then mother of "R" told him that if they had spoken to them directly, matter could have been sorted out for less and half of the amount had been taken by police officials and then Ratan Lal had a doubt that police officials in connivance with "R" had falsely implicated Naresh Gupta. Also he grew suspicious as in the notice under section 160 Cr.P.C. served on 15.07.2010, Naresh Gupta was asked to appear on 19.07.2010 but still on intervening night of 15/16.07.2010, the accused persons had come to arrest Naresh Gupta. He further deposed that he again received a call from Dilip Singh Chauhan who told him that NBWs were issued against Naresh Gupta by the court and they should send Naresh Gupta somewhere and also asked Ratan Lal to meet accused Dilip Singh Chauhan. Ratan Lal then went to PS and accused Dilip Singh asked to arrange another sum of Rs.2.5 Lakh for cancellation of NBWs on which Ratan Lal told him that he had already paid the agreed amount to accused Dilip Singh who told him that NBWs were got issued through some other police official. He further deposed that he told accused Dilip Singh that they would have to think about it as they already made substantial payment and Ratan Lal went to meet SHO in his room and told SHO that they had already made the payment of the agreed amount and that they do CC No.10/2019 State Vs. Dilip Singh Chauhan etc. not have any further amount. Accused SHO told Ratan Lal that NBWs would be cancelled and they should act as per the directions of Dilip Singh Chauhan. He further deposed that he came back to the house of Naresh Gupta and they took some legal advice as they felt that the accused persons were exploiting them. He further deposed that thereafter, whenever they received a notice under section 160 Cr.P.C., they asked mark the attendance of Sh. Naresh Gupta and for each attendance paid Rs.50,000/□on two occasions. He further deposed that accused Dilip Singh told them that as the attendance of Sh. Naresh Gupta had been marked therefore, the effect of NBWs would be nullified. Thereafter, on the legal advice they decided to file an application for anticipatory bail and when the police officials came to know about anticipatory bail, ACP Jai Bhagwan called them and threatened in the PS that

they should not file the bail application otherwise they will not help them.

49. He further deposed that in the meanwhile, one Anil Gupta was arrested and accused Dilip Singh Chauhan called and told Ratan Lal about the arrest of Anil Gupta and Ratan Lal asked Dilip Chauhan to let him meet Anil Gupta but Dilip Chauhan did not give address of Anil Gupta nor let him meet Anil Gupta, thereafter, they filed an application for anticipatory bail which was granted by the court. He further deposed that they wanted to find out as to how "R" reached Anil Gupta and therefore, they wanted to meet Anil Gupta and went to Rohini Court. He further deposed that they saw Anil CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Gupta for the first time in the court when the call of case of Anil Gupta was made and mother and brother of Anil Gupta were also there who told Ratan Lal that Anil Gupta is married to "R". He further deposed that he asked mother and brother of Anil Gupta as to why they had not produced the evidence of marriage before the police and they told Ratan Lal that they had shown the evidence to the police but as they were unable to pay any amount to the police being poor, the police had arrested Anil Gupta. Ratan Lal also asked them about the recovery of girl "R" from a milk booth at Muradabad then Uma Shankar told Ratan Lal that Uma Shankar himself had brought girl "R" to Delhi when they came to know that "R" was a muslim girl and that her mother is alive. He further deposed that mother of "R" and "R" were in touch with each other telephonically but mother of "R" had not informed the police and rather lodged an FIR of kidnapping. He further deposed that thereafter, he collected the proof of marriage of "R" with Anil Gupta such as photographs etc. and also visited the temple where they got married and went to Muradabad. He further deposed that he went to PS Muradabad and found out that there was no entry regarding the arrival of Delhi Police at Muradabad on the day when "R" was allegedly recovered from Muradabad. He further deposed that he also searched Mother Dairy Booth in Muradabad but there was no Mother Dairy. He further deposed that he collected all the documents against the accused CC No.10/2019 State Vs. Dilip Singh Chauhan etc. persons and filed a complaint in the office of Commissioner of Police to show that Naresh Gupta was innocent. He further deposed that investigation of the FIR No.540/09, PS Jahangirpuri was transferred to Crime Branch and enquiry regarding the money being taken by accused persons was marked to Vigilance. He further deposed that mother of victim "R" kept on demanding Rs.One Lakh out of Rs.Three lakhs as settled and he asked Dilip Singh Chauhan that mother of the victim "R" was demanding Rs.1 lakh. He further deposed that he came to know that accused S.B. Yadav has been transferred and Insp. Ishwar Singh had been posted and in the presence of ACP Jai Bhagwan, Insp. Ishwar Singh got returned Rs.1 lakh to Ratan Lal from accused Dilip Singh Chauhan. He further deposed that he visited PS Vigilance several times as well as to Crime Branch office several times during investigation. He identified the CD Ex.P1 seized vide Ex.PW23/H which he had produced and which contained the conversation between him and mother of "R". He also identified seizure memo Ex.PW25/A and seizure memo of micro SD card produced by Uma Shankar in his presence Ex.PW11/A. He also identified seizure memo of photocopy of the bill Ex.PW25/B, CD bearing his signature Ex.P1 and also confirmed his voice as well as voice of mother of "R" and the transcript Ex.PW15/B. He also identified CD Ex.P2 produced by Uma Shankar and the micro SD card Ex.P3.

50. PW 26 Virender Kumar deposed that around 25 or 27 July 2010, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. he on the asking of Ratan Lal, delivered around 8 to 10 bags of wheat, 20 to 25 Kg of black grams and two bags of rice at Police Colony, Model Town. He further deposed that he

went to the spot to sort out the issue which arose regarding taking of goods to top floor. He further deposed that he was told that the goods were to be delivered at the house of Dilip Chauhan. He further deposed that the goods were approximately of the value of Rs.10,000/- to Rs.12,000/-

51. PW-27 Anil Gupta deposed that in the year 2009 he used to ply truck in Road Carrier of India and Santosh was friend of his brother Uma Shankar who used to visit his house. He further deposed that prior to occasion of Deepawali, Santosh alongwith "R" had come to his house and at that time mother of Anil Gupta was also present in the house. He further deposed that he was not present in the house at that time as he was on the truck. He further deposed that Santosh requested for marriage of "R" with him. He further deposed that he was told that parents of "R" are not alive. He further deposed that after the aforesaid visit of Santosh, he came to his house and found Santosh and "R" present there and Santosh introduced "R" to him and requested him to marry "R". He further deposed that after 2-3 days, he married "R" at Gufa Mandir, Shakurpur and they got clicked photographs of their marriage. He further deposed that after 9-10 months, he came to know that parents of "R" are alive. He further deposed that his mother told him about this fact. He CC No.10/2019 State Vs. Dilip Singh Chauhan etc. further deposed that Uma Shankar with "R" went to Jahangirpuri at the parental house of "R". He further deposed that after 20-25 days, "R" was calling him on telephone and was requesting him to take her back. He further deposed that he went to Jahangirpuri at parental house of "R" where he was apprehended by Dilip Singh Chauhan. He further deposed that accused Dilip Singh Chauhan told him that he has kidnapped "R" and Dilip Singh Chauhan kept him in the PS Jahangirpuri for about 5-6 days. He further deposed that Dilip Singh Chauhan took phone of PW-27 and made a call to his brother Uma Shankar through his mobile phone and demanded some money. He further deposed that he does not know what was the amount demanded by accused Dilip Singh Chauhan. PW-27 has identified ten photographs of his marriage Ex.PW19/A1 to Ex.PW19/A10 during the course of his examination in chief.

52. This witness was cross-examined by Ld. Addl. PP for the State and during his cross-examination by Ld. Addl. PP for the State, he admitted that the date was 01.08.2010 when he had gone to Jahangirpuri at parental house of "R" to bring her back to his house. He further admitted that accused Dilip Singh Chauhan kept on demanding Rs.25,000/- from him.

53. PW-28 Ajay Kumar is the photographer who was working in Meenu Studio in the year 2009 and he deposed that he had clicked the photographs Ex.PW19/A1 to Ex.PW19/A10 in the month of October 2009 near Diwali festival.

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54. PW-29 Uma Shankar deposed that in the year 2009, he was residing at Shakurpur alongwith his mother and brother Anil Gupta and he knew Santosh who was also an employee in the footwear factory where he was employed. He further deposed that Santosh left the job at factory and started working at Ashok Vihar but he used to frequently visit their house and they used to discuss the marriage of their brother Anil Gupta with Santosh. He further deposed that Santosh thereafter, had visited their house in the year 2009 with a girl Gudia or Shivani around Diwali time and told them that she was an orphan and was distantly related to him. But at that time Anil Gupta was not at

home. He further deposed that Santosh asked him to let Gudia stay at their house for 2-3 days to which they agreed and after Anil Gupta returned, Anil Gupta and Gudia got married in Gufa Mandir in Shakurpur area. Anil Gupta after the marriage was performed informed his mother about the marriage and mother of Anil Gupta asked to call relative of Gudia but Gudia told them that she had no relative. He further deposed that Anil, Gudia and the family members went to Meenu Photo Studio and got the photographs taken with the couple. He further deposed that after about a month they shifted to Muradabad and Anil and Gudia were happily living at Muradabad. As Anil was a driver, he used to go for 10-15 days on duty in a month but a Reliance phone was given to Gudia and Uma Shankar had seen Gudia talking to some lady on the mobile phone and even on the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. asking of Uma Shankar, Gudia did not tell him with whom she was talking. He further deposed that thereafter, mother of Anil also saw Gudia talking on phone and she also enquired from Gudia as to with whom she was talking, then Gudia told her that she was talking to her mother. Gudia also told that she had lied that her parents were dead and stated that as her parents used to beat her therefore, she had stated that her parents had already died. He further deposed that then mother of Anil Gupta told that parents of Gudia were alive and that Gudia wanted to meet her parents. He further deposed that then Anil Gupta asked Uma Shankar to take Gudia to her parents' house and Uma Shankar and his nephew Dharmender alongwith Gudia came to Delhi and Uma Shankar alone took Gudia to her parents' house at Jahangirpuri and stayed for one night and Uma Shankar saw that Gudia was beaten by her family members. He further deposed that in the morning when he was about to leave, Gudia told Uma Shankar that she wanted to accompany him but Uma Shankar told her to stay back at her parents house for 2-3 days and he then returned back to Muradabad and told his brother that Gudia was a Muslim and her name was "R". He further deposed that Anil used to speak to Gudia @ girl "R" on phone and she called Anil to Delhi on 01.08.2010 and thereafter, Anil told Uma Shankar that girl "R"'s mother got him apprehended by IO Dilip Singh Chauhan and Anil told Uma Shankar to arrange Rs.25,000-30,000/- but Uma Shankar told Anil CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that he did not have the said amount and then Anil handed over his mobile phone to Dilip Singh Chauhan who told him to arrange the money as it had to be given to the mother of Gudia @ girl "R" and Anil would then be let off by the police from the police station. He further deposed that on 03.08.2010, he alongwith his mother went to PS Jahangirpuri and his mother met Dilip Singh Chauhan and shown him the photographs of marriage of Anil and Gudia @ girl "R" but Dilip Singh Chauhan told his mother that there was no person in the name of Anil Gupta detained in the PS. He further deposed that when his mother came outside the PS, Uma Shankar again received the call from the mobile phone of Anil and Dilip Singh Chauhan spoke on the phone and told Uma Shankar to come with the money in the PS. He further deposed that when he told Dilip Singh Chauhan that he did not have money, Dilip Singh Chauhan told him that Muradabad was not far way and if he does not give the money, he would also face the consequences. Uma Shankar further deposed that on 06/07.08.2010, he received a call informing that his brother had been sent to jail and he would be produced in the court. He further identified the photographs Ex.PW19/A1 to Ex.PW19/A10. He further deposed that he alongwith his mother went to Rohini Court where they saw that his brother Anil Gupta was produced and his mother on seeing accused Dilip Singh Chauhan told Uma Shankar that she had shown the photographs of marriage between Anil and Shivani to Dilip Singh CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Chauhan. He further deposed that on the next date of production of his brother Anil from J/C, Naresh Gupta and Ratan

Lal met them and then they came to know that Naresh Gupta was also involved in that case. He further deposed that Anil Gupta was released on bail and the court had ordered some enquiry. He further deposed that SI Vineeta made enquiries about the person who was visible in the photographs of the marriage and also visited Meenu Photo Studio where the photographs were clicked. He further deposed that some lady police official from Crime Branch also made enquiries from them and from the landlord at Muradabad and she also made enquiries from shopkeepers where Uma Shankar used to work and Shivani used to take grocery. He further deposed that he had produced a CD before the IO on 25.04.2011 containing the conversation between "R", one Raj Kumar and himself and he identified the seizure memo of the CD Ex.PW25/A. He also identified the micro SD card Ex.P3 which was produced by him before the IO and which was seized vide seizure memo Ex.PW11/A. The file contained in the CD was played in the court and witness identified his voice as well as voice of Raj Kumar and girl "R".

55. During the cross-examination on behalf of accused Dilip Singh Chauhan, PW-29 Uma Shankar deposed that he met Ratan Lal for the first time in Rohini Court during the hearing of his brother's case. Uma Shankar was confronted with his statement under CC No.10/2019 State Vs. Dilip Singh Chauhan etc. section 161 Cr.P.C. Ex.PW16/B recorded by SI Vineeta in FIR No.540/09. He further deposed that he met Dilip Singh Chauhan for the first time in the court and thus, he was not acquainted with his voice prior to meeting him in the court. He also admitted that he cannot say whether it was Dilip Singh Chauhan who had spoken to him on the phone as his brother had told him about the same. On being asked as to whether his brother Anil was in Delhi on 17.07.2010 to 06.08.2010, he replied that he cannot say about 17.07.2010 but from 01.08.2010 to 06.08.2010 he was in Delhi as he was apprehended on 01.08.2010. He further stated that he got the CD Ex.P3 prepared at a shop in Shakurpur and that he had taken the chip to the shop for preparation of the CD. He admitted that he had not obtained any certificate under section 65B Indian Evidence Act from the shop owner. He denied the suggestion that he used to go to the places during investigation as suggested and directed by Ratan Lal or that he had fabricated a false chip after one year of giving the false CD to the IO to falsely implicate the accused persons.

56. PW-29 was not cross-examined by Ld. Counsel for accused S.B. Yadav.

57. PW-30 Insp. Shriniwas Rajora deposed that on 21.03.2011, he was posted at Vigilance Branch, Asaf Ali Road and on that day at around 12:30 PM, he had recorded the conversation between Joint C.P. Sh. N. Dilip Kumar, Addl. C.P. Garima Bhatnagar and ACP CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Jai Bhagwan in the office of Joint C.P. with the help of a voice recorder arranged from the office of Joint C.P. He further deposed that he had prepared a CD and its transcript from the voice recorder in the office of Joint C.P. on his computer. He further deposed that on 09.04.2012, he handed over aforesaid CD and transcript to IO ACP Mahender Singh Dabas in the office of Vigilance Investigation Unit, vide seizure memo Ex.PW11/F. During his examination in chief in the court, PW-30 has identified the CD Ex.PW30/A and the transcription Ex.PW14/C. He further deposed that before preparing parcel of the aforesaid CD, IO had prepared one copy of the aforesaid CD for the investigation/operational purpose.

58. PW-31 Retired ACP Mahinder Singh Dabas deposed that he was posted at Vigilance Branch on 28.03.2011 when the investigation of the present case was assigned to him. He further deposed that on 07.04.2011, Ratan Lal had produced one CD which was played and the contents were heard. He further deposed that Ratan Lal told them that the CD contained conversation between himself and Smt. Smt. Ansaro. One working copy of the said CD was prepared and thereafter, the CD was seized vide Ex.PW23/H and sealed with the seal of LCY. He further deposed that on 15.04.2011, Uma Shankar, brother of Anil Gupta produced ten photographs Ex.PW19/A1 to Ex.PW19/A10 pertaining to the marriage of Anil and victim "R" which were taken into possession vide seizure memo Ex.PW29/A. CC No.10/2019 State Vs. Dilip Singh Chauhan etc. He further deposed that again Uma Shankar alongwith Ratan Lal joined investigation on 25.04.2011 and produced an audio CD containing the conversation between Uma Shankar, victim "R" and Raj Kumar, the same was also played and the contents were heard. The CD was seized vide memo Ex.PW25/A. He further deposed that thereafter, on 06.05.2011, Ratan Lal joined investigation and produced one photocopy of the bill from the shop of Tyre Station, Ashok Vihar pertaining to five tyres and tubes and told that bill was in respect of replaced tyres of Santro car. The bill Ex.PW18/A was seized vide memo Ex.PW25/B. He further deposed that again on 30.06.2011, Ved Prakash, owner of Santro car bearing no. DL4-CAG-568 produced photocopy of RC and receipt of M/s Deep Hyundai and original receipt of purchase of five tyres from M/s Ambe Tyres which was taken into possession vide memo Ex.PW11/E. Ownership of the car was verified from the transport authority and the papers provided by Transport Authority is Ex.PW31/A. He further stated that he sent a CD to Truth Lab and recorded the statement of the witnesses and thereafter, on his transfer, he handed over the file to IO ACP Jagbir Singh. PW-31 identified the CD Ex.P1 to be the same which was produced by Ratan Lal on 07.04.2011 which was sent to Truth Lab for examination. He also identified the CD Ex.P2 which was produced by Uma Shankar on 25.04.2011 which was also sent to Truth Lab for examination.

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59. During the cross-examination on behalf of accused persons, PW-31 admitted that he did not get the sample voice of Smt. Ansaro and Ratan Lal recorded in FSL Lab. He also admitted that he had spoken to Smt. Ansaro but she had refused to give any detail. He also admitted that he had not given any written notice to Smt. Ansaro to join investigation. During the cross-examination of this witness, Ld. Counsel for the accused has referred to bail application filed by accused S.B. Yadav as well as to CDRs Mark-PW31/D2 which was filed alongwith the bail application. He further stated that he had written to the mobile phone companies to obtain the CAFs, CDRs etc. in respect of mobile numbers of accused, Joint C.P. Sh. Muktesh Chandra, the complainant and ACP Jai Bhagwan but thereafter, he was transferred. On being questioned as to whether he had made any investigation in respect of call details, he stated that he had examined Ratan Lal and Naresh Gupta in this respect and they had admitted that they had made some allegations regarding the harassment and torture to them. He further stated that the complainant and Ratan Lal told him that they had made call to Joint C.P. Muktesh Chandra regarding harassment and torture. He denied the suggestion that he had not carried out the investigation fairly or that he has falsely implicated the accused persons under pressure and directions of senior officers. He admitted that he had got the information that Joint C.P. Muktesh Chandra was in touch with the complainant and Ratan Lal. He

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. further stated that he had recorded the statement of Uma Shankar thrice and Meenu Digital Studio is situated in Shakurpur. He further admitted that no date is mentioned on the photographs. He further stated that only one CD was provided by Uma Shankar on 25.04.2011 vide Ex.PW25/A in the presence of Ratan Lal and stated that he was not having his personal seal therefore, the seal of L.C. Yadav was used on 05.04.2011 and the same was returned to him on the same day and the CD was also deposited in PS Jahangirpuri on the same day. He further admitted that on the bill regarding the tyre replacement there was no mention about car number but Bal Bahadur, driver of Naresh Gupta told him about the Santro car number. He denied the suggestion that he had investigated the matter on the directions of N. Dilip Kumar, Joint C.P., Smt. Garima Bhatnagar, Addl. C.P. and did not investigate the matter properly or that he had relied upon the false documents placed by the complainant.

60. PW32 SI Vineeta Prasad deposed that she was posted at PS Jahangirpuri from May 2010. She further deposed that on 16.08.2010, a case FIR No. 540/2009 was marked to her for investigation and Insp. S.B. Yadav was the SHO, PS Jahangirpuri at that time. She further deposed that she requested the SHO not to mark the investigation of rape case to her since she was having no experience at that time, whereupon Insp. S.B. Yadav told her that she could investigate as per his instruction and in case of any CC No.10/2019 State Vs. Dilip Singh Chauhan etc. difficulty she could take the help of HC Dilip Singh Chauhan. She further deposed that on 23.08.2010, on the instruction of SHO S.B. Yadav, she arrested accused Santosh in case FIR No. 540/2009 and on 22.09.2010, she was assigned duty at Commonwealth Games. She further deposed that ASI Tejpal had obtained NBW in this case against Naresh Gupta and while she was on duty at Commonwealth Games, the case investigation was being looked after by other IO. She further deposed that on 28.10.2010, Naresh Gupta was granted anticipatory bail and she formally arrested him and filed the chargesheet. She further deposed that on 22.01.2011, the matter was again sent to her for re-investigation as per the directions of Ld. MM, Rohini Courts. She further deposed that she had gone to Muradabad and Nangloi for re-investigation and she did not find the mother dairy from where the recovery of prosecutrix "R" was shown in FIR No.540/2009. She further deposed that on 22.02.2011, the case was transferred to Crime Branch for re-investigation.

61. PW33 Retired ACP Jagbir Singh Malik deposed that on 21.06.2011, while he was posted at VIU, Vigilance as ACP, the investigation of the present case FIR was assigned to him. He further deposed that during the course of investigation, he collected the report Ex.PW15/A including enclosures Ex.PW15/B and covering letter Ex.PW15/C from the truth lab. He further deposed that he had seized the CD and transcription produced by Insp.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Rajora of Vigilance Branch vide seizure memo Ex.PW11/F, transcription Ex.PW14/C. He further deposed that he also seized a chip produced by Uma Shankar on 25.04.2012 vide seizure memo Ex.PW11/A and he also collected the report Ex.PW17/B regarding number of tyres from the manufacturing company MRF. He further deposed that both the accused persons had surrendered before the court and they were formally arrested vide memo Ex.PW11/G, Ex.PW11/E and conducted their personal search vide memo Ex.PW11/H and Ex.PW11/C. He further deposed that he obtained their one day PC remand and recorded interrogation of accused S.B. Yadav vide Ex.PW11/D1 dated 27.04.2012 and interrogation report of

accused S.B. Yadav is Ex.PW33/A which is in the handwriting of PW33 and interrogation report of accused Dilip Singh Chauhan is Ex.PW33/B. Disclosure statement of accused S.B. Yadav is Ex.PW33/C and Ex.PW33/D and disclosure statement of accused Dilip Singh Chauhan is Ex.PW11/B. He further deposed that house search of accused S.B. Yadav and Dilip Singh Chauhan was conducted vide memo Ex.PW33/E and Ex.PW33/F. He further deposed that he collected the report from the Crime Branch regarding subsequent investigation of rape case and collected documents Ex.PW16/A. He further deposed that prosecution sanction against accused was accorded vide order Ex.PW14/A. During the course of his examination in chief, he identified one SD card/chip Ex.P3 produced by Uma Shankar vide memo CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Ex.PW11/A. III. PLEA OF ACCUSED U/S 313 CR.P.C. & DEFENCE EVIDENCE :

62. After completion of the prosecution evidence, statements of accused persons were recorded under section 313 Cr.P.C. in which all the incriminating evidence was put to the accused persons which they denied as false and incorrect. Accused S.B. Yadav during his statement under section 313 Cr.P.C. stated that he is innocent and he has been falsely implicated in the present case. He further stated that he never demanded any amount from the complainant. He further stated that he had never asked the complainant or Ratan Lal to talk with co-accused qua any bribe. He further stated that he had never accepted any bribe from complainant through co-accused Dilip Singh Chauhan and no transaction of money or any type of bribe had taken place in his presence. He further stated that he had never sent complainant or Ratan Lal to residence of ACP Jai Bhagwan to pay him any bribe. He further stated that he has been falsely implicated as he had refused to screen out the complainant from the rape case registered against him in FIR No.540/09 and he had got NBWs of Naresh Gupta obtained through SI Tejpal from court of law on 28.09.2010 despite being instructed by senior officers to not to take coercive steps against him. He further stated that the complainant and Ratan Lal CC No.10/2019 State Vs. Dilip Singh Chauhan etc. were well known to Sh. Muktesh Chandra and on the intervening night of 15-16.07.2010 when he had accompanied the team for arrest of Naresh Gupta at his house, he was telephonically restrained by ACP Jai Bhagwan who stated that he has been asked by Joint CP Muktesh Chandra not to arrest Naresh Gupta in this case as he was well known to him and accordingly accused S.B. Yadav alongwith the team had returned back to the PS without effecting arrest of Naresh Gupta. He further stated that the vigilance enquiry conducted was malafide and with ulterior motives and they did not hear his plea as got recorded by him in interrogation report and other forums and did not carry out any investigation on such statements and even the IO of the present case was under influence of senior officers and hand in glove with complainant.

63. Accused Dilip Singh Chauhan during his statement under section 313 Cr.P.C. has stated that he is innocent and he has been falsely implicated in the present case. He further stated that he has never demanded nor accepted any amount from complainant or any other person including Ratan Lal. He further stated that he obeyed the orders of his senior officers while conducting investigation of the case FIR No.540/09, PS Jahangirpuri. He further stated that he was appreciated by the SHO

and ACP for recovery of the victim 'R' and his senior officers has implicated him in this case in order to help complainant Naresh Gupta in the rape case.

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64. Ten witnesses have been examined in defence on behalf of accused persons. DW□ HC Sunil proved the application Ex.DW1/A filed by accused S.B. Yadav seeking information under RTI and the reply Ex.DW1/B to the aforesaid application.

65. DW□ HC Sanjay has proved the application Ex.DW1/A. He deposed that in response to the application Ex.DW1/A, he alongwith the MHC(R) had prepared the report pertaining to police station Jahangirpuri in respect to total cases registered under section 363 IPC during 30.09.2009 to 16.10.2010. He further stated that inadvertently on the first sheet in column□ the date has been typed as 30.09.2019 instead of 30.09.2009. He further stated that as per the record of PS Jahangirpuri, total 61 cases were registered under Sec. 363 IPC during the period 30.09.09 to 16.10.10, the details of which are on three sheets which is part of Ex.DW1/B.

66. DW□ Dharam Singh deposed that he has not brought the summoned record i.e. file bearing FIR No.540/2009, under section 363/376 IPC, PS Jahangirpuri decided on 17.09.2018 as the same has been sent to Hon'ble High Court of Delhi in CrI. Appeal no. 1211/18.

67. DW□ Retired SI Balkar Singh deposed that in case FIR No.540/09, SHO PS Jahangirpuri and ACP had directed him to conduct an inquiry in respect of the fact of recovery of victim girl from Muradabad. He further deposed that he had gone to Muradabad on 26.10.2010 and recorded statement of Sh. Sudhir CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Kumar and his mother Smt. Roopwati, vide Ex.DW4/A and Ex.DW4/B. He further deposed that he made enquiries on 27.10.2010 and recorded statements of Sudhir Kumar dated 27.10.2010 and Smt. Roopmati dated 27.10.2010 and HC Dilip Singh Chauhan dated 28.10.2010. He further deposed that aforesaid statements are part of Ex.DW7/A.

68. DW□ Anil Kumar has proved the CDR of mobile number 9868107098 for the period 16.07.2010 to 22.07.2010 alongwith certificate under section 65B Indian Evidence Act, vide Ex.DW5/A. He has also brought the photocopy of CAF alongwith residence proof and form 60 annexed with the CAF vide Mark□DW5/B. He further deposed that as per record the customer of this mobile number is Ms. Bimla Devi Kaushik, wife of Sh. Jai Bhagwan Kaushik.

69. DW□ Rakesh Soni, Dy. Manager□Store, MTNL has proved the covering letter addressed to Sh. A.K. Kaushik, AGM, Legal which was annexed with the CDR for the period 16.07.2010 to 22.07.2010 which was submitted before the Hon'ble High Court of Delhi, vide Ex.DW6/A. He further deposed that he has seen photocopy of CAF of mobile no. 9868107098 Mark□DW5/B which was issued in the name of Smt. Bimla Devi Kaushik, wife of Sh. Jai Bhagwan Kaushik. He further deposed that the CAF is attested by Sh. Raj Kumar Sharma, Manager and identified his signature. He further deposed that he has asked to provide the original CAF but the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. same was not traceable as the original CAF might have been given to any security agency/court

and in its place photocopy of CAF retained and this fact was informed via email Mark DW6/B by Sh. Sarfaraz Alam.

70. DW7 HC Nitin Kumar has brought the summoned record from VRK Jahangirpuri, Delhi and at the request of Ld. Counsel for accused, copy of the statements of Ct. Devender dated 06.08.2010, Smt. Ansari Khatoon dated 06.08.2010, victim "R" dated 06.08.2010, Sh. Sudhir Kumar dated 27.10.2010, Smt. Roopwati dated 27.10.2010, HC Dilip Singh dated 28.10.2010 are taken on record vide Ex.DW7/A.

71. DW8 B. Arutsivan, General Manager, Vodafone Idea Ltd.

deposed that in compliance of order dated 22.07.2013 passed by Hon'ble High Court, he had submitted the CDR of three mobile numbers i.e. 9873404470, 9899112575, 9811039125. He has also proved certified copy of his affidavit filed in Hon'ble High Court vide Ex.DW8/A, CDR, certificate under section 65B in its support and CAF alongwith its supportive documents of mobile no. 9899112575 vide Ex.DW8/B. He further deposed that as per record, the customer of mobile no. 9899112575 is Sh. Naresh Kumar Gupta. He has proved the CDR, certificate under section 65B in respect of mobile no. 9873404470 vide Ex.DW8/C. He further deposed that in compliance of order dated 22.07.2013, he had submitted the CDR alongwith certificate under section 65B CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Indian Evidence Act and CAF alongwith documents of mobile no. 9811039125 vide EX.DW8/D. He further deposed that as per CAF, the customer of mobile no. 9811039125 is Sh. Ratan Lal Navetia. He further deposed that in compliance of order dated 22.07.2013, he had submitted the CDR alongwith certificate under section 65B Indian Evidence Act and CAF alongwith documents of mobile no. 9586333377 vide EX.DW8/E. He further deposed that as per CAF, the customer of mobile no. 9586333377 is Sh. Muktesh Chandra, IPS.

72. DW9 Sh. Saurabh Aggarwal, Alternate Nodal Officer during the course of his testimony in the court has seen the CDR, certificate under section 65B Indian Evidence Act and CAF alongwith documents of mobile no. 9899112575 vide Ex.DW8/B and deposed that as per CAF the customer of mobile no. 9899112575 is Sh. Naresh Kumar Gupta. He has also seen the CDR, certificate under section 65B Indian Evidence Act of mobile no. 9873404470 vide Ex.DW8/C. He has also seen the CDR, certificate under section 65B Indian Evidence Act and CAF alongwith documents of mobile no. 9811039125 vide Ex.DW8/D and deposed that as per CAF the customer of mobile no. 9811039125 is Sh. Ratan Lal Navetia. He has also seen the CDR, certificate under section 65B Indian Evidence Act and CAF alongwith documents of mobile no. 9586333377 vide Ex.DW8/E and deposed that as per CAF the customer of mobile no. 9586333377 is Inspector General of Police CC No.10/2019 State Vs. Dilip Singh Chauhan etc. and the ID annexed with the CAF is of Sh. Muktesh Chandra, IPS. He has also identified the signatures of Sh. Anuj Bhatia and office seal of the company on Ex.DW8/B, Ex.DW8/C, Ex.DW8/D and Ex.DW8/E.

73. DW10 Gyan Shankar Pandey, J.J.A. has proved the scanned data of Crl. M.C. No.619/2012 titled Dilip Singh Vs State & Ors. And Crl. M.C. No.1107/2012 titled S.B. Yadav Vs State of Delhi & Ors. Vide Ex.DW10/A and also proved the certificate under section 65B Indian Evidence Act Ex.DW10/B. Copy of notesheet alongwith the DVD/CD is Ex.DW10/C. During the testimony of

DW□0, the CD/DVD Ex.DW10/A has been played on the laptop and compared with the certified copy of Ex.DW8/D pertaining to mobile no. 9811039125, Ex.DW6/A pertaining to mobile no. 9868107098, Ex.DW8/B pertaining to mobile no. 9899112575, Ex.DW8/E pertaining to mobile no. 9586333377, Ex.DW8/C pertaining to mobile no. 9873404470. DW□0 further deposed that the aforesaid documents are in digitized form in the CD Ex.DW10/A.

74. DW□1 Pankaj Ahuja, J.A. has brought the original file of case FIR No.540/2009, PS Jahangirpuri, Under section 363/366/376(G)/34 IPC & 6 POCSO Act titled as State Vs Anil Kumar Gupta & ors. Decided on 17.09.2018 and proved the application for request for NBWs against Naresh Gupta and Niranjana Sardar moved by the police officials of PS Jahangirpuri, vide Ex.DW11/A. He has also proved the case diary no. 37 dated 28.10.2010 written by SI Balkar CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Singh alongwith statement under section 161 Cr.P.C. of Smt. Roopwati, wife of Sh. Ram Kumar and Sudhir Kumar S/o Sh. Ram Kumar and signed statements of Sudhir Kumar and thumb mark LTI of Roopwati vide Ex.DW11/B. IV. ARGUMENTS OF THE PROSECUTION :

75. Thereafter, final arguments on behalf of Ld. Addl. PP for the State Sh. Jagdamba Pandey and Ld. Counsels for the accused persons Sh. Rajesh Khanna and Sh. Sanjeev Bhardwaj heard. Record perused. Written arguments filed by Ld. Defence counsels also perused.

76. Ld. Addl. PP for the State argued that from the statement of complainant PW□23 Naresh Gupta, PW□25 Ratan Lal, other witnesses who remained associated in the proceedings conducted by investigating agency and other materials on record, it has been duly proved that accused persons demanded and accepted bribe in the present case.

77. Ld. Addl. PP for the State has further argued that complainant Naresh Gupta has categorically stated that both the accused persons demanded and accepted bribe of approximately Rs.8 lakhs from him and his brother in law PW□25 Ratan Lal in order to help him in the case FIR No.540/09, PS Jahangirpuri in which he was falsely implicated. Complainant has given detailed and trustworthy account of the proceedings in which both the accused persons on various occasions demanded bribe and accepted the same. Ld. CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Addl. PP for the State also submitted that PW□25 Ratan Lal who is relative of complainant also corroborated the deposition given by the complainant about the demand and acceptance of bribe by the accused persons in detail. Ld. Addl. PP for the State further submitted that complainant and his relative PW□25 Ratan Lal are natural witnesses who were aggrieved in the present case and from whom demand of bribe was made by the accused persons while exploiting the vulnerable situation of the complainant as at relevant time, the complainant was implicated in a case of the police station where accused S.B. Yadav was incharge and accused Dilip Singh Chauhan was one of the investigating officer and thus, they were holding influence upon the complainant and they misused their official positions and influenced in extorting bribe.

78. Ld. Addl. PP for the State further submitted that complainant/PW□23 and public witness/PW□25 are trustworthy witnesses as their testimony could not be assailed during cross□examination on behalf of accused persons and they are reliable. Ld. Addl. PP also submitted that in the case of C.M.

Sharma Vs State of Andhra Pradesh, Crl. App. 232/2006 decided on 25.11.2010 before Division Bench of Hon'ble Supreme Court, it was held that on appreciation of evidence witness can be broadly categorized in three categories viz. unreliable, partly reliable and wholly reliable and in a case in which witness is wholly reliable, no corroboration is necessary. Ld. Addl. PP for the State also relied upon judgment CC No.10/2019 State Vs. Dilip Singh Chauhan etc. of full Bench of Hon'ble Supreme Court in this regard passed in the case titled V. Thevar Vs State of Madras, AIR 1957 SC 614. Ld. Addl. PP for the State also relied upon the judgment Amar Singh Vs State of NCT of Delhi, Crl. App. No. 335/2015, decided on 12.10.2020 by Hon'ble Supreme Court in which it was held that as a general rule, the court can and may act on the testimony of a single eye witness provided he is wholly reliable.

79. Ld. Addl. PP for the State further submitted that the delay in filing the complaint against the accused persons and lodging FIR against them by the complainant is logical, natural and justified as at relevant time the complainant was under pressure from accused persons. Ld. Addl. PP for the State has relied upon P. Rajagopal & Ors. Vs State of Tamil Nadu, Crl. App. No. 896/2009 and Crl. App. No. 554□555/2009 (arising out of SLP Crl. No. 9261□9262 of 2015) decided on 29.03.2019 by Hon'ble Supreme Court in which Hon'ble Supreme Court reiterated that if delay in lodging the complaint/FIR is satisfactorily explained, the court will decide the matter on merits without giving much importance to such delay.

80. Ld. Addl. PP for the State further argued that the defence taken by the accused persons that they acted on the direction and at the instance of their senior officers is baseless and afterthought and the defence of the accused in this regard is not supported by the evidence of any such senior officers who might have been called by the accused during their defence evidence. Ld. Addl. PP for the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. State has submitted that relying upon the testimony of the complainant, public witnesses and other evidences on record, both the accused persons are liable to be convicted for all the offences.

V. SANCTION U/S 19 OF P.C. ACT FOR PROSECUTION OF ACCUSED :

81. Ld. Counsel for the accused Dilip Singh Chauhan has argued that sanction order Ex.PW14/A stands vitiated as the following documents were not sent to the sanctioning authority for perusal :

- (i) The statement of the prosecutrix recorded under section 164 Cr.P.C.
- (ii) The original chargesheet in case FIR No.540/09, PS Jahangirpuri.
- (iii) Statement of ACP Jai Bhagwan recorded by the enquiry officer.
- (iv) Statement of prosecutrix written by PW□6 Aarti Sharma.
- (v) The interrogation of accused persons recorded in this case.

82. It is thus, argued that the record which would have tilted the balance towards the accused persons was suppressed and withheld or not perused by the sanctioning authority.

83. Ld. Counsel for accused S.B. Yadav has argued that PW□4 had participated in the enquiry and was thus, incompetent to grant CC No.10/2019 State Vs. Dilip Singh Chauhan etc. sanction being interested witness and hence, sanction is faulty.

84. The object behind the requirement of grant of sanction to prosecute a public servant under the POC Act are designed as a check on frivolous and unscrupulous attempts to prosecute honest public servant for acts arising out of due discharge of their duties. Section 19(1) of the POC Act are mandatory and forbid courts from taking cognizance of any offence punishable under section 7,10,11,13 & 15 of the POC Act against public servants except with the previous sanction of the competent authority.

85. As regards application of mind by sanctioning authority in 2013 (8) SCC 119 State of Maharashtra through CBI Vs Mahesh Jain, following principles were culled out :□"14.1 It is incumbent on the prosecution to prove that the valid sanction has been granted by the sanctioning authority after being satisfied that a case for sanction has been made out.

14.2 The sanction order may expressly show that the sanctioning authority has perused the material placed before it and, after consideration of the circumstances, has granted sanction for prosecution.

14.3 The prosecution may prove by adducing the evidence that the material was placed before the sanctioning authority and its satisfaction was arrived at upon perusal of the material placed before it.

14.4 Grant of sanction is only an administrative function and the sanctioning authority is required to prime facie reach the satisfaction that relevant facts would constitute the offence.

14.5 The adequacy of material placed before the sanctioning authority cannot be gone into by the court as it does not sit in appeal over the sanction order.

14.6 If the sanctioning authority has perused all the materials placed before it and some of them have not been proved CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that would not vitiate the order of sanction.

14.7 The order of sanction is a prerequisite as it is intended to provide a safeguard to a public servant against frivolous and vexatious litigants, but simultaneously an order of sanction should not be construed in a pedantic manner and there should not be a hypertechnical approach to test its validity."

It was further held that :

"True it is, grant of sanction is a sacrosanct and sacred act and is intended to provide a safeguard to the public servant against vexatious litigation but simultaneously when there is an order of sanction by the competent authority indicating application of mind, the same should not be lightly dealt with. The flimsy technicalities cannot be allowed to become tools in the hands of an accused."

86. Thus, grant of sanction is an administrative function and only prima facie satisfaction of the sanctioning authority is needed. The adequacy or inadequacy of material placed before the sanctioning authority cannot be gone into by the court as it does not sit in appeal over the sanction order and when there is an order of sanction by the competent authority indicating application of mind, the same should not be lightly dealt with. Also, flimsy technicalities cannot be allowed to become tools in the hands of accused.

87. In CBI Vs Ashok Kumar Aggarwal, decided on 31.10.2013 by the Hon'ble Supreme Court, it has been held that :□"(a) The prosecution must send the entire relevant record to the sanctioning authority including the FIR, disclosure statements, statements of witnesses, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. recovery memos, draft charge sheet and all other relevant material. The record so sent should also contain the material/document, if any, which may tilt the balance in favour of the accused and on the basis of which, the competent authority may refuse sanction.

(b) The authority itself has to do complete and conscious scrutiny of the whole record so produced by the prosecution independently applying its mind and taking into consideration all the relevant facts before grant of sanction while discharging its duty to give or withheld the sanction.

(c) The power to grant sanction is to be exercised strictly keeping in mind the public interest and the protection available to the accused against whom the sanction is sought.

(d) The order of sanction should make it evidence that the authority had been aware of all relevant facts/materials and had applied its mind to all the relevant material.

(e) In every individual case, the prosecution has to establish and satisfy the court by leading evidence that the entire relevant facts had been placed before the sanctioning authority and the authority had applied its mind on the same and that the sanction had been granted in accordance with law."

88. Certainly, it is the duty of the prosecution to send entire record of the case to the sanctioning authority and the emphasis of the Hon'ble Supreme Court in the above case is also that the entire record should be sent alongwith material and document that may tilt the balance in favour of the accused and on the basis of which competent authority may refuse the sanction. Though, Ld. Counsel for the accused has vehemently argued that the entire record was not sent but he has failed to show as to which of the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. documents which the prosecution had not sent, would have tilted the balance in favour of the accused. None of the document which were not sent to the Sanctioning Authority could have formed basis for refusing sanction. Also, how the balance would have tilted in his favour, if the sanctioning authority would

have perused the statements of prosecutrix "R" or chargesheet in FIR No.540/09 or the statement of ACP Jai Bhagwan by the enquiry officer, remains unexplained. The relevant portion of the testimony of PW□4 in this context is reproduced hereinbelow:

".....In the present case FIR, request of the investigating agency alongwith entire documents including copy of FIR, statement of witnesses, copy of seizure memos, transcription and CD was received for according prosecution sanction under Section 19 of Prevention of Corruption Act 1988....."

".....I perused entire documents and after applying my mind, I was of the considered view that there was sufficient material for the prosecution of aforesaid both the accused persons for the alleged offences....."

89. Relevant portion of testimony of PW□4 during his cross□examination on behalf of accused S.B. Yadav is reproduced hereinbelow :

".....It is correct that I had participated in the enquiry conducted against the accused persons. The enquiry Ex.PW5/A bears my handwriting and signature at point X to X and it bears my initial at circle Y. It is wrong to suggest that I was not competent to accord sanction since I had participated in the enquiry conducted against the accused person....."

".....Q. Had you gone through the statement of girl "R"

(name omitted) recorded by Insp. Aarti Sharma on 29.09.2011 ?

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Ans. I had gone through all the statements including the statement of girl "R" (name omitted)....."

".....Q. Whether you had perused the complaint dated 21.07.2010 addressed to SHO, PS Jahangirpuri and received vide DD No.43A dated 22.07.2010 already marked PW23/DA ?

Ans. I had gone through all the records including abovesaid complaint....."

".....I only perused the record which was sent to me by the investigating agency alongwith forwarding letter. It was within my knowledge that supplementary chargesheet was filed after an order by the court. I had not gone through the main chargesheet in FIR No.540/09 nor I called for the same....."

".....It is wrong to suggest that if I would have perused the main chargesheet of FIR No.540/09, then I would not have accorded sanction....."

"..... It is correct that the interrogation of accused persons recorded in FIR No.100/11 was not sent to me for perusal. (Vol. Disclosure statements of the accused persons were sent)....."

".....No draft sanction order was sent by the IO alongwith the request letter. It is wrong to suggest that I had granted sanction as I was previously knowing Naresh Gupta and had not gone through the facts of the present case. It is wrong to suggest that I have granted sanction mechanically and without application of mind or at the asking of senior police officials and colleagues....."

90. Relevant portion of testimony of PW14 during his cross-examination on behalf of accused Dilip Singh Chauhan is reproduced hereinbelow :

"..... Before according sanction, I was aware of the fact of FIR No.540/09, PS Jahangirpuri. As per the record put up before me, accused Naresh Gupta was innocent in the said FIR No.540/09 of PS Jahangirpuri. I had gone through the record of said FIR No.540/09 of PS Jahangirpuri. I had seen the application dated 08.02.2011 Ex.PW14/B and application dated 28.02.2011 CC No.10/2019 State Vs. Dilip Singh Chauhan etc. already Ex.PW6/B moved in the said FIR. The fact regarding extorting the money is mentioned in the complaint Ex.PW14/B at portion A to A....."

"..... Vigilance inquiry regarding the case FIR No.540/09 of PS Jahangirpuri was initiated, I was Joint Commissioner in the Vigilance at that time. I had seen the said vigilance enquiry report and thereafter, I advised for registration of the FIR. The then ACP Sh. Jai Bhagwan was also called before registration of the FIR and I enquired from him and said conversation was also secretly recorded by the Insp. Rajora in the presence of Addl. Commissioner Vigilance Garima Bhatnagar....."

91. The request letter sent by the IO to the Sanctioning Authority for grant of sanction is Ex.PW14/DB and as per the request Ex.PW14/DB following documents were sent for the perusal of the sanctioning authority i.e. : (1) Photocopy of FIR No. 100/11, PS Jahangirpuri, Delhi. (2) Photocopy of complaint of Sh. Naresh Gupta dated 08.02.2011.

(3) Photocopy of FIR No.540/09, PS Jahangirpuri, Delhi. (4) Photocopies of statements recorded U/s 161 Cr.P.C. (5) Photocopies of seizure memos.

(6) Photocopies of 10 photos.

(7) Photocopy of Transcription of Conversation in audio CDs.

(8) Photocopies of Result of Examination of audio CDs from Truth Labs.

(9) Photocopy of supplementary chargesheet filed by the Crime Branch in case FIR No.540/09, PS Jahangirpuri CC No.10/2019 State Vs. Dilip Singh Chauhan etc. alongwith the copies of the statements recorded U/s 161 Cr.P.C. during reinvestigation.

(10) Photocopy of report of Insp. Ishwar Singh against HC Dilip Singh in case FIR no.540/09, PS Jahangirpuri. (11) Photocopy of standing order no. 303/09 issued by C.P./Delhi.

(12) Photocopy of Arrest Memos and Disclosure Statements of accused persons.

(13) Photocopy of House Search Memos.

92. The above statement of PW□4 and the list of documents annexed with the request letter clearly reveals that after going through the relevant material, sanctioning authority was satisfied that a prima facie case for sanction was made out. Also, as per law, the IO is required to send the relevant material of the present case to the sanctioning authority. As far as the investigation of accused persons is concerned, PW□4 has clearly stated that he had gone through the disclosure statements and thus, it is immaterial if the sanctioning authority had not gone through the interrogation of the accused, as the present court is not required to analyse the adequacy of material placed before the sanctioning authority. The accused has not been able to point out any document or material which if would have been put before the Sanctioning Authority (but was not sent to Sanctioning Authority by the IO) might have tilted the balance in favour of the accused and on the basis of which it can be CC No.10/2019 State Vs. Dilip Singh Chauhan etc. said that if the said document if would have been brought to the notice of the Sanctioning Authority, he would not have granted sanction for prosecution of the accused.

93. On the aspect of sanctioning authority having participated in the enquiry, section 19 of Prevention Corruption Act states about the authority competent to grant sanction and being relevant is reproduced hereinbelow :

"Previous sanction necessary for prosecution :

(1) No court shall take cognizance of an offence punishable under sections 7, 10, 11, 13 and 15 alleged to have been committed by a public servant, except with the previous sanction : □

(a) in the case of a person who is employed in connection with the affairs of the Union and is not removable from his office save by or with the sanction of the Central Government, of that Government.

(b) in the case of a person who is employed in connection with the affairs of a State and is not removable from his office save by or with the sanction of the State Government, of that Government.

(c) in the case of any other person, of the authority competent to remove him from his office.

(2) Where for any reason whatsoever any doubt arises as to whether the previous sanction as required under sub-section (1) should be given by the Central Government or the State Government or any other authority, such sanction shall be given by that Government or authority which would have been competent to remove the public servant from his office at the time when the offence was alleged to have been committed."

94. In State of Madhya Pradesh Vs Pradeep Kumar Gupta, AIR 2011 SC 2334, it has been held that as per Section 19 of the Act, the authority who is competent to remove the person concerned is CC No.10/2019 State Vs. Dilip Singh Chauhan etc. competent to grant sanction.

95. Thus, as per Section 19 as well as on the basis of above judgment it is clear that the authority competent to grant sanction is one who is competent to remove the public servant from the office. In the present case, it is not disputed that PW-4 N. Dilip Kumar, Sanctioning Authority was the competent authority to remove the accused persons from their office. In such circumstances, even if PW-4 N. Dilip Kumar has participated in the enquiry, he would not become an interested witness and would still remain competent to grant sanction. The accused has also not been able to show that the discretion vested in the Sanctioning Authority was affected by any extraneous consideration or that the mind of sanctioning authority was under pressure from any corner.

96. In Mansukhlal Vithaldas Chauhan Vs State of Gujarat, decided on 03.09.1997 by the Hon'ble Supreme Court of India, on the issue of sanction, it has been observed that :

"The validity of the sanction would, therefore, depend upon the material placed before the sanctioning authority and the fact that all the relevant facts, material and evidence have been considered by the sanctioning authority. Consideration implies application of mind. The order of sanction must ex facie disclose that the sanctioning authority had considered the evidence and other material placed before it. This fact can also be established by extrinsic evidence by placing the relevant files before the Court to show that all relevant facts were considered by the sanctioning authority.

Since the validity of "Sanction" depends on the applicability of mind by the sanctioning authority to the facts of the case as also the material and evidence collected during investigation, it necessarily follows, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that the sanctioning authority has to apply its own independent mind for the generation of genuine satisfaction whether prosecution has to be sanctioned or not. The mind of the sanctioning authority should not be under pressure from any quarter nor should any external force be acting upon it to take decision one way or the other. Since the discretion to grant or not to grant sanction vests absolutely in the sanctioning authority, its discretion should be shown to have not been affected by any extraneous consideration. If it is shown that the sanctioning

authority was unable to apply its independent mind for any reason whatsoever or was under an obligation or compulsion or constraint to grant the sanction, the order will be bad for the reason that the discretion of the authority "not to sanction" was taken away and it was compelled to act mechanically to sanction the prosecution."

97. There is nothing on record to suggest that the sanctioning authority was under any obligation or compulsion to grant sanction or had not applied his independent mind.

98. Also, in Ashok Kumar Tshering Bhutia Vs State of Sikkim, 2011 (3) LRC 93 (SC) on the point of sanction, it was held as follows:

".....In the absence of anything to show that any defect or irregularity therein caused a failure of justice, the plea is without substance. A failure of justice is relatable to error, omission or irregularity in the sanction. Therefore, a mere error, omission or irregularity in sanction is not considered to be fatal unless it has resulted in a failure of justice or has been occasioned thereby. Section 19 (1) of the PC Act 1988 is a matter of procedure and does not go to the root of the jurisdiction and once the cognizance has been taken by the Court under Cr.P.C., it cannot be said that an invalid police report is the foundation of jurisdiction of the court to take cognizance....."

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99. Also, this court is of the view that accused failed to show that failure of justice had occasioned by any error, omission or irregularity in the sanction. Moreover, as regards errors, omission or irregularity in the sanction order including competency of the authority to grant sanction, it has been held in "State of Bihar Vs. Raj Mangal Pandey, 2014 (II) SCC 388" as under :

"In a situation where under both the enactments any error, omission or irregularity in the sanction which would also include the competence of the authority to grant sanction, does not vitiate the eventual conclusion in the trial including the conviction and sentence, unless of course a failure of justice has occurred."

"The object behind the requirement of grant of sanction to prosecute a public servant need not detain the court save and except to reiterate that the provisions in this regard either under the Code of Criminal Procedure or the Prevention of Corruption Act, 1988 are designed as a check on frivolous, mischievous and unscrupulous attempts to prosecute an honest public servant for acts arising out of due discharge of duty and also to enable him to efficiently perform the wide range of duties cast on him by virtue of his office. The test, therefore, always is - whether the act complained of has a reasonable connection with the discharge of official duties by the government or the public servant. If such connection exists and the discharge or exercise of the governmental function is, prima facie, founded on the bona fide judgment of the public servant, the requirement of sanction will be insisted upon so as to act as a filter

to keep at bay and motivated, ill-founded and frivolous prosecution against the public servant. However, realising that the dividing line between an act in the discharge of official duty and an act that is not, may, at times, get blurred thereby enabling certain unjustified claims to be raised also on behalf of the public servant so as to derive undue advantage of the requirement of sanction, specific provisions have been incorporated in Section 19(3) of the Prevention of Corruption Act as well as in Section 465 of the Code of Criminal Procedure which, inter alia, make it clear that any error, omission or irregularity in the grant of sanction will not affect any finding, sentence or order passed by a competent court unless in the opinion of the court a failure of justice has been occasioned. This is how the balance is sought to be struck."

100. In view of the above discussion, it cannot be said that the order of sanction for prosecution of accused is not valid or illegal or that the sanction has been granted without due application of mind.

VI. ELECTRONIC EVIDENCE :

101. It is argued that as far as CD Ex.P1 allegedly containing the conversation between Ratan Lal and Smt. Ansaro Khatoon on 08.08.2010 is concerned, the same does not contain the voice of any of the accused persons. Moreover, no certificate under section 65B Indian Evidence Act was obtained from PW-25 Ratan Lal regarding CD Ex.P1 nor the original device was sent to forensic lab for examination. PW-25 admitted in his testimony that he could not locate the mobile phone and memory card by which he had made the recording on 08.08.2010 despite efforts and thus, the original recording device was never seized or sent for forensic lab for examination. Sample voice of Ratan Lal and Smt. Ansaro Khatoon were also not recorded or compared with the questioned voice in the CD Ex.P1. Also in both the files contained in the CD, the date of modification is 18.08.2010. As per the report Ex.PW15/A dated 27.08.2011, the date of modification of both files CC No.10/2019 State Vs. Dilip Singh Chauhan etc. was 28.10.2010 at 09:09 AM. In this respect Ld. Defence counsel has relied upon Ram Singh Vs Col. Ram Singh, 1985 Supp SCC 611 wherein it has been held that :

"Every possibility of tampering with or erasure of a part of a tape-recorded statement must be ruled out otherwise it may render the said statement out of context and therefore, inadmissible."

102. It is argued that possibility of tampering of time in the CD cannot be ruled out as the CD remained in the possession of Ratan Lal for about seven months. It is further argued that the electronic evidence thus, is not admissible or can be relied upon. Ld. Counsel for the accused has also relied upon Ashish Kumar Dubey Vs CBI, CrI. Appeal No. 124/2008, decided by Hon'ble High Court on 04.04.2014 stating that the cassette recorder which was used by a witness to record the conversation was not sent to CFSL and only cassette was sent. It is further argued that after discussing the case of Ram Singh Vs Col. Ram Singh and Nilesh Dinkar Paradkar Vs State of Maharashtra (2011) 4 SCC 143, it was held in Ashish's case that the cassette was an inadmissible piece of evidence. It is further argued that it was held that accuracy of tape-recorded statement has to be proved by the maker of the record satisfactorily and every possibility of tampering with or

erasing of a part of tape-recorded statement must be ruled out.

103. It is further argued that in Nilesh Dinkar Paradkar Vs State of Maharashtra, (2011) 4 SCC 143, it was held that it is all CC No.10/2019 State Vs. Dilip Singh Chauhan etc. the more necessary since tape recordings may be altered by transposition, excision and insertion or words or phrases and such alterations may escape detection and even elude it on examination by technical experts. It was held in Ashish Kumar's case that where the recorder used to record conversation was not submitted to CFSL and without the device being examined for ruling out the possibility of tampering, one of the important requirements was not satisfied, hence it will be an inadmissible piece of evidence.

104. Similarly, it is argued that in the CD Ex.P2 allegedly containing the conversation between Uma Shankar, girl "R" and Raj Kumar, the date of modification of the files is 24.02.2011. Moreover, the original recording device was not seized or sent for forensic examination nor certificate under section 65B Indian Evidence Act was obtained from PW-29 Uma Shankar. The chip containing the original recording was obtained from Uma Shankar on 25.04.2012 i.e. after almost one year. Moreover, as per the properties of the files, all the files were dated 24.02.2011 in the CD Ex.P2. The chip Ex.P3 was not sent for any forensic examination. It is argued that the possibility of tampering or manipulation cannot be ruled out as the CD remained in the possession of Uma Shankar in unsealed condition for about three months. As far as the CD and transcript produced by PW-30 Insp. Sri Niwas Rajora is concerned, PW-30 accepted that the CD was lying in the almirah of Joint C.P. from 21.03.2011 to 09.04.2012. The CD was seized by the IO PW-CC No.10/2019 State Vs. Dilip Singh Chauhan etc. 33 on 09.04.2012 vide Ex.PW11/F but was not sent for any forensic examination and hence the possibility of tampering has not been ruled out in respect of the CD produced by PW-30 Sri Niwas Rajora. Thus, the said CD Ex.PW30/A is inadmissible in evidence. Moreover, the same does not contain the voice of any of the accused persons.

105. Ld. counsel for the accused S.B. Yadav has also argued that the alleged transcription and recordings are inadmissible and are fabricated.

106. As far as the date of modification of files in the CD Ex.P1 is concerned, the report Ex.PW15/A reveals that CD contained two folders namely MP3 and Non-MP3, and the date of modification of the folders is 28.10.2010. Both the folders further contained two files each and the date of modification of the files is 18.08.2010.

107. In case titled as Anvar P.V. Vs P.K. Basheer, AIR 2015, SC 180, on the issue of certificate under section 65B of Indian Evidence Act, it has been observed that :

"Any documentary evidence by way of an electronic record under the Evidence Act, in view of Sections 59 and 65A, can be proved only in accordance with the procedure prescribed under Section 65B. Section 65B deals with the admissibility of the electronic record. The purpose of these provisions is to sanctify secondary evidence in electronic form, generated by a computer. It may be noted that the Section starts with a non obstante clause. Thus, notwithstanding anything contained in the Evidence Act, any information contained in an electronic record which is printed on a paper,

stored, recorded or copied in optical or magnetic media produced by a computer shall be deemed to be a document only if the conditions mentioned CC No.10/2019 State Vs. Dilip Singh Chauhan etc. under sub-Section (2) are satisfied, without further proof or production of the original. The very admissibility of such a document, i.e., electronic record which is called as computer output, depends on the satisfaction of the four conditions under Section 65B(2). Following are the specified conditions under Section 65B(2) of the Evidence Act :

- (i) The electronic record containing the information should have been produced by the computer during the period over which the same was regularly used to store or process information for the purpose of any activity regularly carried on over that period by the person having lawful control over the use of that computer;
- (ii) The information of the kind contained in electronic record or of the kind from which the information is derived was regularly fed into the computer in the ordinary course of the said activity;
- (iii) During the material part of the said period, the computer was operating properly and that even if it was not operating properly for some time, the break or breaks had not affected either the record or the accuracy of its contents; and
- (iv) The information contained in the record should be a reproduction or derivation from the information fed into the computer in the ordinary course of the said activity.

Under Section 65B(4) of the Evidence Act, if it is desired to give a statement in any proceedings pertaining to an electronic record, it is permissible provided the following conditions are satisfied :

- (a) There must be a certificate which identifies the electronic record containing the statement;
- (b) The certificate must describe the manner in which the electronic record was produced;
- (c) The certificate must furnish the particulars of the device involved in the production of that record;
- (d) The certificate must deal with the applicable conditions mentioned under Section 65B(2) of the Evidence Act; and
- (e) The certificate must be signed by a person occupying a responsible official position in relation to the operation of the relevant device.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. It is further clarified that the person need only to state in the certificate that the same is to the best of his knowledge and belief. Most importantly,

such a certificate must accompany the electronic record like computer printout, Compact Disc (CD), Video Compact Disc (VCD), pen drive, etc. pertaining to which a statement is sought to be given in evidence, when the same is produced in evidence. All these safeguards are taken to ensure the source and authenticity, which are the two hallmarks pertaining to electronic record sought to be used as evidence. Electronic records being more susceptible to tampering, alteration, transposition, excision, etc. without such safeguards, the whole trial based on proof of electronic records can lead to travesty of justice.

Only if the electronic record is duly produced in terms of Section 65B of the Evidence Act, the question would arise as to the genuineness thereof and in that situation, resort can be made to Section 45A□Opinion of examiner of electronic evidence.

The Evidence Act does not contemplate or permit the proof of an electronic record by oral evidence if requirements under Section 65B of the Evidence Act are not complied with, as the law now stands in India."

108. The above judgment was again discussed in the case Shafhi Mohammad Vs State of Himachal Pradesh, in Special Leave Petition (Crl.) No.2303 of 2017 by Hon'ble Supreme Court and vide order dated 30.01.2018 the Hon'ble Supreme Court observed as follows :

"We may, however, also refer to judgment of this Court in Anvar P.V. Vs P.K. Basheer and Others, (2014) 10 SCC 473, delivered by a Three□Judge Bench. In the said judgment in para 24 it was observed that :

"Electronic evidence by way of primary evidence was covered by Section 62 of the Evidence Act to which CC No.10/2019 State Vs. Dilip Singh Chauhan etc. procedure of Section 65B of the Evidence Act was not admissible. However, for the secondary evidence, procedure of Section 65 B of the Evidence Act was required to be followed and a contrary view taken in Navjot Sindh (supra) that secondary evidence of electronic record could be covered under Sections 63 and 65 of the Evidence Act, was not correct. There are, however, observations in para 14 to the effect that electronic record can be proved only as per Section 65B of the Evidence Act.

Though in view of Three□Judge Bench judgments in Tomaso Bruno and Ram Singh (supra), it can be safely held that electronic evidence is admissible and provisions under Section 65A and 65B of the Evidence Act are by way of a clarification and are procedural provisions. If the electronic evidence is authentic and relevant the same can certainly be admitted subject to the Court being satisfied about its authenticity and procedure for its admissibility may depend on fact situation such as whether the person producing such evidence is in a position to furnish certificate under Section 65B (h).

Sections 65A and 65B of the evidence Act, 1872 cannot be held to be a complete code on the subject. In Anvar P.V. (supra), this Court in para 24 clarified that primary

evidence of electronic record was not covered under Sections 65A and 65B of the Evidence Act.

The applicability of procedural requirement under Section 65B(4) of the Evidence Act of furnishing certificate is to be applied only when such electronic evidence is produced by a person who is in a position to produce such certificate being in control of the said device and not of the opposite party. In a case where electronic evidence is produced by a party who is not in possession of a device, applicability of Section 63 and 65 of the Evidence Act cannot be held to be excluded. In such case, procedure under the said Sections can certainly be invoked. If this is not so permitted, it will be denial of justice to the person who is in possession of authentic evidence/witness but on account of manner of proving, such document is kept out of consideration by the court in absence of certificate under Section 65B(4) of the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Evidence Act, which party producing cannot possibly secure. Thus, requirement of certificate under Section 65B(h) is not always mandatory.

Accordingly, we clarify the legal position on the subject on the admissibility of the electronic evidence, especially by a party who is not in possession of device from which the document is produced. Such party cannot be required to produce certificate under Section 65B(4) of the Evidence Act. The applicability of requirement of certificate being procedural can be relaxed by Court wherever interest of justice so justifies."

109. Thus, the Hon'ble Supreme Court in the above case of Shafhi Mohammad, after discussing the judgment in Anvar P.V. Case held that requirement of certificate under section 65(B) is not mandatory and applicability of the requirement of certificate being procedural can be relaxed by the court wherever interest of justice so justifies.

110. The requirement of certificate under section 65B Evidence Act is to rule out any tampering with the electronic evidence produced on record. Source and authenticity are the two hallmarks pertaining to any electronic record sought to be used as evidence.

111. Hon'ble Supreme Court in Arjun Pandit Rao Khotkar Vs Kailash Kushanrao Gorantyal & Ors. in Civil Appeal no. 20825□20826 of 2017 in its decision dated 14.07.2020, after discussing both the above judgments, on the issue of certificate under section 65B Indian Evidence Act, observed :

".....We may reiterate, therefore, that the certificate required under Section 65B(4) is a condition precedent to the admissibility of evidence by way of electronic record, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. as correctly held in Anvar P.V. (supra), and incorrectly clarified in Shafhi Mohammed (supra). Oral evidence in the place of such certificate cannot possibly suffice as Section 65B(4) is a mandatory requirement of the law. Indeed, the hallowed principle in Taylor v. Taylor (1876) 1 Ch.D 426, which has been followed in a number of the judgments of this Court, can

also be applied. Section 65B(4) of the Evidence Act clearly states that secondary evidence is admissible only if lead in the manner stated and not otherwise. To hold otherwise would render Section 65B(4) otiose....."

112. Thus, for the admissibility of any CD/DVD or secondary evidence in digital form, the certificate under section 65B Indian Evidence Act is a mandatory requirement. PW□25 Ratan Lal has not produced any such certificate in support of CD Ex.P1, nor Uma Shankar PW□29 has produced any such certificate in support of CD Ex.P2. Similar is the situation in respect of CD Ex.PW30/A produced by PW□30 Insp. Srinivas Rajora. Moreover, the said CDs do not contain the voice of any of the accused persons. The sample voices of the concerned persons i.e. Smt. Ansaro Khatoon, Ratan Lal, girl "R", Uma Shankar, Raj Kumar also were neither recorded nor compared with the questioned voices. In fact, the CD Ex.PW30/A was not even sent to any forensic lab for examination. As the mandatory certificate under section 65B Indian Evidence Act in support of the digital evidence i.e. CD Ex.P1, CD Ex.P2, CD Ex.PW30/A has not been produced by the prosecution, the same are held to be inadmissible piece of evidence and hence, the same as well as the forensic expert report Ex.PW15/B cannot be relied upon to arrive at any conclusion regarding the commission of offence.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. VII. DELAY IN LODGING OF FIR :

113. It is argued by ld. Counsel for the accused Dilip Singh Chauhan that the first complaint Ex.PW14/B dated 08.02.2011 was made by the complainant after seven months of the alleged incidence and in fact in that complaint also there is no allegation that the accused persons have demanded or accepted any bribe and thrust of the complaint was against girl "R" and her mother as Naresh Gupta wanted an investigation with a view to come out of the arena of the chargesheet filed against him. Another complaint was filed by the complainant Naresh Gupta on 17.02.2011 for transfer of the FIR No.540/09 to PS Crime Branch for further re□investigation and on this complaint a vigilance enquiry was ordered vide order dated 21.02.2011. Thereafter, on 28.02.2011, the complainant presented another complaint Ex.PW23/A, on which the present FIR was lodged on 28.03.2011. The delay in lodging the complaint of the complainant regarding corruption vitiates the entire prosecution case.

114. It is further argued that the complainant has accepted that he was paying bribe without informing the demand of bribe by the accused persons to any lawful agency though he was well connected to the Joint Commissioner of Police Sh. Muktesh Chandra and was on talking terms with him. It is further argued that since there is no allegation of demand or acceptance of bribe by any CC No.10/2019 State Vs. Dilip Singh Chauhan etc. police official in the first complaint Ex.PW14/B, therefore, ACP, Vigilance Branch had marked the complaint on 23.02.2011. Thereafter, another complaint Ex.PW23/A was filed on 28.02.2011. On this complaint, the complainant was cross□examined (Ex.PW24/A) and after due deliberation, the rukka was sent for registration of FIR without the approval of Prosecution Branch and there was a purposeful departure in recording of FIR under section 154 Cr.P.C. It is further argued that FIR Ex.PW6/A was registered on the improved version/cross□examination of the complainant without any verification.

115. The relevant testimony of PW□23, Naresh Gupta dated 17.11.2016 is reproduced hereinbelow :□
"..... The complaint Ex.PW14/B was given to the Commissioner of Police, Delhi on 17.02.2011. I had given the above complaint regarding my false implication in the case FIR No.540/09. Vol. The complaint was also given regarding demand and acceptance of bribe from me. It is incorrect to suggest that I had not made any allegations regarding demand and acceptance of bribe in the complaints. It is correct that I had not given the details of the amount extorted from me in the complaint Ex.PW14/B....."

116. The relevant testimony of PW□23, Naresh Gupta dated 04.05.2018 is reproduced hereinbelow :□
".....In the month of January 2011, one person namely Anil Gupta, one of the accused in case FIR No.540/09, PS Jahangirpuri met me at Rohini Court and I came to know from him that one known of him had brought victim "R" to him and Anil Gupta was told that she was an orphan and her name was Gudia and she was a Hindu. Anil Gupta further told me that he had married with victim CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "R". On 22.01.2011, Anil Gupta moved an application before concerned Magistrate for further investigation in the FIR No.540/09. Concerned MM had issued directions for further investigation in the said FIR. On 17.02.2011, I went to Police Headquarters and moved an application before Commissioner of Police. On my application, Commissioner of Police transferred the investigation of FIR No.540/09 from PS Jahangirpuri to either in Vigilance or Crime Branch. On 28.02.2011, I went to Vigilance office and gave an application to ACP R.K. Jha. On 16.03.2011, ACP R.K. Jha made some enquiries from me which was reduced in writing and was termed as cross□examination, the same is already Ex.PW24/A (colly) which bears my signatures at point A on each page....."

".....On 28.03.2011, present FIR bearing No.100/11 was registered on my application dated 28.02.2011....."

117. The relevant testimony of PW□23, Naresh Gupta dated 19.09.2018 is reproduced hereinbelow :□
".....Q. From where you obtained or got the call details regarding calls exchanged between prosecutrix□R and Sh. Anil Gupta?

A. I do not remember now, however, we were also inquiring the matter at our own level. So far as I remember, Sh. Anil Gupta and Sh. Uma Shankar had provided the phone number of prosecutrix□R from which she use to make calls to Sh. Anil Gupta....."

118. The relevant testimony of PW□25, Naresh Gupta dated 22.08.2019 is reproduced hereinbelow :□
".....We then filed an application for anticipatory bail which was allowed and bail was granted to Sh. Naresh Gupta. We wanted to find out how "R" reached to Anil Gupta and therefore, we wanted to meet Anil Gupta. We had gone to attend our case in Rohini Court and the call of Anil Gupta was made. When the case of Anil Gupta was called in the court, at that time for the first time we came to know who was Anil Gupta. Mother and brother of Anil CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Gupta had also come to the court on that day. The eye sight of mother of Anil Gupta was weak. Brother and mother of Anil Gupta told us that Anil Gupta was married to "R". I asked them as to why they had not produced the evidence of marriage before the police. They told us that they had shown the evidence to the police but as they were unable to pay any amount to police

being poor, the police had arrested Anil Gupta. I then asked him about the recovery of "R" from Milk Booth, Muradabad and I was shocked when Uma Shankar told me that he had himself brought "R" to Delhi when they came to know that "R" was Muslim and that her mother was alive. Mother of "R" and "R" were in constant touch with each other telephonically but mother of "R" had not informed the police and had rather lodged an FIR of kidnapping. Then I collected the proof of marriage of "R" with Anil Gupta such as photographs etc. and visited the temple where they married and also went to Muradabad. I checked from the PS at Muradabad and there was no entry regarding the entry of Delhi Police at Muradabad on the day when "R" was allegedly recovered from Muradabad. I also tried to search for Mother Dairy Booth in Muradabad but there was no Mother Dairy Booth in Muradabad....."

119. The relevant testimony of PW□25, Naresh Gupta dated 23.09.2019 is reproduced hereinbelow :□".....I collected all the documents against the accused persons and produced the same alongwith complaint in the office of Commissioner of Police. We also annexed all the documents to show that Sh. Naresh Gupta was innocent and also annexed those documents with the complaint. The investigation of the case FIR No.540/2009 PS Jahangirpuri was transferred to Crime Branch....."

120. In Ravinder Kumar & Anr. Vs State of Punjab, Appeal (crl.). 881/2001, Special Leave Petition (crl.) 1118/2001 decided by Hon'ble Supreme Court on 31.08.2001, on the issue of delay, it CC No.10/2019 State Vs. Dilip Singh Chauhan etc. has been held that :

"When there is criticism on the ground that FIR in a case was delayed the court has to look at the reason why there was such a delay. There can be a variety of genuine causes for FIR lodgment to get delayed. Rural people might be ignorant of the need for informing the police of a crime without any lapse of time. This kind of unconversantness is not too uncommon among urban people also. They might not immediately think of going to the police station. Another possibility is due to lack of adequate transport facilities for the informers to reach the police station. The third, which is a quite common bearing, is that the kith and kin of the deceased might take some appreciable time to regain a certain level of tranquillity of mind or sedativeness of temper for moving to the police station for the purpose of furnishing the requisite information. Yet another cause is, the persons who are supposed to give such information themselves could be so physically impaired that the police had to reach them on getting some nebulous information about the incident."

"We are not providing an exhausting catalogue of instances which could cause delay in lodging the FIR. Our effort is to try to point out that the stale demand made in the criminal courts to treat the FIR vitiated merely on the ground of delay in its lodgment cannot be approved as a legal corollary. In any case, where there is delay in making the FIR the court is to look at the causes for it and if such causes are not attributable to any effort to concoct a version no consequence shall be attached to the mere delay in lodging the FIR. Vide Zahoor vs. State of UP (1991 Suppl.(1) SCC 372; Tara Singh vs. State of Punjab (1991 Suppl.(1) SCC 536); Jamna vs. State of UP (1994 (1) SCC

185). In Tara Singh (Supra) the Court made the following observations: "It is well settled that the delay in giving the FIR by itself cannot be a ground to doubt the prosecution case. Knowing the Indian conditions as they are we cannot expect these villagers to rush to the police station immediately after the occurrence. Human nature as it is, the kith and kin who have witnessed the occurrence cannot be expected to act mechanically with all the promptitude in giving the report to the police. At times being grief-stricken CC No.10/2019 State Vs. Dilip Singh Chauhan etc. because of the calamity it may not immediately occur to them that they should give a report. After all it is but natural in these circumstances for them to take some time to go to the police station for giving the report."

121. It is thus, a settled law that FIR does not get vitiated only on the ground of delay and the court has to look at the reasons for such delay. During the cross-examination of PW-25 dated 02.11.2019, it has come on record that the complainant had fallen sick due to the allegations against him. Both PW-25 as well as PW-23 had stated that they became perplexed when the SHO i.e. the accused no. 2 alongwith his team including the accused no. 1 had come to arrest the complainant. In such circumstances, it was natural that the first anxiety of the complainant was to seek fair investigation in the FIR No.540/09 to save his honour and also to save himself from getting arrested. It is quite likely that the complainant was too shocked to even think about complaining against the accused persons and his only anxiety must have been to save himself. In fact, as the accused persons represented that matter could be settled with huge amount of money and that the girl was under their influence, they would have appeared to the complainant his only saviour who could rescue him from being arrested. The complainant and his family could not have annoyed or invited the wrath of their saviours by making a complaint against them. The sequence of events and manner in which the FIR has been lodged are also to be taken into CC No.10/2019 State Vs. Dilip Singh Chauhan etc. consideration. It is revealed from the record that the complainant got anticipatory bail on 28.10.2010, thereafter, chargesheet was filed in FIR No.540/09. The order for re-investigation in FIR No.540/09 was passed on 22.01.2011. Thereafter, the complaint dated 08.02.2011 Ex.PW14/B was filed and the subject matter of this complaint was "false implication of the applicant namely Naresh Gupta in case FIR No.540/09, U/s : 363/376 IPC, registered at PS Jahangirpuri, Distt. North West Delhi". It is correct that the main thrust of the complaint in complaint Ex.PW14/B was regarding the faulty and poor investigation in FIR No.540/09. The true facts regarding the elopement of girl "R" were also stated in Ex.PW14/B. The facts which established the innocence of complainant Naresh Gupta were also stated. A prayer was also made that a thorough enquiry/investigation is required in FIR No.540/09 to reach to the truth of the case and to probe the role of the local police officials. In Ex.PW14/B it is also mentioned that the complainant came to know that the SHO Insp. S.B. Yadav and HC Dilip Chauhan have a history of engaging in nefarious activities implicating innocent persons to extort money. It is also mentioned that they had implicated four innocent persons in a false robbery case and by acquitting the said persons in the robbery case, Additional Sessions Judge had filed a complaint against HC Dilip and Insp. S.B. Yadav. The copies of the newspapers' reports published in Times of India and Punjab Kesari dated 27.12.2010 CC No.10/2019 State Vs. Dilip Singh Chauhan etc. were also annexed with the complaint Ex.PW14/B. In the said complaint it is also mentioned that the lapses committed by the investigating agency in investigating the FIR No.540/09 indicate the connivance of the investigating

agency to extort money from the complainant. The complainant has also stated that he was falsely implicated by the prosecutrix and her family members in connivance with the local police to use the prosecutrix as a tool for extorting money from the complainant knowing fully well that the complainant is a man of repute in the society and would rather exceed to the unlawful demands rather than getting his image tarnished by the false and frivolous allegations.

122. A perusal of the first complaint Ex.PW14/B reveals that there are allegations of money being extorted from the complainant (though the details are not given) and the main thrust of the complainant was regarding true facts as far as allegations of gang rape are concerned. The complainant's efforts to first secure a fair investigation in FIR No.540/09 were definitely in accordance with normal human conduct and psychology. After the investigation in FIR No.540/09 was transferred to the Crime Branch, the complainant had filed a complaint Ex.PW23/A on 28.02.2011 and in this complaint it is clearly stated that both the SHO and IO had told him that "ye case bahut bada hai aur ye case paise le dekar his sultega". He has further stated "uske baad police ne mere evam CC No.10/2019 State Vs. Dilip Singh Chauhan etc. mere sadu ke sath paise ka khel khela, uski jankari puri mere sadu aapko likhit bayan se bhi denge". He further stated that "IO Dilip Chauhan se mile aur unhone bataya ki ye maamla bahut gambhir hai, iska niptara paise kharch karke hi niptega, to SHO sahab ne bataya ki jaise jaise Dilip Chauhan kahte rahe waise waise karte rahe, ladki aur ladki ki maa humare kaabu me hai jaisa hum kahenge ladki waisa hi karegi, to is baat se saabit hota hai ki police ne ladki se mil karke mere se paise aithne ke liye ye badi saajish rachi hai".

123. The details of the money being paid by PW□25 Ratan Lal on behalf of complainant were given subsequently in the statement in question□answer form Ex.PW24/A and in the various statements under section 161 Cr.P.C.. Also, as the bribe amount was paid by Ratan Lal, only PW□25 Ratan Lal could have stated about the same. The order of concerned M.M. for further investigation and the transfer of investigation of gang rape case to Crime Branch, gave hope to the complainant to have a fair investigation. The complaint against the accused persons was lodged immediately thereafter, and thus, there is no delay in lodging of FIR, in the present case. Both the complainant PW□23 and Ratan Lal PW□25 have stated that they were enquiring the matter on their own also and were collecting all the documents to show that the complainant was innocent and after collecting all the documents they had filed the complaint Ex.PW14/B and thereafter, the complaint Ex.PW23/A on 28.02.2011. Various documents alongwith the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. photographs of marriage of girl "R" and Anil Gupta were annexed with the complaint and thus, it is proved that the complainant as well as PW□25 are stating truth that they were enquiring the matter at their own end also. It is only after they had collected sufficient material to prove the innocence of the complainant in the gang rape case, they had filed the complaint and thus, there appears no delay in lodging of the FIR in the case.

VIII. APPOINTMENT OF ACCUSED NO. 1 AS IO BY ACCUSED NO. 2 AGAINST THE RULES :

124. One of the charges framed against the accused persons is that accused no. 1 Dilip Singh Chauhan was handed over the investigation of case FIR No.540/09, PS Jahangirpuri against the rules at the relevant time. The standing order no. 303/2019 are the guidelines to be followed by the

police in case of rape is Ex.PW4/A. As per the standing order Ex.PW4/A, on receipt of information regarding rape, the IO/SHO are to immediately inform the Rape Crises Cell, Delhi Commission for Women at 2nd Floor, C-Block, Vikas Bhawan, New Delhi-110002 and the DCW has a 24 hours helpline number. The rape crises cell has to provide legal assistance in the cases of sexual assault and to provide legal support to the victim and her family. The concerned ACP personally has to supervise the investigation into the offence and the IO has to bring the cases relating to child victim and the child victim involved in CC No.10/2019 State Vs. Dilip Singh Chauhan etc. incest cases to the notice of Child Welfare Committee. Also the investigation in a rape case has to be referred to an officer not below the rank of SI preferably a lady having a periodical training to deal with child victims of sexual abuse. The accused no.1 Dilip Singh Chauhan was head constable at the relevant time and was thus, not competent to investigate the rape case. There is nothing on record to suggest that the IO or the SHO i.e. both the accused persons had informed the rape crisis cell about the commission of the alleged gang rape. As per Ex.DW1/A, an RTI application was filed seeking information about the total cases registered under section 363 IPC during 30.09.2009 till 16.10.2010 at PS Jahangirpuri and the name and rank of the officers as to whom these cases were entrusted as well as total number of cases decided and as to how many cases were investigated by officials of the rank of head constable under section 363 IPC w.ef. 30.09.2009 to 16.10.2010. As per reply Ex.DW1/B, total 61 cases were registered under section 363 IPC. The rank of the officers who were entrusted with the investigation of these cases ranged from head constable to inspector.

125. Let us assume for the sake of arguments that due to shortage of staff or any other reason, investigation of the cases under section 363 IPC were assigned to officials of rank of head constable. But still the fact remains that once the allegations of gang rape surfaced, the SHO should have at least at that time entrusted the investigation CC No.10/2019 State Vs. Dilip Singh Chauhan etc. to a lady officer not below the rank of SI. In reply Ex.DW1/B, nothing has been stated as to whether any cases under section 376 IPC were also investigated by an officer of the rank of head constable. After the recording of the statement of girl "R" under section 161 Cr.P.C. and 164 Cr.P.C., the provisions related to rang rape were added. Still the investigation remained with HC Dilip Singh Chauhan and the same is definitely against the rules. As per Ex.PW33/DN, W/SI Shushila Rana, No.D-424 was designated for the investigation of rape cases of Sub-Division Jahangirpuri. The rape cases pending investigation when W/SI Shushila Rana was on leave were handed over to W/SI Vineeta Prasad for investigation. W/SI Vineeta Prasad was available at PS Jahangirpuri on 03.07.2010. The investigation still was continued by HC Dilip Singh Chauhan. The continuation of the investigation of a rang rape case by HC Dilip Singh Chauhan despite availability of W/SI Shushila Rana and W/SI Vineeta Prasad was definitely against the rules and also establish conspiracy between the two accused persons.

IX. DEMAND & ACCEPTANCE :

126. It is argued that the accused no. 2 SHO through SI Tejpal had obtained NBWs against the complainant Naresh Gupta and Niranjana on 28.09.2010 and thus, had incurred wrath and displeasure of his seniors, as he refused to act as per their dictation CC No.10/2019 State Vs. Dilip Singh Chauhan etc. to exonerate Naresh Gupta and therefore, the seniors had vented their anger on SHO and SHO was

thereafter, transferred on 18.10.2010.

127. It is further argued that the testimony of PW 23, complainant and Ratan Lal are coloured with a common object, purpose and design to view a web around the accused persons to somehow torture them and victimize them. It is also argued that in Ex.PW24/A, it was stated by the complainant that they had no grievances against ACP Jai Bhagwan and ACP Jai Bhagwan had never demanded or accepted any bribe amount from them but in the court both Naresh Gupta and Ratan Lal deposed that there was a demand of Rs.50,000/- by the ACP Jai Bhagwan and on the asking of SHO, Ratan Lal and Naresh Gupta paid an amount of Rs.50,000/- on 16.07.2010 at around 08:30 to 09:00 PM which reveals that both the complainant as well as Ratan Lal had come out with different story than the prosecution version which raises a serious doubt about truthfulness of the prosecution version. In the court, complainant and Ratan Lal also deposed that the tyres of Santro car of ACP Jai Bhagwan were also got replaced by them.

128. As far as replacement of the tyres of Santro car is concerned, the same shall be dealt with hereinafter at the appropriate place.

Regarding the allegations of the complainant and Ratan Lal against ACP Jai Bhagwan, the application under 319 Cr.P.C. for summoning the ACP as additional accused was dismissed on CC No.10/2019 State Vs. Dilip Singh Chauhan etc. 11.02.2014. Thereafter, the complainant moved another application under section 173(8) Cr.P.C. seeking further investigation and filing of supplementary chargesheet against ACP Jai Bhagwan after obtaining requisite sanction from the competent authority or in the alternative to summon him under section 319 Cr.P.C. which was dismissed vide order dated 15.09.2016. A criminal revision petition bearing no. 454/17 filed by the State challenging the order dated 15.09.2016 is stated to be pending before Hon'ble High Court. As the issue regarding summoning of ACP Jai Bhagwan as an additional accused is pending before Hon'ble High Court, propriety demands that the present court refrains itself from commenting any further on this aspect. It is also argued that in the FIR No.540/09, the complainant and Smt. Ansaro Khatoon clearly stated that her daughter had gone for work at the residence of Naresh Gupta on 18.09.2009 from where she had gone missing but the complainant in the court had come out with totally different case that the girl had worked only till July 2009.

129. It is further argued that the complainant also developed another story that girl "R" had made a call on the landline phone from PCO and thereafter, they had settled the amount of Niranjana also as the complainant wanted to establish that on 18.09.2009 neither Niranjana nor girl "R" were working at his residence. It is further argued that it is wholly against the natural conduct that one who is taking legal action against the accused persons and was CC No.10/2019 State Vs. Dilip Singh Chauhan etc. prevented to do so by the orders of his superior would become sympathizer to the accused persons or would ask them to settle the matter after paying money and therefore, the story of the complainant and Ratan Lal becomes improbable.

130. Ld. Counsel for accused S.B. Yadav has argued that there are no allegations of demand of giving bribe against the accused no. 2 in the first complaint Ex.PW14/B dated 08.02.2011 addressed to Commissioner of Police and received on 17.02.2011 and in fact in the said complaint the complainant has only stated that he has been falsely implicated in FIR No.540/09, PS Jahangirpuri to extort money from him. As far as acceptance of bribe is concerned, it is argued that the complainant has made contradictory statement in as much as in his complaint Ex.PW23/A, he has stated that the amount paid to police was spent by his brother in law Ratan Lal which he had returned to his brother in law afterwards and he had also stated that some of the amount was given by the complainant himself also. But in the court the complainant deposed that the amount of Rs.2.5 Lakhs given by Ratan Lal to accused Dilip Singh Chauhan on 16.07.2010 was given by him to Ratan Lal. Again an amount of Rs.3 Lakh given by Ratan Lal to accused no. 2 and mother of the prosecutrix, was also given by Ratan Lal, but Ratan Lal has stated that both the amounts i.e. Rs.2.5 Lakh and Rs.3 Lakhs were given by Naresh Gupta. The complainant further stated that he had handed over Rs.50,000/□ to IO Dilip Singh Chauhan to get a report CC No.10/2019 State Vs. Dilip Singh Chauhan etc. regarding his joining investigation in the presence of SHO S.B. Yadav. Naresh Gupta also deposed that he had given Rs.2.5 Lakh to Ratan Lal on one occasion and Rs.3 Lakh on the other occasion and remaining amount was given by Ratan Lal on his behalf.

131. It is further argued that the defence of the accused that he was restrained from arresting complainant Naresh Gupta by ACP Jai Bhagwan stands established from the call details. It is also argued that the testimony of the complainant Naresh Gupta deserves no credence as the same is hearsay and full of improvements. Moreover, no money transaction with the accused S.B. Yadav took place in the presence of complainant Naresh Gupta. It is further argued that in the court, PW□23 and PW□25 have also deposed against ACP Jai Bhagwan which shows that they are not truthfulness witnesses.

132. As per the charge framed against the accused persons, the accused persons had demanded and accepted :

- (i) Rs.20,000/□ plus Rs.2,50,000/□ in the month of July 2010;
- (ii) got replaced five new tyres of a santro car;
- (iii) had demanded an amount of Rs.3,00,000/□ for delivering it to the mother of girl "R" for settling the rape case;
- (iv) had demanded and accepted wheat, rice and grams worth Rs.10,000/□ to Rs.12,000/□ from Ratan Lal; and CC No.10/2019 State Vs. Dilip Singh Chauhan etc.
- (v) had also accepted Rs.50,000/□ several times for lodging of DD entry.

Let us analyse the evidence on each of these counts separately.

IX(i). DEMAND & ACCEPTANCE OF Rs.20,000/□ + Rs.2,50,000/□ ON 16.07.2010 :

133. As per the prosecution, accused no.1 had demanded and accepted Rs.20,000/□from Rattan Lal on 16.07.2010 while on the way to P.S. and thereafter, demanded Rs.2,50,000/□as part payment of the total settled amount and accepted the same in P.S. on 16.07.2010.

134. It is argued that the demand and acceptance of Rs.20,000/□by the accused no. 1 on 16.07.2010 does not find mentioned in the enquiry report Ex.PW5/A nor the same is mentioned in the complaint dated 08.02.2011 Ex.PW14/B or in the complaint dated 28.02.2011 Ex.PW23/A. It is also argued that the role of the Vigilance Department was tainted, biased and not fair as they were acting on the dictation and commands of their senior officers.

135. Regarding the non□mentioning of the details of the amount given in Ex.PW14/B is concerned, this aspect has already been dealt with under the heading "Delay in Lodging of FIR".

136. Relevant portion of testimony of PW□23 Naresh Gupta during his examination□in□chief dated 03.09.2015 is reproduced hereinbelow :

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "..... On the intervening night of 15/16.07.2010 at about 03:00□03:30 AM, about 8□10 police personnel came to my house....."

"..... I was told by SHO S.B. Yadav and IO Dilip Chauhan that they had come to arrest me in a case of rape of girl "R" (name omitted) and girl "R" had given a statement against me U/s 164 Cr.P.C.. I told SHO and IO that I was being falsely implicated....."

".....In the presence of Ratan Lal, I was told by SHO and IO that the case against me was a very heinous and grave one and I would go inside Jail for life long. SHO and IO also told me that I would have to give 'Mote Paise' to get rid of the case and also told me that they knew that I was innocent and had been falsely implicated. IO and SHO told me that the girl was under their control and would do as they would tell her. I told SHO and IO to talk to Ratan Lal regarding demand of money as he was responsible person. SHO told me to talk to IO Dilip Chauhan regarding money to be paid on his behalf. In the morning hours, SHO left leaving behind Dilip Chauhan and two police officials. Then Ratan Lal took Dilip Chauhan and two police officials to police station Jahangirpuri to drop them and gave Rs.20,000/□Dilip Chauhan inside the car....."

".....Ratan Lal came to my house from PS Jahangirpuri and told me that SHO S.B. Yadav and IO Dilip Chauhan were demanding Rs.10 Lacs and negotiation were finalized at Rs.8 lacs. Ratan Lal told me that I would have to give Rs.2.5 lacs on 16.07.2010."

"..... Thereafter, on 16.07.2010 itself Ratan Lal took Rs.2.5 lacs from me to the PS Jahangirpuri and gave it to Dilip Chauhan....."

137. Testimony of PW-23 Naresh Gupta during his examination-in-chief dated 27.08.2016: ".....The accused persons had taken from me and my brother-in-law Sh. Ratan Lal approximately Rs.8,00,000/ (eight lacs) out of which RS.1,00,000/ (one lac) was returned....."

CC No.10/2019 State Vs. Dilip Singh Chauhan etc.

138. Testimony of PW-23 Naresh Gupta during his cross-examination dated 07.10.2016: "..... It is incorrect to suggest that I had an evil eye on girl "R" (name omitted) since I saw her in the hospital. Vol. I had never met or seen girl "R" in the hospital. I never talked to girl "R" during her employment in my house....."

".....I came to know that I had been implicated in a case of rape by girl "R" (name omitted) on the intervening night of 15/16.07.2010 when the SHO accompanied with about 7-8 police officials came to my house to arrest me. It is correct that when the police came to my house to arrest me, I called Ratan Lal on his mobile no. 9811039125 at about 4 or 4:30 AM."

"..... It is correct that I was not arrested on 16.07.2010. On 16.07.2010 talks took place in my house in my presence and SHO S.B. Yadav and accused present in the court told us that 'mota case hai, paise le deke nibtega'. I had stated in my cross-examination before the enquiry officer of Vigilance Department that in the presence of Ratan Lal, I was told by SHO and accused that the case against me was very heinous and grave and I would go inside jail for lifelong and SHO and accused told me that I would have to give 'mote paise' to get rid of the same. On the date of raid i.e. on the intervening night of 15/16.07.2010 after the raid the accused remained at my house with 2-3 police officials but the SHO and rest of the police officials went back"

139. Testimony of PW-23 Naresh Gupta during his examination-in-chief dated 22.03.2018: "..... On 15.07.2010, I again received a notice U/s 160 Cr.P.C. which was signed by IO Dilip Chauhan and I was asked to attend PS Jahangirpuri on 19.07.2010 at 10:30 AM....."

140. Testimony of PW-23 Naresh Gupta during his examination-in-chief dated 17.04.2018: CC No.10/2019 State Vs. Dilip Singh Chauhan etc. ".....In the intervening night of 15-16.07.2010 at about 03:30 AM or 04:00 AM in the early morning, my younger brother Ashok Gupta came to my room and told me that 8-10 police officials have come to our house."

"..... SHO S.B. Yadav told me that there was a court order in compliance of which statement of victim was recorded u/s 164 Cr.P.C.. 2-3 lines of statement U/s 164 Cr.P.C. was read over to me and told me that victim namely (R) had levelled allegation of rape against me. I pleaded before SHO that I am innocent and I am being implicated in a planned manner. SHO S.B. Yadav and IO Dilip Chauhan told that they know as I am being implicated. I became perplexed. I informed my Sadu

Ratan Lal telephonically on his telephone no.9811039125."

"..... SHO S.B.Yadav and IO Dilip Chauhan told me "yeh bahut mota case hai, tum zindagi bhar jail me sadoge, isme acchhe paise lagenge aur ladki (victim - R) hamare kahe mein hai, hum jaisa kahenge who vaisa hi karegi". SHO S.B.Yadav, told me to talk about money with IO Dilip Chauhan on his behalf in this regard. After about 2 hours, some police officials left my house including SHO S.B. Yadav. IO Dilip Chauhan alongwith some police officials remain at my house."

"..... At about 07:00 AM, in the vehicle of my Sadu Ratanlal, IO Dilip Chauhan alongwith 12 police officials, demanded money from my Sadu Ratanlal (objected to being hear say). I was not present in the said vehicle. I was told by my Sadu Ratanlal that he had paid Rs.20,000/ to IO Dilip Chauhan on his demand (objected to being hear say). They reached PS Jahangirpuri in the vehicle, where SHO S.B. Yadav and IO Dilip Chauhan demanded Rs.10 lacs from my Sadu Ratanlal and after scaling down the amount both the accused S.B. Yadav and Dilip Chauhan agreed on the amount of Rs.8 Lacs (objected to being hear say). It was settled that Rs. 2.5 lacs was to be delivered on the same day"

".....At about 11:00 AM, my Sadu Ratanlal came to my house to collect the amount of Rs.2.5 lacs which was to be given to accused S.B. Yadav and Dilip Chauhan. I gave Rs.2.5 lacs to my Sadu Ratanlal at my house. After collecting Rs.2.5 lacs from my house, my Sadu left my house and reached PS Jahangirpuri and gave the same to CC No.10/2019 State Vs. Dilip Singh Chauhan etc. IO Dilip Chauhan, perhaps in the presence of S.B. Yadav (objected to being hear say)....."

141. Testimony of PW23 Naresh Gupta during his cross examination dated 25.05.2018: ".....Ratan Lal came to my residence after half an hour. Ratan Lal had left alongwith the police officials including Dilip Chauhan. After Ratan Lal left, he came face to face with me when he came to my residence at around 11:00 AM to 12:00 AM to collect the amount of Rs.2,50,000/ I had not told this fact to Sh. Muktesh Chandra as he was not connected with the issue."

"..... It is wrong to suggest that I am deposing falsely regarding Rs.2,50,000/ It is wrong to suggest that I am deposing falsely regarding the fact that the SHO at the time of leaving my residence had stated that 'kuch seva paani ACP sahab ki bhi karni padegi'....."

142. Testimony of PW23 Naresh Gupta during his cross examination dated 10.07.2018: ".....It is wrong to suggest that on 16.07.2010, the accused S.B. Yadav had left alongwith all the police officials. Vol. He had left Sh. Dilip Singh Chauhan alongwith some other officials at my residence."

143. Testimony of PW23 Naresh Gupta during his cross examination dated 11.12.2018: "..... I do not remember whether any police official or specifically accused S. B. Yadav had approached me

between 03.07.2010 and 15.07.2010. Vol. I had received a notice on 15.07.2010 to appear in the PS on 19.07.2010....."

"..... It is wrong to suggest that I have made a false statement that in the presence of Ratan Lal I was told by SHO and IO that the case against me was very heinous and grave one and I would go inside jail for life long. It is wrong to suggest that I have made a false statement that "SHO and IO also told me that I would have to give 'mote CC No.10/2019 State Vs. Dilip Singh Chauhan etc. paise to get rid of the case and they also told me that they knew I was innocent and had been falsely implicated." It is wrong to suggest that I have given a false statement that "IO and SHO told me that the girl was under their control and would do as they would tell her."....."

"..... It is wrong to suggest that on 16.07.2010 Ratan Lal had not taken Rs.2.5 lakh from me to PS Jahangirpuri and had not given the same to accused Dilip Chauhan."

144. The above testimony of PW23, Naresh Gupta establishes that when the accused no.2 SHO alongwith his team including accused no.1 reached the house of complainant to arrest him, he told the complainant that the case can be settled as the girl 'R' and her mother were under their influence and that they should act as per the directions of accused no. 2. It also establishes that Ratan Lal was to handle the issue of settlement on behalf of complainant and accused no. 1 was to act on behalf of accused no. 2, SHO. It also establishes that Ratan Lal had gone to P.S. alongwith accused no.1 in the vehicle of Ratan Lal and Ratan Lal had thereafter come to the house of complainant at around 11:00 am to 12:00 noon when complainant handed over Rs.2.5 lakhs to Ratan Lal on 16.07.2010. The rest of the testimony of PW23 regarding payment of Rs.20,000/□and negotiations, scaling down and settling the amount at Rs.8 lakhs, part payment of Rs.2.5 Lakhs etc. is of hearsay nature and cannot be relied upon.

145. As the payment of Rs.20,000/□and Rs.2.5 lakhs were given by PW25 Ratan Lal as per the prosecution case, let us analyze his CC No.10/2019 State Vs. Dilip Singh Chauhan etc. testimony in this respect.

146. Testimony of PW25 Ratan Lal during his chief examination dated 16.01.2017 :□"On the intervening night of 15□6.07.2010 I was residing at the above address and received a call on my mobile from Sh. Naresh Gupta who is my brother in law (Sadu)...."

".....I immediately rushed to the house of Naresh Gupta at Ashok Vihar where I found the vehicle of police was standing outside of Naresh Gutpa and policemen sitting inside his house....."

"....The SHO and IO told me that allegations had been levelled by girl "R" (name omitted) who was maid servant in the house of Naresh Gupta employed for taking care of Smt. Neelam (wife of Ashok Gupta) brother of Naresh Gupta, as she had fractured her hip bone and she had been brought from the hospital. The police official

further informed me that girl "R" (name omitted) had got a case of rape registered against Naresh Gutpa, Niranjana servant of Naresh Gupta and one more person..."

"..... The accused and the SHO S.B. Yadav then took me and Naresh aside and told us that it appears to be a false case but since allegations were serious the matter could be sorted out by giving money "paise de le ke". I told the accused and SHO to talk to girl "R" (name omitted) as it was a false case, accused and SHO S.B. Yadav told us that they had already spoken to girl "R" (name omitted) who was demanding money..."

".... Naresh Gupta told accused and SHO S.B. Yadav that I being a relative of Naresh Gupta would deal with the police officials about the money to be given in connection with this case. SHO S.B. Yadav told me that accused who was IO of the case would deal with me and SHO S.B. Yadav left..."

".... Accused thereafter told me to accompany him to PS Jahangirpuri. I and accused Dilip Chauhan went to PS in my vehicle. On the way to PS I told the accused we were not such type of people and he should investigate the case thoroughly. Accused told me that he will investigate the case properly and also asked me whether I had CC No.10/2019 State Vs. Dilip Singh Chauhan etc. brought some money, upon which I handed over to accused Rs.20,000/-(Twenty Thousand) which I was carrying with me..."

"..... On reaching room of the accused in PS I found the parents of girl "R" (name omitted) and accused present, accused was talking to the parents of girl "R" (name omitted) sometimes inside the room and sometimes outside the room and then he told me that about Rs.10 lakhs to 15 lakhs would have to be paid. I told accused that Naresh Gupta was innocent and the amount was too exorbitant and told him to get the matter sorted out on reasonable amount. Accused then took me to the room of SHO S.B. Yadav and after discussion I was told by accused and SHO that Rs. 8 lakhs had to be paid to get the matter sorted out and I was further told that another statement of prosecutrix would be got recorded u/s 164 Cr.P.C in which she would exonerate Naresh Gupta. I was also told that Naresh Gupta would be placed in a column no.12 in the chargesheet. I was again sent to the room of accused. After some time accused came to his room and told me that as per discussion with SHO some advance amount may be given. I asked accused how much advance would have to be given upon which he told me to bring about Rs. 2 or 1 1/2 lakhs. I told accused that I would bring the money from Ashok Vihar and left..."

"..... I then went to the house of Naresh Gupta..."

"..... On the same day i.e. 16.07.2010 Naresh Gupta took out Rs. 2 1/2 lakhs (Two Lakhs Fifty Thousand) from his cupboard and gave it to me. After taking the money I reached PS Jahangirpuri and went to the room of accused and gave the Rs.2 1/2 lakhs to accused..."

147. Testimony of PW 25 Ratan Lal during his chief examination dated 10.02.2017: ".... On 16.07.2010, accused told me that as the prosecutrix was under his control she would state as told to do so by him....."

148. Testimony of PW 25 Ratan Lal during his cross examination dated 22.02.2017: CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "..... I had reached the house of Naresh Gupta at around 4:30 AM on 16.07.2010. There were about 8 police persons at the house of Naresh Gupta when I reached. I had made several calls after reaching the house of Naresh Gupta on 16.07.2010. I know Sh. Muktesh Chandra, the then IG Goa through someone. I had called Sh. Muktesh Chandra either on 16.07.2010 or 17.07.2010 through my mobile in connection with this case..."

".....I do not know whether Sh. Muktesh Chandra had made a call to ACP Jai Bhagwan on 16.07.2010 at about 6:40 AM. I do not know the mobile number of ACP Jai Bhagwan. I cannot tell whether SHO, S.B. Yadav had received a call from some ACP on 16.07.2010"..... "....The police officials remained at the house of Naresh Gupta for about half an hour on 16.07.2010. Thereafter, except accused and another police officer, the rest left the house of Naresh Gupta....."

149. Testimony of PW 25 Ratan Lal during his cross examination dated 13.04.2017: ".....When I handed over Rs.2,50,000/ to the accused he was alone at that time. Naresh Gupta had given me Rs.2,50,000/ which he had brought from a room on first floor of his house...."

"....I do not remember the exact time when I gave Rs.2,50,000/ to the accused it was in the day time...."

"..... It is wrong to suggest that I did not hand over Rs.2,50,000/ to the accused. It is further wrong to suggest that I had retained the amount of Rs.2,50,000/ with myself after receiving the same from Naresh Gupta...."

"....Out of the Rs.8,00,000/ paid to the accused Rs.1,32,000/ was given by me....."

150. Testimony of PW 25 Ratan Lal during his chief examination dated 03.07.2019 after amendment of charge against accused no.1 and framing of charge against accused no.2: "In the intervening night of 15-16 July 2010 at around 03:30-04:00 AM, I was present at my house at Rohini. At CC No.10/2019 State Vs. Dilip Singh Chauhan etc. that time, I received a telephonic call from my brother in law (Sadu) Sh. Naresh Gupta who told me that police officials from PS Jahangirpuri had come to arrest him from his house with allegation of case of rape and it was also told that there was one statement under 164 . I got perplexed....."

"....As we belong to business family we were not aware about the legal provisions and the consequences and therefore, I consulted one or two know persons on phone for legal advise. I also called some advocates. I was told that the statement under 164 recorded before the magistrate and there is mention of any person in the statement

then that person will have to go to jail.....The SHO after leaving HC Dilip Chauhan at the residence of Sh. Naresh Gupta had left. SHO before leaving also told us that the girl 'R' was within their influence and the matter could be settled by giving money (leke sulta lenge)....."

"..... I alongwith the accused Dilip Chauhan also went to the police station Jahangirpuri. On the way to the PS, I talked to accused Dilip Chauhan and told him that this was a conspiracy and the allegations were totally false. Accused Dilip Chauhan told me that he would get the matter settled as the girl 'R' was under their influence (ladki hamare kahe me hai). He had also asked me as to whether I had brought any money, I told him that I was having Rs.20,000/- at that time and I handed over the said amount of Rs.20,000/- to accused Dilip Chauhan...I came back to home. I received a call from accused Dilip Chauhan who called me again to the PS. Then I went to the PS again, where I went to the room of the accused, the parents of the girl 'R' were sitting there. Accused Dilip Chauhan told me that he had spoken to the parents of girl 'R' and there would be an expenditure of around Rs.10-15 lakhs and some amount out of the same was to be paid to the girl 'R' and her parents. Accused Dilip told me that name of Sh. Naresh Gupta would be kept in column no.12. I told the accused Dilip Chauhan that Sh. Naresh Gupta is innocent and the amount was highly exhorbitant, the accused spoke to the parents of the girl "R" 2-3 times and also to me and thereafter the matter was settled at rupees eight lakhs..."

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "...Accused Dilip Chauhan further told me to arrange further Rs.2-2.5 lakhs and he left alongwith the driver Bahadur and Sh. Naresh Gupta took out an amount of Rs.2.5 lakhs from his almirah and gave the same to me and I reached to the room of accused Dilip Chauhan to the PS Jahangirpuri alongwith money. I gave the amount of Rs.2.5 lakhs to accused Dilip Chauhan on 16.07.2010.... Thereafter, I went to the room of the SHO alongwith accused Dilip Chauhan and the SHO was in his retiring room without uniform. SHO told me that I should not worry and should act as per the directions of the accused Dilip Chauhan....."

151. Testimony of PW-25 Ratan Lal during his cross-examination dated 21.10.2019 on behalf of accused no.1:-".....On 16.07.2010, I received a call from Naresh Gupta at around 03:30 AM to 04:00 AM regarding the visit of police official of PS Jahangirpuri. It is correct that at that time I was using mobile no. 9811039125. Even today, I AM using the same mobile number. It is correct that mobile no. of Naresh Gupta is 9899112575 and he was using the same mobile no. on 16.07.2010 also. It is correct that I know Sh. Muktesh Chandra, IPS who on 16.07.2010 was posted as Joint C.P., Goa. I do not recollect if the mobile no. of Muktesh Chandra was 9586333377. (Vol. I had made a call to him at that time)....."

Q. I put to you that you had made a call to Muktesh Chandra from your mobile to his mobile no. 9586333377 at 04:54 AM and 06:42 AM on 16.07.2010 ?

Ans. I had called him but I cannot say the exact time. At that time, I did not know ACP Jai Bhagwan. I do not know if ACP Jai Bhagwan at the instance of Sh. Muktesh Chandra had directed S.B. Yadav

to return back without arresting Naresh Gupta. It is correct that Sh. Naresh Gutpa was not arrested at that time or on that day. (Vol. SHO had left Sh. Dilip Chauhan at the house of Sh. Naresh Gupta). Sh. Dilip Chauhan had also not arrested Naresh Gupta on that day.

Q. On that day Sh. Muktesh Chandra called after the police team returned back and informed you that your work has been got done ?

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Ans. When I called Sh. Muktesh Chandra, he was sleeping and his wife had picked up the call, thereafter when Sh. Muktesh Chandra got up, he had called back. He had not given any such information that he had got the work done. I had enquired from him as to what does statement under 164 means."

".....I had got it recorded in my statements Ex.PW25/DC, Ex.PW25/DD, Ex.PW25/DE, Ex.PW25/DF, Ex.PW25/DG that SHO before leaving told us that the girl "R" was within their influence and the matter could be settled by giving money (le deke sulta lenge). Confronted with statement Ex.PW25/DC wherein it is not so recorded in the same manner though it is recorded that "to unhone kaha ki ladki ko paise dekar maamla sulta lo aur IO, Dilip Chauhan se baat karne ki salah dekar SHO sahab chale gaye..... to usne (Dilip Singh Chauhan) kaha (gadi mein) ki ladki R uske kaabu me hai aur jaisa chahenge waisa bayan de degi "

152. The above testimony of PW25 clearly establishes that he had handed over Rs.20,000/□to accused no.1 in his car while on the way to PS. The accused no.2 had told the complainant that matter could be settled in the presence of PW25 Ratan Lal and that the complainant should act as per the directions of accused no.1.

153. As far as minor discrepancies in the testimony of PW□23 and PW□25 are concerned, in case Bharwada Bhoginbhai Hirjibhai Vs State of Gujarat, AIR 1983 SC 753, Hon'ble Supreme Court has observed :

"We do not consider it appropriate or permissible to enter upon a reappraisal or re□ appreciation of the evidence in the context of the minor discrepancies painstakingly highlighted by learned Counsel for the appellant. Overmuch importance cannot be attached to minor discrepancies. The reasons are obvious :

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(i) By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen.

(ii) Ordinarily it so happens that a witness is overtaken by events. The witness could not have anticipated the occurrence which so often has an element of surprises.

The (pic) mental faculties therefore cannot be expected to be attuned to absorb the details.

(iii) The powers of observation differ from person to person. What one may notice, another may not. An object or movement might emboss its image on one persons mind, whereas it might go unnoticed on the part of another.

(iv) By and large people cannot accurately recall a conversation and reproduce the very words used by them or heard by them. They can only recall the main purport of the conversation. It is unrealistic to expect a witness to be a human tape recorder.

(v) In regard to exact time of an incident, or the time duration of an occurrence, usually, people make their estimates by guesswork on the spur of the moment at the time of interrogation. And one cannot expect people to make very precise or reliable estimates in such matters. Again, it depends on the time sense of individuals which varies from person to person.

(vi) Ordinarily a witness cannot be expected to recall accurately the sequence of events which takes place in rapid succession or in a short time span. A witness is liable to get confused, or mixed up when interrogated later on.

(vii) A witness, though wholly truthful, is liable to be overawed by the court atmosphere and the piercing cross examination made by counsel and out of nervousness mix up facts, get confused regarding sequence of events, or fill up details from imagination on the spur of the moment. The subconscious mind of the witness sometimes so operates on account of the fear of looking foolish or being disbelieved though the witness is giving a truthful and honest account of the occurrence witnessed by him Perhaps it is a sort of a psychological defence mechanism activated on the spur of the moment."

In Appabhai Vs State of Gujarat, AIR 1988 SC 696, it has been held that the court while appreciating the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. evidence must not attach undue importance to minor discrepancies. The discrepancies which do not shake the basic version of the prosecution case may be discarded. In Rammi Vs State of M.P. with Bhura Vs State of M.P. (1999) 8 SCC 649, Hon'ble Supreme Court observed :

"When an eye witness is examined at length it is quite possible for him to make some discrepancies. No true witness can possibly escape from making some discrepant details. Perhaps an untrue witness who is well tutored can successfully make his testimony totally non-discrepant. But courts should bear in mind that it is only when discrepancies in the evidence of a witness are so incompatible with the credibility of his version that the court is justified in jettisoning his evidence."

154. A reasonable human being can only recall the main purport of a conversation and it is not expected of him to reproduce the exact words stated during any conversation. Also, it is a settled law that the court should not attach undue importance to the discrepancies which do not shake the basic version of the prosecution case. On perusal of the testimony of PW 25 regarding the events which

occurred in the morning of 16.07.2010, it is proved that accused no. 1 as well as SHO told them that the matter can be sorted out by money and they had also stated that the girl "R" was within their influence. He has also clearly stated that accused Dilip Singh Chauhan had asked as to whether he had brought any money while they were in the way to PS and that he had handed over Rs.20,000/□ to him on his asking. He further stated that in the PS, accused Dilip Singh Chauhan spoke to him as well as to the parents of the girl "R" 2□3 times thereafter, the matter was settled at Rs.8 lakhs. The overall testimony of PW□25 inspires CC No.10/2019 State Vs. Dilip Singh Chauhan etc. confidence and PW□25 appears to be a trustworthy witness. It is a settled law that testimony of even a single witness is sufficient to convict an accused, if inspires confidence. The testimony of PW□25 is consistent on material aspects. Undue importance cannot be attached to the minor discrepancies, if any. PW□25 clearly stated that accused no. 1 was alone in the room when he accepted Rs.2.5 lakhs and after handing over of the money, he alongwith accused no. 1 went to the room of accused no. 2 and accused no. 2 told him not to worry. In fact the very instance when the first impression has been given to the complainant that the matter can be settled by giving money is when the SHO had stated so to the complainant and PW□25 at the residence of the complainant which reveals that the SHO and accused no. 1 were in conspiracy with each other with a common object of extorting money from the complainant by using the statement of girl "R" as a tool. It has thus, been proved that the accused Dilip Singh Chauhan was handling the FIR No.540/09 as IO and had demanded and accepted bribe of Rs.20,000/□and Rs.2.5 Lakhs as pecuniary advantage for themselves by corrupt or illegal means and by abusing their position as public servants in collusion with the co□accused S.B. Yadav from PW□25 Ratan Lal to exonerate complainant Naresh Gupta for the rape case.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. IX(ii). REPLACEMENT OF FIVE TYRES ON 16.07.2010 :

155. One of the charge framed against the accused persons is that they have got replaced the five new tyres of a Santro Car of the police officials. It is argued that the complainant had stated earlier that he had no grievance against the ACP concerned and ACP concerned had helped him but thereafter he has stated that the tyres of the Santro car were changed on the asking of accused no.1 and therefore, the complainant as well as PW25 have improved upon their versions. The registered owner of the car Sh. Ved Prakash is a witness as per the list of witness but could not be examined as he was reported to have expired. The relevant evidence on record is reproduced hereinbelow.

156. Testimony of PW□13 Satya Prakash, LDC, Transport Department during his examination□n□Chief dated 28.01.2015:

"..... Today I have brought the record pertaining to Car No. DL□4RCAG□1568. As per record, this car is registered in the name of Ved Prakash S/o Sh. Mr. Karan Singh R/o House No.44, Shahi Pur Village, Shalimar Bagh, Delhi....."

157. Testimony of PW□17 Abraham George during his examination□n□Chief dated 19.09.2018:

".....In the year 2012, I was Head of Technical Services, MRF Tyres Ltd.. I got a letter from investigation agency in the present FIR seeking clarifications on four car tyres wherein the question asked (1) date of manufacturing of these tyres, (2) date of supply and name of the dealer to whom these tyres were sold, (3) retail price of the tyres prevailing that time."

".....I replied the above said queries of the agency vide my letter dated 23.04.2012 already Ex.PW17/B bearing my signature at point A wherein I had specifically mentioned that all the MRF tyres have 11 digit numbers wherein out of the four tyres only one tyre had 11 digit number and other three tyres were not having the correct digits. For the one correct tyre, the date of manufacturing was second week of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. September 2010....."

158. Testimony of PW17 Abraham George during his cross-examination on behalf of accused S.B. Yadav dated 19.09.2018:

".....The numbers which were sent by the IO of the three tyres were incorrect numbers. It is correct that on the basis of the numbers, I can say that said three tyres were not of MRF....."

159. Testimony of PW18 Manish Mehra during his examination-in-chief dated 04.05.2018:

"..... At about 11:00 AM, one Bal Bahadur came to my shop in a Santro Car and he asked me to replace the all five tyres of the said Santro Car. I replaced all the old five tyres with the new tyres of Bridgestone Tyre Company. Approximately, Rs.14,000/- was the bill amount for replacing the tyres and he paid the said amount. I had issued a bill regarding replacement of the tyres. I do not remember the registration number of the said Santro Car. At this stage, on seeing photocopy of document from judicial file which is already marked as Mark PW18/A, witness submits that Bal Bahadur came to his shop on 16.07.2010"

".....On seeing the bill, witness submits that the exact amount of bill Mark PW18/A is Rs.14,250/-....."

160. Testimony of PW21 Neeraj Bhardwaj during his examination-in-chief dated 31.07.2015:

".....I am the proprietor of M/s Ambey Tyres situated at Khasra No.21/21, Main Road, Burari, opposite Transport Authority, Delhi-110044. The receipt Ex.PW21/A was issued by me for the sale of five tyres, the receipts bears my signature at point A. The tyres were purchases by one Ved Prakash whose name is written on the receipt....."

161. Testimony of PW21 Neeraj Bhardwaj during his examination-in-chief dated 12.07.2018:

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. ".....I am dealing in tyres. On seeing one document i.e. Bill dated 14.07.2010, witness submits that he had sold five tyres vide this bill on 14.07.2010 to the person who had got his name mentioned as Ved Prakash. The bill is already Ex.PW21/A."

".....Whenever we purchase tyres from the company/dealer, the details of the tyres i.e. the number or the year of manufacture is not mentioned on the bill. Only the quantity of tyres and size of the tyres were mentioned on the purchase bill. I cannot tell as to for which vehicle aforesaid tyres were purchased. It is wrong to suggest that I have issued aforesaid bill in connivance with some police officials after registration of the present FIR or no such kind of tyres were sold by me on 14.07.2010."

162. Testimony of PW22 Bal Bahadur during his cross examination on behalf of accused Dilip Singh Chauhan dated 21.08.2015:

"..... It is incorrect to suggest that I was never employee of Naresh Gupta....."

"..... It is correct that the word 'Santro Car of one Saheb' is not mentioned in Ex.PW22/DB at point A to A....."

163. Testimony of PW22 Bal Bahadur during his cross examination on behalf of accused Dilip Singh Chauhan dated 24.08.2015:

".....I had stated to the police official that 'when I was leaving, the sahab told me again, 'dekho achi company key tyres dalwana anyatha aapkey sahab (Naresh Gupta) ko murga bana dunga. Confronted with statement Ex.PW22/DB, where it is not so record....."

".....The bill was prepared approximately of Rs.14,000/- after giving Rs.12,000/- by me. The remaining payment of bill was paid by me on the same day....."

".....It is incorrect to suggest that I had not gone with accused Dilip to Roop Nagar and from Roop Nagar to M/s CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Bridgestone Tyres to get the tyres of Santro Car changed....."

164. Testimony of PW22 Bal Bahadur during his examination in chief dated 10.07.2018:

".....I am a driver....."

".....On 16.07.10, Naresh Gupta had asked me on telephone to reach at his house at Ashok Vihar, Delhi. I reached the house of Naresh Gupta at around 08/08:30 AM. He asked me to reach at PS Jahangirpuri and to meet Sh. Ratan Lal. After about 15-20 minutes, I reached at PS Jahangirpuri and to met Sh. Ratan Lal. Sh. Ratan Lal gave me Rs.12,000/- and asked me to get replace the tyre of one car. From PS

Jahangirpuri, I alongwith one person namely Dilip Singh (present in the court, same is correctly identified by the witness), proceeded on his bike to Roop Nagar at the house of ACP Jai Bhagwan which was situated at the first floor....."

".....Dilip Singh pressed the door bell, thereafter, one person came out who was having defect in his one ear and gave car keys and asked Dilip Chauhan about me whereupon Dilip Chauhan replied that "yeh mera chela hai". Dilip Chauhan gave me key, there was Santro Car of white colour which was parked on the roadside, outside the house. The number of the car was 1568. I do not remember the complete number. Thereafter, Dilip Singh on his bike and myself in the said car proceeded to Ashok Vihar to get replace the tyres of the car and we reached at the Shop of one person namely Manish bearing name and style of the shop as Bridgestone. The shop of Manish was not opened till that time. Dilip Singh asked me to get the tyres of the car replaced and also directed me to get prepare the bill of the payment without mentioning the registration number of Santro Car on the bill and he himself proceeded from there. After sometime, Shop of Manish opened. I got the five tyres of the Santro Car replaced. I got the bill prepared having total amount approximately Rs.14,000/□ I paid Rs.12,000/□ The owner of the shop known to me through my employer, therefore, he allowed me to pay remaining amount later on. After sometime, Dilip Singh came back there and he CC No.10/2019 State Vs. Dilip Singh Chauhan etc. obtained bill from me. Thereafter, Dilip Singh on his bike and me in the Santro Car proceeded from there and reached at the house of ACP Jai Bhagwan at Roop Nagar. I parked the car there. Dilip Singh left me on his bike at Ashok Vihar. As far as, I remember I paid rest of the amount I.e. approximately Rs.2,000/□to Sh. Manish, owner of the tyre shop, on the same day or next day."

".....Dilip Singh had also told me "mere sahab bahut kadak hai, acchi company k tyre dilwana, nahi to tere babujiko murga bana dunga"....."

165. Testimony of PW□2 Bal Bahadur during his cross□examination dated 20.08.2018:

".....Q. On 16th July 2010 when did your duty start and can you tell the places you had visited on that day ? Ans. On that day at around 08:30 AM, my duty started. I first went to Ashok Vihar from there I went to PS Jahangirpuri where I met Sh. Ratan Lal and then I went to Shakti Nagar where I went on first floor of a house. From Shakti Nagar I took the car and went to Ashok Vihar, the shop was not open yet. I waited there and got the tyre replaced after the shop was opened. Then I went to Shakti Nagar alongwith the vehicle. I gave the car keys and I was dropped at Ashok Vihar by Dilip Chauhan at around 01:00 PM. Thereafter, I again went to shop to make the remaining payment at around 04:00 PM but I do not remember the exact time. Then I again returned to Ashok Vihar. Then I went to my residence at around 08:30 PM or 09:00 PM."

".....It is correct to suggest that I had not accompanied Ratan Lal to Roop Nagar on 16.07.2010. (vol. I had gone alongwith the accused Dilip Chauhan)."

"..... I do not remember whether I had told the police specifically about the fact that "mere sahab bahut kadak hai, achi company ke tyre dalwana nahi to tere babuji ko murga bana dunga." Confronted with the statement already Ex.PW22/DB wherein it is not so recorded. I had not gone to any photocopier shop on 16.07.2010. It is wrong to suggest that Dilip Kumar had not said that CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "mere sahab bahut kadak hai, achi company ke tyre dalwana nahi to tere babuji ko murga bana dunga"....."

166. Testimony of PW 23 Naresh Gupta during his examination in chief dated 03.09.2015:

"..... On 16.07.2010 at about 08:00 to 08:30 AM, I received a call from Ratan Lal enquiries as to whether my driver Bal Bahadur had reached my house. Ratan Lal told to call Bal Bahadur quickly as tyres of the car of ACP Jai Bhagwan had to be changed and ACP Jai Bhagwan needs a driver also. I was also told that the car had to be picked up from the house ACP Jai Bhagwan at Roop Nagar. I called my driver Bal Bahadur and sent him to PS Jahangirpuri to meet Ratan Lal. Ratan Lal gave Rs.12,000/- to Bal Bahadur and told him to go to house of ACP Jai Bhagwan at Roop Nagar alongwith Dilip Chauhan on his motorcycle and get the tyres of his car change. Bal Bahadur went to the house of ACP Jai Bhagwan on his motorcycle and get the tyres of his car change. Bal Bahadur went to the house of ACP Jai Bhagwan on his motorcycle of Dilip Chauhan with him and got the 5 tyres make "Bridgestone" of the Santro Car of ACP Jai Bhagwan changed. The shop from which the tyres were got changed was at Ashok Vihar by the name of Bridgestone. The total cost of 5 tyres was Rs.14,250/- approximately. Bal Bahadur paid Rs.12,000/- to the shopkeeper and after taking the balance amount from me, made the balance payment to the above shopkeeper. Thereafter, Bal Bahadur left the car at the house of ACP Jai Bhagwan."

167. Testimony of PW 25 Ratan Lal during his chief examination dated 16.01.2017:

".....After reaching the PS Jahangirpuri, we went to room of the accused which was on the first floor.....Accused told me he had to meet out a fatiq of senior officer whose car tyres had to be replaced. I then made a call to Naresh Gupta and called his driver namely Bahadur to PS Jahangirpuri. I told Bahadur to CC No.10/2019 State Vs. Dilip Singh Chauhan etc. accompany accused to the house of the officer and also gave him Rs.12,000/- for replacing the tyres of the car. Accused then told me to go home and took Bahadur with him..... Naresh told me that five tyres of a car had been got replaced from a shop namely Bridgestone Tyres Ashok Vihar and Naresh Gupta had give the balance amount of about Rs.2,500/-....."

168. Testimony of PW 25 Ratan Lal during his cross examination dated 22.02.2017:

".....Thereafter, when I went to PS again, I paid Rs. 2,50,000/- to the accused and during the period when I was in PS, accused received a call from someone and accused told me that he had to met out a 'Fatig'. I had stated in my statement u/s 161 Cr.P.C. that I told Sh. Naresh Gupta to send a driver....."

169. Testimony of PW25 Ratan Lal during his cross examination dated 03.07.2019:

"... At this stage, the accused Dilip Chauh and received a phone call and he went to attend the call and thereafter returned and told me that as to whether I was having a driver. The accused further told me that 'ek senior afsar ki fatigue aa gayi hai unki gadi me tyre dalwane hain'. I made a phone call to Sh. Naresh Gupta and called the driver Bahadur of Sh. Naresh Gupta. I told the driver Bahadur to accompany accused Dilip Chauhan and further gave him Rs.12,000/- to get the tyre replaced...."

170. The testimony of PW23 and PW25 is corroborated by the testimony of PW22 Bal Bahadur and PW18 Manish Mehra. Though, PW21 Neeraj Bhardwaj has stated that he had issued the bill Ex.PW21/A dated 14.07.2010 regarding change of tyres but the number of tyres mentioned on the bill were verified by the IO and PW17 has clearly deposed that number of three tyres were not CC No.10/2019 State Vs. Dilip Singh Chauhan etc. correct and one of the tyre was manufactured in September 2010. Thus, the said tyre could not have been affixed/replaced in the car on 14.07.2010. Thus, the bill EX.PW21/A dated 14.07.2010 is not genuine. On the other hand, PW22 Bal Bahadur and PW18 Manish Mehra have no motive for falsely deposing against the accused no. 1. Their testimony inspires confidence and appears trustworthy. However, regarding replacement of five tyres, there is nothing on record to suggest that accused no.2 had any role in the same.

171. It is accused no.1 who had asked Ratan Lal to get the tyres replaced. Accused no.1 had accompanied the driver of complainant, PW22 Bal Bahadur for taking the car from the residence of ACP Jai Bhagwan. It has not been proved that accused no.2 even had any knowledge regarding the replacement of tyres, of the Santro car. Replacement of Santro car's tyres was also not part of the settled amount of Rs.8 lakhs. Also, accused no. 1 after hearing a phone call had told PW25, that "ek afsar ki fatik aa gayi hai", and that whether he had any driver. Thus, SHO accused no. 2 is nowhere in picture on this aspect.

172. The common object in the present case of the accused persons was to extort money from the complainant by assuring him that he could be given clean chit in the gang rape case and for this common object, the accused persons had reached the house of the complainant on the intervening night of 15/16.07.2010 with a threat CC No.10/2019 State Vs. Dilip Singh Chauhan etc. of arrest. Thereafter, the SHO had stated that the complainant should speak to the IO regarding the money to be paid and the complainant had stated that his brother in law Ratan Lal would represent him in this respect. There is nothing to suggest that replacement of five tyres of Santro car was also part of the deal and thus, it has not been proved that accused no. 2 SHO S.B. Yadav has got replaced the five new tyres of Santro car of a police officer by misusing his official position as a public servant. However, this charge of demanding and getting replaced five tyres of the Santro car by misusing official position is proved against no. 1 Dilip Singh Chauhan.

IX(iii). DEMAND & ACCEPTANCE OF RUPEES THREE LAKHS AFTER TWO DAYS OF 16.07.2010
:

173. The third allegation against the accused persons is that they had demanded and accepted Rs.3 Lakhs after 2-3 days of 16.07.2010, to be paid to the mother of girl "R", towards settlement of rape case.

174. Relevant portion of testimony of PW-23 Naresh Gupta during his examination-in-chief dated 22.09.2015:

"..... Thereafter, HC Dilip Singh Chauhan asked Ratan Lal to meet him in the PS on 18-19 July 2010. When Ratan Lal went to PS Jahangir Puri he found that prosecutrix "R" (name omitted), her mother Smt. Ansaro Khatoon and her father were present there. HC Dilip Singh Chauhan told Ratan Lal that the prosecutrix and her parents were demanding Rs.3 Lacs to speak the truth.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Thereafter, Ratan Lal came to me and took Rs.3 Lacs from me and went to PS Jahangirpuri Puri where Dilip Singh Chauhan took Rs.3 Lacs from Ratan Lal in the presence of SHO S.B. Yadav and the mother of the prosecutrix....."

175. Testimony of PW-23 Naresh Gupta during his cross-examination dated 17.11.2016:

".....After about 3-4 days from 16.07.2010, I gave Rs.3,00,000/- to Sh. Ratan Lal at my house in the afternoon....."

176. Testimony of PW-23 Naresh Gupta during his examination-in-chief dated 17.04.2018:

".....After one or two days i.e. on 17.07.2010 or 18.07.2010, my Sadu Ratan Lal had received a telephone call from Dilip Chauhan who told that parents of victim are demanding Rs.3 lacs. On 18-19.7.2010, my Sadu Ratan Lal collected Rs.3 lacs from me at my residence and thereafter he reached at PS Jahangirpuri where he saw that victim R alongwith her parents was present. The amount of Rs.3 lacs was given by Ratan Lal to the accused Dilip Chauhan in the presence of ACP Jai Bhagwan, SHO S.B. Yadav, Victim and her parents (objected to being hear say)"

177. Testimony of PW-23 Naresh Gupta during his cross-examination dated 11.12.2018:

"..... It is wrong to suggest that I made the false statement that "HC Dilip Singh Chauhan told Ratan Lal that the prosecutrix and her parents were demanding Rs. 3 lakhs to speak the truth". It is wrong to suggest that I made the false statement that "thereafter Ratan Lal came to me and took Rs. 3 lakh from me and went to PS Jahangirpuri where Dilip Singh Chauhan took Rs.3 lakhs from Ratan Lal in the presence of SHO S. B. Yadav and the mother of prosecutrix"....."

CC No.10/2019 State Vs. Dilip Singh Chauhan etc.

178. The testimony of PW□23 in respect of payment of Rs.3 Lakhs is also of hearsay nature. However, the only fact proved through the testimony of Naresh Gupta is that he had handed over Rs.3 Lakhs to his brother in law Ratan Lal to be handed over further to the mother of girl "R" through accused persons. As far as payment of amount of Rs.3 Lakhs is concerned, as the same was handed over by PW□25 Ratan Lal, and in this respect testimony of PW□25 is relevant. The relevant portion of PW□25 Ratan Lal during his chief□examination dated 16.07.2017 is reproduced hereinbelow :

".....After about 2□3 days again accused made a call on a mobile and informed me that documents had been prepared and that I should reach the PS and see the documents..... I was told to bring Rs.3 lakhs to be given to girl "R" (name omitted). I then went to Ashok Vihar and told Naresh Gupta about the above facts and also the demand of further amount of Rs.3 lakhs to be paid to girl "R" (name omitted). I then took Rs. 3 lakhs from the house of Naresh Gupta and returned to PS Jahangirpuri. When I returned with the money I saw the parents of girl "R"

(name omitted) and accused present in the room of accused in PS. Accused then went to room of SHO and after he returned he told us to accompany him to the room of SHO S.B. Yadav, in the presence of SHO, Parents of girl "R" (name omitted) I gave Rs. 3 lakhs (Three Lakhs) to the accused Dilip Chauhan...."

179. Testimony of PW□25 Ratan Lal during his cross□examination dated 13.04.2017:

"....Accused called me again at PS about 2□3 days after 16.07.2010. I first went to the PS and then went to the house of Naresh Gupta and took Rs.3,00,000/□and again went to the PS. The money was given in the morning time. However, the specific time I do not remember..... Naresh Gupta had given me Rs.3,00,000/□...At that time when I gave Rs.3,00,000/□to accused, SHO and ACP were also CC No.10/2019 State Vs. Dilip Singh Chauhan etc. present....."

180. Testimony of PW□25 Ratan Lal during his cross□examination dated 03.07.2019:

".... After 2□3 days, accused Dilip Chauhan made a phone call and called me to the PS Jahangirpuri and further told that he had prepared the documents and the statement of girl 'R' would be recorded again under 164. He told me to bring Rs.3 lakhs which was to be given to the girl 'R' and only thereafter she would change her statement. I then went to the house of Sh. Naresh Gupta and told him about the above facts. Sh. Naresh Gupta gave an amount of Rs.3 lakhs to me and I returned with the said amount to the PS Jahangirpuri and went to the room of accused Dilip Chauhan. The mother of the girl 'R' as well as the girl 'R' were present in the room of accused Dilip Chauhan..... I told accused Dilip Chauhan that I had brought the amount. Accused Dilip Chauhan took me to the room of ACP where SHO S.B. Yadav was also

present there and ACP Jai Bhagwan was also present there. In the presence of SHO and ACP, I handed over Rs.3 lakhs to the accused Dilip Chauhan. Accused Dilip Chauhan had given Rs.1 lakh to the mother of girl 'R' in my presence....."

181. Testimony of PW 25 Ratan Lal during his cross examination dated 21.10.2019:

".....Q. I put it to you that you had made call from your mobile no. 9811039125 to ACP Jai Bhagwan on his mobile no. 9868107098 at 02:22 PM on 19.07.2010, 10:46 AM on 20.07.2010 and 07:03 PM on 22.07.2010. What do you have to say ?

Ans. I might have called him. (vol. As I was to deliver Rs.3,00,000/ on 19.07.2010 to the accused Dilip Singh Chauhan and in the presence of SHO S.B. Yadav and ACP Jai Bhagwan, Rs.50,000/ for registration of DD entry on 22.07.2010. I do not remember why I had called him on 20.07.2010).

It is wrong to suggest that no amount of Rs.3,00,000/ was ever delivered by me to accuse Dilip Singh Chauhan in the presence of SHO S.B. Yadav or ACP Jai Bhagwan or CC No.10/2019 State Vs. Dilip Singh Chauhan etc."

182. Testimony of PW 25 Ratan Lal during his cross examination dated 02.11.2019:

".....It is correct that I had met Smt. Ansaro Khatoon on 19.07.2010 in the police station, vol. I had met when she was given Rs.1 lakh by Dilip Singh Chauhan out of Rs.3 lakhs which was handed over by us to Dilip Singh Chauhan....."

183. The above testimony clearly establishes that Rs.3 Lakhs was handed over by PW 25 to the accused no. 1 Dilip Singh Chauhan in the presence of accused no. 2 S.B. Yadav for delivering the same to the mother of girl "R" and Rs.1 Lakh was handed over to the mother of girl "R" out of the said amount of Rs.3 lakhs. The only discrepancy occurs is as to whether the concerned ACP was also present at that time or not when Rs.3 Lakh were handed over by PW 25 and accepted by accused no. 1. However, this minor discrepancy is insignificant.

184. In case State of Maharashtra Vs Narsingrao Gangaram Pimple, AIR 1984 SC 63, decided on 27.10.1984 by Hon'ble Supreme Court, it has been held that :

"It seems that the approach made by the High Court towards the prosecution has not been independent but one with a tainted eye and an innate prejudice. In fact, the High Court appears to have been so much prejudiced against the prosecution that it magnified every minor detail or omission to falsify or throw even a shadow of doubt on the prosecution evidence. This is the very antithesis of a correct judicial approach to the evidence of witnesses in a trap case. Indeed, if such a harsh touchstone is prescribed to prove a case it will be impossible for the prosecution to establish any case at CC No.10/2019 State Vs. Dilip Singh Chauhan etc. all."

185. Thus, it is settled law that the discrepancies in the testimony of witnesses that do not shake the basis of the prosecution case and which are not totally incompatible with the credibility of the prosecution version are to be discarded.

186. It has thus, been duly proved by the prosecution that accused Dilip Singh Chauhan had called PW□25 Ratan Lal and demanded an amount of Rs.3 Lakhs around 18.07.2010 or 19.07.2010. He had accepted an amount of Rs.3 lakhs in the presence of accused no. 2 and handed over Rs.1 Lakh to the mother of girl "R".

IX(iv). DEMAND & ACCEPTANCE OF WHEAT, GRAM AND RICE ON 25/27.07.2010 :

187. As far as the charge regarding demand and acceptance of wheat, grams and rice etc. from Ratan Lal by the accused no. 1 is concerned, it is argued that PW□25 during his cross□examination had deposed that he does not remember whether the house of the accused was in Model Town, Phase□ or Phase□I. He also did not remember the name of the shop from where he had purchased wheat, grams and rice etc. Neither he could produce any receipt of the amount paid for the wheat, gram and rice etc. Again PW□26 who had allegedly sold wheat and grams to PW□25 to be delivered to the house of accused no. 1 made contradictory statement when earlier he deposed that he had not accompanied the driver of the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. tempo to the house of the accused but later on when he had been examined on 12.07.2017, he deposed that after reaching Model Town, tempo driver called him telephonically that the flat of the accused was on top floor and labour was not ready to take the foodgrains to top floor and thereafter, he reached to the house of the accused and then with the help of the labour, the goods were sent to the house of the accused no. 1 to the top floor. Also PW□26 did not remember whether the house of the accused falls in Model Town□ or Model Town□I. It is further argued that the oral evidence of PW□25 and PW□26 are not supported by any documentary evidence neither there is any bill or receipt regarding purchase of foodgrains nor the driver of the tempo or number of the tempo etc. had been given by them to the police and these facts clearly established that no foodgrains were sent to the house of the accused no. 1 and it is a manipulated story.

188. Relevant portion of testimony of PW□23 Naresh Gupta during his cross□examination dated 17.11.2016:

".....Between 25□27.07.2010, wheat, gram and rice of the value of Rs.10,000/□ Rs.12,000/□was delivered at the house of Dilip Singh Chauhan as per his demand"

"..... I do not remember whether I had told the enquiry officer regarding the wheat and gram given by Sh. Ratan Lal to the accused Dilip Singh at his house. I do not remember the exact date when the delivery of the wheat and gram was made to the accused Dilip Singh. It is incorrect to suggest that no wheat and gram was given to accused by Sh. Ratan Lal....."

CC No.10/2019 State Vs. Dilip Singh Chauhan etc.

189. Relevant portion of testimony of PW-23 Naresh Gupta during his examination in chief dated 17.04.2018:

"..... After 2-3 days, IO Dilip Chauhan told my Sadu Ratanlal telephonically and asked for wheat, gram and rice (gehu, chana, chawal), which my Sadu purchased approximately for an amount of Rs.12,000/- and delivered at the residence of accused Dilip Chauhan (objected to being hear say). My Sadu had sent some labour as he was told that the articles were to be delivered at 3rd floor....."

190. The testimony of the complainant in respect of delivering of wheat, gram and rice etc. is again of the hearsay nature and cannot be relied upon. He is not an eye witness of the transaction i.e. demand and acceptance of the grains. In this respect also, PW-25 Ratan Lal and PW-26 Virender Kumar are the relevant witnesses. Relevant portion of testimony of PW-25 Ratan Lal during his chief examination dated 16.01.2017 is reproduced hereinbelow :

"..... I had received a call from accused around 25.07.2010 to send rice, wheat and gram to his house as I am doing the business of food grain in Naya Bazar under the name and style of M/s. Navetia Trading Company. I sent rice, wheat and gram to the house of accused at Police Colony Model Town, which cost approximately Rs.12,500/- the said articles were sent in a tempo...."

191. Testimony of PW-25 Ratan Lal during his cross examination dated 22.08.2019:

"..... On 25.07.2010, Dilip Chauhan called me telephonically asked me to send some foodgrains at his house situated in Model Town. I used to deal in rice. I asked on Virender, Broker in the market to arrange remaining articles i.e. wheat and pulses. I gave 2 bags of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. rice to Virender to send the same to house of Dilip Singh Chauhan at Model Town. On my asking, Virender arranged around 8 bags of wheat, 20 to 30 Kg of pulses and he sent all the articles alongwith the two bags of rice through a tempo to the Police Colony, Model Town. The approximate value of the goods were Rs.10,000/- to Rs.12,000/- The rice were from my shop and I paid the price of the remaining goods to Virender Goel....."

192. Testimony of PW-26 Virender Kumar during his chief examination dated 03.05.2017 :

"..... I was running a business of whole sale food grains at Naya Bazar, Delhi - 06. Mr. Ratan Lal was also running business of rice trading in the Naya Bazar, Delhi"

06. Around 25-27 July, 2010 Sh. Ratan told me to send bags of rice, gram, wheat to the house of accused Dilip Kumar. I had sent 8 bags of wheat, 20-25 KG grams, I also got collected two bags of rice from the shop of Sh. Ratan Lal and than all the above articles were loaded in a Tempo and sent to Police Colony, Model Town. The bags of rice, wheat and gram were approximately of Rs.10,000-12,000/-..."

193. Relevant portion of testimony of PW-26 Virender Kumar during his cross-examination dated 03.05.2017 :

"...I had paid cash for purchasing the above food grains. Initially, I had paid for the food grains but on the same day I had taken the money from Sh. Ratan Lal around 27.07.2010....."

194. Relevant portion of testimony of PW-26 Virender Kumar during his chief-examination dated 27.07.2017 :

".... In the month of July 2010 when I sent the bags of rice, gram, wheat to the house of accused Dilip through a tempo, after reaching at Police colony Model Town, the tempo driver called me through phone and he told me that since the flat of the accused was on top floor the labour CC No.10/2019 State Vs. Dilip Singh Chauhan etc. was not ready to take the goods to the top floor. I then reached the place of delivery where the tempo was standing i.e. police colony Model Town and with the help of labour the goods were sent to the house of accused at the top floor."

195. Relevant portion of testimony of PW-26 Virender Kumar during his cross-examination dated 27.07.2017 :

"..... I do not know on which floor the goods were delivered to accused but it was top floor.....It is incorrect to suggest that I did not go to the police colony after receiving call from the driver. It is incorrect to suggest that I did not send any food grains to the house of accused or that I am deposing falsely....."

196. Relevant portion of testimony of PW-26 Virender Kumar during his cross-examination dated 22.08.2019 :

"....The amount of wheat and pulses was paid to me by Sh. Ratan Lal and it was approximately Rs.10,000/- to Rs.12,000/- but I do not remember the exact amount....."

197. The testimony of PW-25 in respect of deliver of foodgrains is corroborated by the testimony of PW-26. PW-26 had no motive to falsely implicate the accused no.1. As far as the contradiction in the testimony of PW-26 regarding his visiting the residence of accused no. 1 at the time of delivery of foodgrains is concerned, on 03.05.2017 PW-26 has only deposed that he had not accompanied the driver of the tempo to deliver the foodgrains. He has nowhere stated that he had not gone to the house of the accused no. 1 at all. PW-26 was first examined on 03.05.2017. Thereafter, an application under section 311 Cr.P.C. was moved to recall PW-26 as it is stated that PW-26 could not be examined on certain material CC No.10/2019 State Vs. Dilip Singh Chauhan etc. aspects relating to his supplementary statement dated 18.05.2012. This application was allowed vide order dated 12.07.2017. The witness was then again examined on 27.07.2017 and in the statement of PW-26 recorded on 27.07.2017, he had stated that after reaching of the tempo at the house of accused

no. 1, tempo driver had called him on his phone and told that the house of the accused no. 1 was at the top floor and the labour was not ready to take the food articles at the top floor and thereafter, PW□26 went to the house of the accused and goods were sent at the top floor of the house of the accused. Thus, this arguments that initially PW□26 had deposed that he had not visited the house of the accused and later on changed his version is baseless. PW□26 in his statement recorded on 27.07.2017 has clearly stated that he had gone to the house of the accused after the tempo driver had called him and told him that labour was not ready to take the goods to the top floor of the house of the accused.

198. As far as bills and receipts regarding purchase of foodgrains is concerned, oral evidence of PW□25 and PW□26 cannot be doubted due to non□production of the bill and receipts. It rather lends credence to their testimony as they have refrained from forging bill and receipts and have truthfully deposed about the facts. However, on perusal of the entire testimony of PW□25 and PW□26 in this respect reveals no role of the accused no. 2 SHO S.B. Yadav as the goods are clearly delivered at the house of accused no.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. 1 and thus, could not have been delivered for the consumption of accused no. 2. The demand and acceptance of foodgrains does not seem to be part of conspiracy to extort money from the complainant by using the girl "R" and her family as a tool.

IX(v). DEMAND & ACCEPTANCE OF Rs.50,000/□SEVERAL TIMES :

199. The case of the prosecution is also that the accused persons had demanded and accepted Rs.50,000/□from the complainant and his brother in law several times for the release of Naresh Gupta after issuance of notice under section 160 Cr.P.C. and for lodging the DD entry regarding receipt of application of girl "R" in which she had stated that Naresh Gupta was like a father figure to her

200. Relevant portion of testimony of PW□23 Naresh Gupta during his examination□ in□chief dated 22.09.2015 :

".....HC Dilip Singh Chauhan had taken Rs.50,000/□to lodge a DD entry regarding the complaint of prosecutrix dated 21.07.2010....."

"..... On 29.07.2010, I received a notice issued by HC Dilip Singh Chauhan vide which I was directed to reach the PS on 02.08.2010, in response to the said notice I visited the PS Jahangirpuri on 02.08.2010. On

02.08.2010, Ratan Lal had paid a sum of Rs.50,000/□to Dilip Singh Chauhan. Thereafter, on 08.08.2010, I again received another notice from HC Dilip Singh Chauhan to appear in the PS on 10.08.2010 and on that day I went to the PS Jahangirpuri where I again paid Rs.50,000/□to Dilip Singh Chauhan and then I was let off....."

201. Relevant portion of testimony of PW-23 Naresh Gupta during his cross-examination dated 17.11.2016 :

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "..... I do not remember the exact date when I gave Rs.50,000/- to accused Dilip Singh, it was given between 16.07.2010 and 10.08.2010. The above said amount was paid to accused Dilip Singh when I was served with a notice U/s 160 Cr.P.C. and accused told me that he would make the endorsement my having joint investigation only if when I give Rs.50,000/- . I had received three notices U/s 160 Cr.P.C. under the signature of accused Dilip Singh. I had gone to PS on all the occasions when I was called vide notices U/s 160 Cr.P.C. It is incorrect to suggest that I had not gone to PS Jahangirpuri pursuant to the notices issued to me....."

"..... Sh. Ratan Lal had given Rs.50,000/- to accused Dilip Singh for lodging a DD entry no. 43/B Mark PW-23/DA regarding my false implication in the case FIR 540/19. Sh. Ratan Lal had not given the said amount in my presence....."

202. Relevant portion of testimony of PW-23 Naresh Gupta during his examination in-chief dated 17.04.2018 :

"..... On 29.07.2010, a notice U/s 160 Cr.P.C. was again received at my residence bearing the signature of Dilip Chauhan and I was asked to report at the PS Jahangirpuri on 02.08.2010 at 10:30 AM. I went to PS Jahangirpuri on 02.08.2010 alongwith my Sadu Ratanlal and in my presence Ratanlal gave the amount of Rs.50,000/- to the IO Dilip Chauhan as a part of the demanded amount of Rs.8 Lacs. On 08.08.2010, a notice U/s 160 Cr.P.C. was again received at my residence bearing the signature of Dilip Chauhan and I was asked to report at the PS Jahangirpuri on 10.08.2010 at 10:30 AM. I went to PS Jahangirpuri on 10.08.2010 alongwith my Sadu Ratanlal....."

"..... I asked IO Dilip Chauhan to make a report regarding my joining the investigation and in the room of SHO S.B. Yadav and in the presence of SHO S.B. Yadav, I gave an amount of Rs.50,000/- to the IO Dilip Chauhan to get a report regarding my joining of investigation. IO Dilip Chauhan thereafter made a report regarding my joining the investigation....."

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203. Relevant portion of testimony of PW-23 Naresh Gupta during his examination in-chief dated 04.05.2018 :

".....On 19.07.2010, I alongwith Ratan Lal had appeared at PS Jahangirpuri in response of notice under section 160 Cr.P.C. issued by accused Dilip Chauhan. On that day, accused Dilip Chauhan had asked Ratan Lal in my presence that SHO S.B.

Yadav had demanded Rs.50,000/- for releasing us after proceedings dated 19.07.2010 as part payment of total demand of Rs.8 Lakhs. SHO S.B. Yadav was not present at that time. In my presence, Ratan Lal had paid Rs.50,000/- to accused Dilip Chauhan. I do not remember as to in whose room, aforesaid Rs.50,000/- were given to accused Dilip Chauhan....."

204. Relevant portion of testimony of PW-25 Ratan Lal during his chief examination dated 16.01.2017 :

"....I was told by accused that they had a application from girl "R" (name omitted) wherein she stated that Naresh Gupta was like her father and the said application would be filed with the charge sheet. Accused then told me that DD entry would be lodged regarding the said application but the DD writer was objecting to the same and for the said purpose a sum of Rs.50,000/- will have to be given to the DD writer. I then gave Rs.50,000/- to accused for lodging of the DD entry...."

"....Notices u/s 160 Cr.P.C. were received by Naresh Gupta from PS Jahangirpuri and I had accompanied Naresh Gupta to the PS and met the accused and had given Rs.50,000/- on every date when we went to PS Jahangirpuri in response to the notice u/s 160 Cr.P.C. We had asked for recording of our attendance pursuant to notices u/s 160 Cr.P.C. pursuant to which our attendance was marked only on one notice....."

205. Relevant portion of testimony of PW-25 Ratan Lal during his cross examination dated 13.04.2017 :

".....Accused was alone in the PS when I had paid him CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Rs.50,000/- to lodge a DD entry. DD entry was not lodged in my presence..... I cannot tell how many times Naresh Gupta received notices u/s 160 Cr.P.C. (Vol. I had accompanied Naresh Gupta 2-3 times pursuant to notices u/s 160 CrPC received by him). It is wrong to suggest that Naresh Gupta did not appear in PS pursuant to notices u/s 160 Cr.P.C...."

206. Relevant portion of testimony of PW-25 Ratan Lal during his cross examination dated 09.07.2019 :

".....Accused Dilip Chauhan told me that papers were not complete and showed me a document which was on behalf of the girl 'R' in which it was stated that Sh. Naresh Gupta was like a father to the girl 'R' and that Sh. Naresh Gupta had done nothing wrong with her. He told me that some DD entry would be made regarding the said document and asked me to pay an amount of Rs.50,000/- to get the said DD entry recorded. I gave Rs.50,000/- to accused Dilip Chauhan for lodging of the DD entry, I was shown the document thereafter on which the DD entry no.43 was mentioned alongwith the stamp of police station...."

207. In judgment titled State of Haryana Vs. Bhagirath, CrI.

Appeal No. 000234/1992, passed on 12.05.1999, the Hon'ble Supreme Court has observed that :

"It is nearly impossible in any criminal trial to prove all the elements with a scientific precision. A criminal court could be convinced of the guilt only beyond the range of a reasonable doubt. Of course, the expression reasonable doubt is incapable of definition. Modern thinking is in favour of the view that proof beyond a reasonable doubt is the same as proof which affords moral certainty to the Judge.

In the treatise The Law of Criminal Evidence authored by H.C. Underhill at p.34, Vol.1 of the 5th Edn., it is stated :

The doubt to be reasonable must be such a one as an honest, sensible and fair minded man might, with reason, CC No.10/2019 State Vs. Dilip Singh Chauhan etc. entertain consistent with a conscientious desire to ascertain the truth. An honestly entertained doubt of guilt is a reasonable doubt. A vague conjecture or an inference of the possibility of the innocence of the accused is not a reasonable doubt. A reasonable doubt is one which arises from a consideration of all the evidence in a fair and reasonable way. There must be a candid consideration of all the evidence and if, after this candid consideration is had by the jurors, there remains in the minds a conviction of the guilt of the accused, then there is no room for a reasonable doubt.

In Shivaji Sahabrao Bobade V. State of Maharashtra (1973) 2 SCC 793), the Hon'ble Supreme Court adopted the same approach to the principle of benefit of doubt and struck a note of caution that the dangers of exaggerated devotion to the rule of benefit of doubt at the expense of social defence demand special emphasis in the contemporary context of escalating crime and escape.

The Hon'ble Supreme Court further observed that the judicial instrument has a public accountability. The cherished principles or golden thread of proof beyond reasonable doubt which runs through the web of our law should not be stretched morbidly to embrace every hunch, hesitancy and degree of doubt."

208. Thus, a reasonable doubt arises from a consideration of all the evidence in a reasonable way. The golden thread to prove the guilt of accused beyond reasonable doubt is not to be stretched morbidly to include every little doubt. The complainant has clearly stated that whenever he went to the PS in pursuance to the notice under section 160 Cr.P.C. for joining the investigation, he was accompanied by his brother in law PW 25 and therefore, it is immaterial as to whether amount was handed over by the complainant or by PW 25 Ratan Lal to the accused no. 1.

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209. After perusal of testimony of PW 25, the court has no reasonable doubt that Rs.50,000/- was paid by Ratan Lal for lodging of the DD entry regarding application of girl "R" dated 21.07.2010. Also, Rs.50,000/- was paid by Ratan Lal and complainant on 02.08.2010 at the time of joining of the investigation by the complainant in pursuance to the notice dated 29.07.2010 under section 160 Cr.P.C. and another Rs.50,000/- was paid by the complainant and Ratan Lal on 10.08.2010 at the time of joining the investigation in pursuance to the notice dated 08.08.2010.

X. CONSPIRACY :

210. Section 120 A of the India Penal Code which defines 'Criminal Conspiracy' as follows :

"When two or more persons agree to do, or cause to be done, (1) an illegal act, (2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy :

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation - It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object."

Section 120B provides punishment for criminal conspiracy and provides as under :

"Whoever is a party to a criminal conspiracy to commit an offence punishable with death, (imprisonment for life) or rigorous CC No.10/2019 State Vs. Dilip Singh Chauhan etc. imprisonment for a term of two years or upwards, shall, where no express provision is made in the code for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence."

Criminal conspiracy is an independent offence. It is punishable separately. The ingredients of the offences of criminal conspiracy are:

i). agreement between two or more persons.

ii). an agreement to doing or causing to be done either an illegal act or an act which is not illegal in itself but is done by illegal means. The prosecution thus had to establish meeting of the minds of the accused persons for doing an illegal act or an act by illegal means. It has to be borne in mind that a criminal conspiracy is hatched in secrecy, hence it is difficult to establish the same by direct evidence. Thus, the manner and circumstances in which the offences have been committed are relevant and to prove the charge of conspiracy, it is not necessary that all the conspirators know each other and every detail of the conspiracy so long as they are co-

conspirators in the main object of conspiracy anything said, done or written by any of them would be evidence against the other. It is also not necessary that all the conspirators participate from the inception of conspiracy to its end. If there is unity of object all those participating at different stages of crime will be guilty of conspiracy.

211. "Criminal conspiracy" is not easy to prove. The conspirators invariably deliberate, plan and act in secret over a period of time. It is not necessary that each one of them must have actively participated in the commission of the offence or was involved in it from the start to finish. What is important is that they were involved in the conspiracy. Conspiracy requires actus reus and accompanying mens rea. To convict a person for conspiracy, the prosecution must show that all accused agreed with each others to accomplish the unlawful object of conspiracy. The Court has to be CC No.10/2019 State Vs. Dilip Singh Chauhan etc. satisfied that there is a reasonable ground to believe the existence of the conspiracy and that is a matter for judicial inference from proved facts and circumstances.

212. In order to bring home the charge of conspiracy and for the purpose of drawing inferences U/s 10 of the Evidence Act, the prosecution had to establish beyond reasonable doubt that accused acted in concert, either through overt or covert acts in furtherance of the common objective. Section 10 of the Indian Evidence Act introduces the doctrine of agency and if the conditions laid down there are satisfied, the act done by one is admissible against the co-conspirators. Section 10 of the Indian Evidence Act is as under :

"Things said or done by conspirator in reference to common design. Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained by any one of them, is a relevant fact as against each of the persons believed to so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such person was a party to it."

213. Thus, there should be prima facie evidence disclosing reasonable grounds for court to believe that two or more persons were members of a conspiracy., (2) Anything said, done or written by anyone of them in reference to the common intention would be evidence against the other., (3) Anything said, done or written by anyone of them should have been said, done written by them after CC No.10/2019 State Vs. Dilip Singh Chauhan etc. the intention was formed by anyone of them. The prosecution thus had to prove by chain of events which could lead to strong inference of conspiracy. Conspiracy can be inferred either on the basis of direct or circumstantial evidence. Though direct evidence of conspiracy is difficult in most cases, the circumstances proved should reasonably point to existence of prior concert of mind.

214. In the case of State through Superintendent of Police, CBI/SIT etc. vs. Nalini & Ors. (1999) 5 SCC 253, discussing the principles governing the Law of Conspiracy in the case under Sections 120

A, 120B and 302 of IPC, Hon'ble Supreme Court summarised the principles as follows :

"Some of the broad principles governing the law of conspiracy may be summarized though, as the name implies, a summary cannot be exhaustive of the principles.

Under Section 120A IPC offence of criminal conspiracy is committed when two or more persons agree to do or cause to be done an illegal act or legal act by illegal means. When it is a legal act by illegal means overt act is necessary. Offence of criminal conspiracy is an exception to the general law where intent alone does not constitute crime. It is intention to commit crime and joining hands with persons having the same intention. Not only the intention but there has to be agreement to carry out the object of the intention, which is an offence. The question for consideration in a case is did all the accused have the intention and did they agree that the crime be committed. It would not be enough for the offence of conspiracy when some of the accused merely entertained a wish, howsoever horrendous it may be, that offence be committed.

Acts subsequent to the achieving of the object of conspiracy may tend to prove that a particular accused was party to the conspiracy. Once the object of conspiracy has been achieved, any subsequent act, which CC No.10/2019 State Vs. Dilip Singh Chauhan etc. may be unlawful, would not make the accused a part of the conspiracy like giving shelter to an absconder.

Conspiracy is hatched in private or in secrecy. It is rarely possible to establish a conspiracy by direct evidence. Usually, both the existence of the conspiracy and its objects have to be inferred from the circumstances and the conduct of the accused. Conspirators may for example, be enrolled in a chain A enrolling B, B enrolling C, and so on; and all will be members of a single conspiracy if they so intend and agree, even though each member knows only the person who enrolled him and the person whom he enrolls. There may be a kind of umbrella-spoke enrolment, where a single person at the centre does the enrolling and all the other members are unknown to each other, though they know that there are to be other members. These are theories and in practice it may be difficult to tell which conspiracy in a particular case falls into which category. It may however, even overlap. But then there has to be present mutual interest. Persons may be members of single conspiracy even though each is ignorant of the identity of many others who may have diverse roles to play. It is not a part of the crime of conspiracy that all the conspirators need to agree to play the same or an active role.

When two or more persons agree to commit a crime of conspiracy, then regardless of making or considering any plans for its commission, and despite the fact that no step is taken by any such person to carry out their common purpose, a crime is committed by each and every one who joins in the agreement. There has thus to be two conspirators and there may be more than that. To prove the charge of conspiracy it is

not necessary that intended crime was committed or not. If committed it may further help prosecution to prove the charge of conspiracy.

It is not necessary that all conspirators should agree to the common purpose at the same time. They may join with other conspirators at any time before the consummation of the intended objective, and all are equally responsible. What part each conspirator is to play may not be known to everyone or the fact as to when a conspirator joined the conspiracy and when he left.

A charge of conspiracy may prejudice the accused because it forces them into a joint trial and the court may consider the entire mass of evidence against every accused. Prosecution has to produce evidence not only to show that each of the accused has knowledge of the object of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. conspiracy but also of the agreement. In the charge of conspiracy the court has to guard itself against the danger of unfairness to the accused. Introduction of evidence against some may result in the conviction of all, which is to be avoided. By means of evidence in conspiracy, which is otherwise inadmissible in the trial of any other substantive offence prosecution tries to implicate the accused not only in the conspiracy itself but also in the substantive crime of the alleged conspirators. There is always difficulty in tracing the precise contribution of each member of the conspiracy but then there has to be cogent and convincing evidence against each one of the accused charged with the offence of conspiracy. As observed by Judge Learned Hand this distinction is important today when many prosecutors seek to sweep within the drag-net of conspiracy all those who have been associated in any degree whatever with the main offenders.

As stated above it is the unlawful agreement and not its accomplishment, which is the gist or essence of the crime of conspiracy. Offence of criminal conspiracy is complete even though there is no agreement as to the means by which the purpose is to be accomplished. It is the unlawful agreement which is the gravamen of the crime of conspiracy. The unlawful agreement which amounts to a conspiracy need not be formal or express, but may be inherent in and inferred from the circumstances, especially declarations, acts and conduct of the conspirators. The agreement need not be entered into by all the parties to it at the same time, but may be reached by successive actions evidencing their joining of the conspiracy.

It has been said that a criminal conspiracy is a partnership in crime, and that there is in each conspiracy a joint or mutual agency for the prosecution of a common plan. Thus, if two or more persons enter into a conspiracy, any act done by any of them pursuant to the agreement is, in contemplation of law, the act of each of them and they are jointly responsible therefor. This means that everything said, written or done by any of the conspirators in execution or furtherance of the common purpose is deemed to have been said, done or written by each of them. And this joint responsibility extends not only to what is done by any of the conspirators pursuant to

the original agreement but also to collateral acts incidental to and growing out of the original purpose. A conspirator is not responsible, however, for acts done by a co-conspirator after termination of the conspiracy. The joinder of a conspiracy by a new member does not create a new conspiracy nor does it change the status of the other conspirators, and the mere fact that conspirators in CC No.10/2019 State Vs. Dilip Singh Chauhan etc. individually or in groups perform different tasks to a common end does not split up a conspiracy into several different conspiracies.

A man may join a conspiracy by word or by deed. However, criminal responsibility for a conspiracy requires more than a merely passive attitude towards an existing conspiracy. One who commits an overt act with knowledge of the conspiracy is guilty. And one who tacitly consents to the object of a conspiracy and goes along with other conspirators, actually standing by while the others put the conspiracy into effect, is guilty though he intends to take no active part in the crime."

215. In the light of the above broad principles, let us examine the facts of the case to find out whether the accused persons had conspired with each other in furtherance to their common object of extorting bribe from the complainant, to exonerate him in FIR No.540/09.

216. Perusal of the testimony of the witnesses revealed that the entire episode of recovery of the girl "R" from Muradabad was fake and the vehicle allegedly used for the recovery of girl "R" was in Jammu and Kashmir at the relevant time. The recovery of girl "R" from Muradabad was on papers only and the girl was already in contact with her mother. The manipulation of records to this extent that the girl "R" was shown to be recovered from Muradabad, could not have been done by the IO on his own without the knowledge or permission of the SHO concerned. The conspiracy between the two accused persons can also be inferred from the fact that despite giving a notice by the IO to Naresh Gupta on 15.07.2010 to join investigation on 19.07.2010, both the accused persons along with other 8 police officials landed at the residence of the complainant CC No.10/2019 State Vs. Dilip Singh Chauhan etc. during night hours. The accused SHO also clearly told the complainant that the matter could be settled "paise le de ke sulta lenge" and that the girl "R" was under their influence and she would depose as per their directions. There is nothing on record to establish that the IO or the SHO had made any efforts to verify the truthfulness of the allegations levelled by girl "R" before proceeding to the house of the complainant with the threat of his arrest. The SHO had also told the complainant that they should act as per the directions of the IO i.e. accused no. 1 and the IO would help them to prove their innocence and get him exonerated from the allegations of gang rape.

217. The fact that the DD entry no. 43A Ex.PW23/DC was also lodged regarding the application of the girl "R" stating that the complainant Naresh Gupta was like a father to her, also established that the accused persons had made efforts to exonerate the complainant Naresh Gupta in the gang rape case in conspiracy with each other. PW25 Ratan Lal also clearly deposed that an amount of Rs.3 Lakh was given to the accused no. 1 in the presence of accused no. 2 SHO and from this amount, Rs.1 Lakh was given to the mother of girl "R" by the accused no. 1. The above facts also established the conspiracy between the two accused persons.

218. Non-appointment of a lady police official of the rank of SI as an IO even after the offence under section 376 IPC was attracted in CC No.10/2019 State Vs. Dilip Singh Chauhan etc. case FIR No.540/09, also established meeting of minds of the accused persons by first implicating the complainant Naresh Gupta in a gang rape case and thereafter, extorting money from him by representing to him that they would help him to prove his innocence and get fresh statement of girl "R" recorded.

219. The payment of Rs.2.5 Lakhs and Rs.3 Lakhs as well as Rs.50,000/- for lodging of DD entry and Rs.50,000/- on two occasions for making the entry regarding joining of the investigation of Naresh Gupta, were also made within the premises of PS Jahangirpuri. Even after the demand of Rs.2.5 lakhs by accused no. 1, Ratan Lal met the accused no. 2 SHO and SHO had asked him to relax. From the facts proved on record, the court has absolutely no hesitation in holding that both the accused persons had agreed to extort money from the complainant by getting him implicated in gang rape case through girl "R". From the record and the testimony of the witnesses, it clearly transpires that both the accused persons agreed with each other to accomplish the unlawful object of demanding and accepting the bribe amount of approximately Rs.8 lakhs from the complainant Naresh Gupta by illegal means.

XI. DEFENCE OF ACCUSED :

220. The defence of the accused persons is that the present FIR was registered because higher officers of Delhi Police were CC No.10/2019 State Vs. Dilip Singh Chauhan etc. annoyed with the working of the SHO who did not oblige them in suppressing and wiping out the truth of involvement of the complainant in the gang rape case and thus, the complainant with the help of the higher officers got involved the accused persons with an object to pressurize them. The complainant thus, has portrayed himself as victim rather than an offender.

221. It is further argued that on 15.07.2010, accused no. 1 went in search of accused Naresh Gupta at his residence but did not get any clue and thereafter, Ratan Lal met him and informed that Naresh Gupta is out of Delhi and hence, accused no. 1 issued notice under section 160 Cr.P.C. Ex.PW23/E to appear before him on 19.07.2010 at 10:30 AM alongwith Naresh Gupta. The said notice dated 15.07.2010 was received by Ratan Lal on behalf of Naresh Gupta and this fact was noted by accused no. 1 in his diary no. 16. It is an admitted case that the accused persons has raided the house of the complainant on 16.07.2010 at around 03:00 AM to 04:00 AM and they had found Naresh Gupta in his house. It is argued that Ratan Lal had lied that Naresh Gupta was out of station. It is further argued that after interrogation of Naresh Gupta before his arrest, Ratan Lal came and delayed his arrest. It is the defence of both the accused persons that they had gone in the early hours of 16.07.2010 to arrest Naresh Gupta but SHO i.e. accused no. 2 had received a call from ACP Jai Bhagwan who commanded not to arrest the accused as the accused (complainant in present case) was CC No.10/2019 State Vs. Dilip Singh Chauhan etc. known to Joint C.P. Sh. Muktesh Chandra and therefore, the SHO alongwith his team returned back without effecting the arrest.

222. It is further argued that the call records establishes that both Ratan Lal and Naresh Gupta were in contact with Muktesh Chandra even in the morning of 16.07.2010 as well as in the evening of

16.07.2010, Muktesh Chandra had called Naresh Gupta and duration of the call was 130 seconds. It is argued that both the accused knew that the complainant was known of senior officers and thus, the accused persons would not have dared to demand any bribe.

223. The main defence of the accused no. 2 is that the complainant was not arrested on the day of the raid due to the intervention of the senior officers and the accused has been framed as he had refused to exonerate the complainant in FIR No.540/09, PS Jahangirpuri and had thus, annoyed his senior officers and in this respect they have relied upon the CDRs and CAFs etc. of the complainant, wife of ACP Jai Bhagwan and Joint C.P. Muktesh Chandra. It is argued that as accused no. 2 had obtained NBWs of complainant, therefore the senior officers framed him in the present case. It is argued that no demand was ever made by accused no. 2 nor he has received any bribe amount nor any monetary transaction had taken place in his presence and in fact there were approximately 50 cases of kidnapping which were investigated by the officers of rank of head constable. As far as the investigation of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. kidnapping cases by head constables is concerned, the court has already dealt with the said aspect earlier and observed that nothing has been established on record that even the rape cases specifically a gang rape case was also investigated by the officials of the rank of head constable and thus, continuation of accused no. 1 as IO even after allegations of gang rape surfaced, was against the rules and point towards the conspiracy between the two.

224. It is further argued that the prosecution is required to prove the case against the accused persons beyond all reasonable doubts and the accused is only required to prove his defence on the basis of the preponderance of probabilities and in the present case the prosecution has failed to prove the case beyond reasonable doubts and hence the accused persons are entitled to be acquitted.

225. Let us examine the relevant evidence on record to analyse whether accused persons have been able to establish their defence to the extent of preponderance of probabilities.

226. Testimony of PW□23 Naresh Gupta during his examination in chief dated 22.03.2018 :

"..... On 15.07.2010, I again received a notice U/s 160 Cr.P.C. which was signed by IO Dilip Chauhan and I was asked to attend PS Jahangirpuri on 19.07.2010 at 10:30 AM"

227. Testimony of PW□23 Naresh Gupta during his examination in chief dated 17.04.2018 :

".....On 08.08.2010, a notice U/s 160 Cr.P.C. was again received at my residence bearing the signature of Dilip Chauhan and I was asked to report at the PS Jahangirpuri CC No.10/2019 State Vs. Dilip Singh Chauhan etc. on 10.08.2010 at 10:30 AM. I went to PS Jahangirpuri on 10.08.2010 alongwith my Sadu Ratanlal. I was advised by my lawyer that I should ask the police officials to make a report regarding my joining investigation on the notices. I asked IO Dilip Chauhan to make a report regarding my joining the investigation and in the room of SHO S.B. Yadav and in the presence of SHO S.B. Yadav, I gave an amount of Rs.50,000/□to the IO

Dilip Chauhan to get a report regarding my joining of investigation. IO Dilip Chauhan thereafter made a report regarding my joining the investigation....."

228. Testimony of PW-23 Naresh Gupta during his examination in chief dated 04.05.2018 :

".....On 19.07.2010, I alongwith Ratan Lal had appeared at PS Jahangirpuri in response of notice under section 160 Cr.P.C. issued by accused Dilip Chauhan....."

229. The complainant has stated that he has joined the investigation as and when called upon. There is no suggestion to the complainant during his cross-examination that on 19.07.2010, he had not joined the investigation in response to the notice under section 160 Cr.P.C. Document Mark-PW5/B which is the part of the enquiry file was kept on the court record at the request of the Ld. Defence counsel. Page 39 of the said document is the notice under section 160 Cr.P.C. issued on 08.08.2010 to the complainant to join investigation on 10.08.2010 and on this document, accused no. 1 has made an endorsement on 10.08.2010, "Naresh relieved at 11:00 AM". Document Mark-23/X, the original of which was seized vide Ex.PW23/G also is the same CC No.10/2019 State Vs. Dilip Singh Chauhan etc. notice on which there is a same endorsement. The above documents clearly reveal that the complainant had joined investigation and was not evading the process of law. Even the plea of the accused persons is that they had not arrested the complainant as he was known to senior officers. No notice after 08.08.2010 was issued to the complainant to join the investigation. As the complainant had joined investigation and was not absconding, there were no sufficient grounds for obtaining NBWs against him. If the accused persons did not want to exonerate the complainant, nothing in law prevented them from arresting the complainant. However, instead of arresting the complainant, accused no. 2 chose to obtain NBWs and thus, the apprehension of PW-25 that NBWs were obtained in order to extort more amount from the complainant seems correct. In Surendra Chauhan Vs State of M.P., (2000) 4 SCC 110, Hon'ble Supreme Court regarding statement of accused under section 313 Cr.P.C. observed :

"The court in normal circumstance does accept the explanation of the accused consistent with his innocence even though he has not been able to prove his defence by positive evidence. But when the explanation offered by the accused or the defence set up by him is not only inconsistent with his conduct but is palpably false, it cannot be worth consideration."

230. The conduct of accused persons i.e. obtaining of NBWs of the complainant is totally inconsistent with their plea that they were under pressure from senior officers, because if they were CC No.10/2019 State Vs. Dilip Singh Chauhan etc. under the pressure of senior officers, they would not even have dared to obtain the NBWs of the complainant. The plea of the accused persons thus, that they were restrained from arresting the complainant is not worth consideration.

231. Testimony of PW-23 Naresh Gupta during his cross-examination dated 10.07.2018 on behalf of accused S.B. Yadav is reproduced hereinbelow :

"..... (Vol. He had left Sh. Dilip Singh Chauhan alongwith some other officials at my residence). It is correct that S.B. Yadav was listening the telephone of someone, but I cannot say to whom S.B. Yadav was talking on telephone"

".....Q. I suggest to you that the accused S.B. Yadav had received a telephone call and thereafter, he had left immediately alongwith all police officials ? Ans. He was speaking on phone and at the time of leaving he had left 3 police officials at my residence"

"..... I cannot say whether Sh. Ratan Lal had called Sh. Muktesh Chandra at 06:42 AM. Sh. Ratan Lal had made several calls and had received several calls but I cannot tell about the names and details of the persons on call. I do not know whether Sh. Ratan Lal inquired about the telephone number of ACP Jai Bhagwan and told to Sh. Muktesh Chandra"

232. Testimony of PW-23 Naresh Gupta during his cross-examination dated 11.12.2018 on behalf of accused S.B. Yadav is reproduced hereinbelow :

"..... Q : In this statement you have stated that ACP Jai Bhagwan had heard and had helped you in all respects, what help had ACP Jai Bhagwan extended to you? A : He had helped us in refund of Rs. 1,00,000/- and also in the intervening night of 15/16.07.2010, accused S. B. Yadav had left my residence stating that he had spoken to ACP Jai Bhagwan. Rest I do not remember....."

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233. Testimony of PW-25 Ratan Lal during his examination-in-chief dated 03.07.2019 :

"..... As we belong to business family we were not aware about the legal provisions and the consequences and therefore, I consulted one or two known persons on phone for legal advise. I also called some advocates. I was told that the statement under 164 recorded before the magistrate and there is mention of any person in the statement then that person will have to go to jail....."

"..... Thereafter, SHO received a phone call and told that HC Dilip Chauhan would talk to us regarding the case....."

234. Testimony of PW-25 Ratan Lal during his cross-examination dated 21.10.2019 :

".....It is correct that I know Sh. Muktesh Chandra, IPS who on 16.07.2010 was posted as Joint C.P., Goa. I do not recollect if the mobile no. of Muktesh Chandra was 9586333377. (Vol. I had made a call to him at that time)....."

".....Q. I put to you that you had made a call to Muktesh Chandra from your mobile to his mobile no. 9586333377 at 04:54 AM and 06:42 AM on 16.07.2010 ?

Ans. I had called him but I cannot say the exact time. At that time, I did not know ACP Jai Bhagwan. I do not know if ACP Jai Bhagwan at the instance of Sh. Muktesh Chandra had directed S.B. Yadav to return back without arresting Naresh Gupta. It is correct that Sh. Naresh Gutpa was not arrested at that time or on that day. (Vol. SHO had left Sh. Dilip Chauhan at the house of Sh. Naresh Gupta). Sh. Dilip Chauhan had also not arrested Naresh Gupta on that day.

Q. On that day Sh. Muktesh Chandra called after the police team returned back and informed you that your work has been got done ?

Ans. When I called Sh. Muktesh Chandra, he was sleeping and his wife had picked up the call, thereafter CC No.10/2019 State Vs. Dilip Singh Chauhan etc. when Sh. Muktesh Chandra got up, he had called back. He had not given any such information that he had got the work done. I had enquired from him as to what does statement under 164 means....."

235. Testimony of PW 25 Ratan Lal during his cross examination dated 21.10.2019 on behalf of accused S.B. Yadav is reproduced hereinbelow :

".....Q. I put to you that you had made a call to Muktesh Chandra from your mobile to his mobile no. 9586333377 at 04:54 AM and 06:42 AM on 16.07.2010 ?

Ans. I had called him but I cannot say the exact time....."

236. The Complainant as well as Ratan Lal has clearly deposed that they were perplexed when they came to know that SHO and IO had come to arrest Naresh Gupta. Ratan Lal also deposed that as they were not aware about legal provisions, they had made calls to several persons including their advocates as well as Joint C.P. Sh. Muktesh Chandra, I.P.S. Both the complainant as well as PW 25 have admitted the calls made by them and they have not shied away from this fact that they had called their known including IPS Sh. Muktesh Chandra. The allegations of rape are grave and serious and any respectable person if is accused of committing rape, then it is normal for him to seek legal advice. The conduct of the complainant as well as his brother in law Ratan Lal in making several telephonic calls in such circumstances to their known persons is reasonable.

237. There is nothing on record to establish exactly as to what CC No.10/2019 State Vs. Dilip Singh Chauhan etc. conversation took place between Joint C.P. Sh. Muktesh Chandra and PW 25 Ratan Lal. Ratan Lal stated that he has sought legal advice from Sh. Muktesh Chandra as they wanted to know what the statement under section 164 Cr.P.C. means. Except for the suggestion by Ld. Defence counsel during cross examination of witnesses that ACP Jai Bhagwan had restrained the SHO from arresting Naresh Gupta, there is nothing on record to establish as to what conversation took place between accused no. 2 SHO S.B. Yadav and ACP Jai Bhagwan. In fact as per CAF Mark PW5/B, the mobile no. 9868107098 belonged to Ms. Bimla Devi Kaushik, wife of Sh. Jai Bhagwan Kaushik. The

said phone number therefore, does not belong to ACP Jai Bhagwan. As per the testimony of DW 6, the original CAF of mobile no. 9868107098 was not even traceable and thus, the original has not been produced or proved as per law before the court.

238. Let us assume for the sake of argument that the accused persons had not arrested the complainant as accused no. 2 was restrained by the ACP concerned, still there is no presumption that the accused persons could not have demanded bribe in such circumstances. The notice under section 160 Cr.P.C. was issued on 15.07.2010 and the complainant was asked to join the investigation on 19.07.2010. Instead of waiting till 19.07.2010 for the complainant to join the investigation, a raid was conducted on the intervening night of 15/16.07.2010. Timing of the raid i.e. CC No.10/2019 State Vs. Dilip Singh Chauhan etc. during the night hours and the fact that the accused persons had not waited till 19.07.2010 for the complainant to join the investigation, in fact points to the intention of the accused persons that they did not intend to arrest the complainant and wanted only to create panic. The raid by the SHO, accused no. 2 alongwith IO accused no. 1 and 8 9 police officials was in fact a power packed police drama. Their purpose was only to extort money by creating panic showing threat of arrest. A call by a senior official would not have made any difference. Rather it would have been a total win-win situation for the accused persons. The accused persons never intended to arrest the complainant and in the process would also have obliged their senior officers keeping the entire ethics, morals and the mandate of law aside and making everyone i.e. the accused persons, the complainant, senior officers, girl "R" and her mother, happy.

239. It is further argued that the complaint Ex.PW23/DA signed by girl "R" and bearing the thumb impression of Smt. Ansaro Khatoon was got prepared by Ratan Lal on 21.07.2010 and they wanted a fresh statement under section 164 Cr.P.C. of girl "R" to be recorded. This application Ex.PW23/DA was received in PS Jahangirpuri vide DD no.43 Ex.PW23/DC and in the said DD it is mentioned that the said application was brought by Ratan Lal. On 22.07.2010, an application was moved before the Ld. MM for re-recording the statement of the prosecutrix under section 164 Cr.P.C.

CC No.10/2019 State Vs. Dilip Singh Chauhan etc. to exonerate the complainant Naresh Gupta. It is further argued that the said application was neither supported by the State nor recommended by the IO and rather was hotly contested by the State and hence, the application was dismissed by the Ld. MM vide order dated 29.07.2010. It is further argued that had the complainant or Ratan Lal given any bribe to the IO or SHO they would have naturally supported his cause and would not have opposed the application for re-recording of the statement under section 164 Cr.P.C.

240. Ld. Counsel for accused Dilip Singh Chauhan also argued that he has not done any favour to the accused persons in the gang rape case and did not get the complainant exonerated Naresh Gupta in that case and therefore, there is no evidence on record to prove any misuse of the official position by the accused. Moreover, the entire case of the prosecution is based only on oral evidence as far as the accused persons are concerned and no recovery has been effected from the accused persons.

241. In this context judgment Dr. V. Sebastian Vs State, 1988 Cri. L.J. 1150, is relevant wherein it was observed as :

"A public servant may have power to do certain official acts by virtue of the rank he holds as a public servant. He may get other powers by virtue of the office which he holds. When he exercises either of the powers, his act is official. No line of distinction need be made as between the acts in exercise of a particular office and acts in exercise of his position as a public servant. If the act is done in his official capacity as distinguished from his purely private capacity, it amounts to official act. Even if it does not come within the scope of the functions of his office, the act does not cease to become official act"

242. Also, in *Inder Dayaldas Advani Vs State of Bombay*, AIR 1952 Bom 58, observed as :

"It is not necessary that the act for which the bribe is given, be actually performed. A representation by a public servant that he has done or he will do an act, impliedly includes a representation that it was or is within his power to do that act"

243. In view of the above two case laws, it is irrelevant, if the accused persons had obtained NBWs of Naresh Gupta/complainant or had not exonerated him in the gang rape case as public servant, as the accused persons represented to complainant and Ratan Lal that the name of complainant would be placed in column no. 12, if their demands are met. The impression given to the complainant that only they could help him save his honour is sufficient to attract the offence. Both the complainant and PW 25 have clearly deposed that both the accused persons told them that the girl "R" was under their influence and she would give statement as per their directions. In such circumstances, it is immaterial if the accused persons by misusing their official position had actually helped the complainant or not. In fact DD entry regarding the application of girl "R" and her mother was made by the accused no. 1 on 22.07.2010, and he had thus, supported the cause of complainant. The accused persons thus, have completely failed to prove their defence even to the extent of preponderance of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. probabilities.

XII. MISCELLANEOUS ARGUMENTS :

244. It is also argued that the mother of the girl "R" and girl "R"

to whom part of the money was allegedly given, has not been examined in this case though she was a material witness.

245. It is a settled law that it is the prerogative of the prosecution to examine the witnesses who support their case. Non-examination of the mother of the girl "R" is immaterial as she was not even a material witness in the present case. In fact, prima facie it appears that the girl "R" and her mother were also taken for a ride by both the accused persons. The accused persons are police officials and the girl "R" and her mother belong to poor strata of society and would not have invited the wrath of the accused persons by deposing against them. In such circumstances, it cannot be expected from them that they would have deposed truthfully against the accused persons. Even otherwise mother of girl "R" or the girl "R" are not material witnesses in the present case.

246. It is further argued that the first notice Ex.PW23/C under section 160 Cr.P.C. dated 02.11.2009 was sent by the first IO SI Sri Bhagwan in FIR No. 540/09, PS Jahangirpuri, U/s 363 IPC to Ashok Gupta, brother of the complainant Naresh Gupta to appear on 03.11.2009 at 05:00 PM, but it is the complainant Naresh Gupta who had appeared on the said notice. It is further argued that a CC No.10/2019 State Vs. Dilip Singh Chauhan etc. question arises as to why the complainant went to PS when he was not called there. The second notice under section 160 Cr.P.C. Ex.PW23/D was sent on 04.01.2010 to Naresh Gupta to appear at PS Jahangirpuri on 06.01.2010 at 03:00 PM. It is also argued that the complainant PW23 Naresh Gupta has admitted that earlier IO SI Sri Bhagwan in FIR No.540/09 had made enquiries from Naresh Gupta for four to five hours regarding Niranjana on 06.01.2010 and at that time the parents of the girl "R" were also present in the room and were asking him about whereabouts of "R". It is further argued that interrogation for such a long time clearly establishes that Naresh Gupta was not consistent on his stand and was grilled to speak the truth about the whereabouts of servant Niranjana as well as girl "R" and in FIR No.540/09, Niranjana was declared proclaimed offender and had he been arrested the links with prosecutrix "R" and Naresh Gupta would have been established on record.

247. As far as appearing of the complainant in pursuance to the first notice Ex.PW23/C is concerned, the complainant has clearly deposed that his brother was not available at that time and was not in Delhi and therefore, he went to the PS in place of his brother. No suggestion has been given to the complainant during his cross-examination that his brother was available and he had deliberately gone to the PS instead of his brother as he had a guilty mind. As far as 2nd notice is concerned, the complainant has clearly stated that he was made to sit for around five hours and the mother of the CC No.10/2019 State Vs. Dilip Singh Chauhan etc. girl "R" was asking about girl R's whereabouts.

248. It is also argued on behalf of accused no. 1 that the investigation was handed over to HC Dilip Singh Chauhan on 02.02.2010 as the FIR was registered only under section 363 IPC. As per the norms prescribed, head constable was not competent to investigate any matter of such nature nor he has been trained for it, still the SHO had entrusted to him and in compliance to such entrustment after taking out of station permission on 04.02.2010, accused no. 1 had made an attempt to raid the house of Niranjana at 24, Paragana, West Bengal with the parents of the girl "R" but as the address was incomplete, the raid was unsuccessful. After obtaining the complete address of suspect Niranjana, another raid was conducted on 24.03.2010 after taking out of station permission. But only the mother and two brothers of suspect Niranjana were found and they were interrogated in the local PS and they told that Niranjana was residing in Delhi only and had not come to that place. It is stated that after analyzing the call details of mobile phone no.9718135348, registered in the name of Anil Gupta on receiving source information that "R" was residing in Muradabad, U.P. on 02.07.2010, after taking out of station permission, a raiding party was constituted and raid was conducted at Muradabad, U.P. on 03.07.2010 when the prosecutrix "R" was recovered. Statement of "R" was recorded under section 161 Cr.P.C. wherein "R" disclosed the facts about her gang rape by Niranjana, Santosh as well as CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Naresh Gupta. It is argued that victim "R" was brought to Delhi vide DD no.56B Ex.PW6/DB and the SHO as well as ACP appreciated the successful efforts of accused Dilip Singh Chauhan in tracing the minor girl.

249. As far as the investigation of the case by HC Dilip Singh Chauhan is concerned, it has already been observed that even if it is accepted for the sake of arguments that offence under section 363 IPC was not considered as heinous and the investigation was entrusted to the officials of the rank of head constable but still continuation of the accused no. 1 as IO in the FIR No.540/09 even when offence of gang rape was disclosed, was against the prescribed norms. As far as recovery of girl "R" from Muradabad is concerned PW□6 Aarti Sharma has clearly stated that she had found on the basis of CDRs that the girl "R" was in touch with her mother prior to her recovery and there is no evidence of her being confined. She has also stated that the recovery of girl "R" from Muradabad was doubtful in view of the fact that the vehicle allegedly used by IO i.e. accused no. 1 was in Jammu and Kashmir on the date of alleged recovery. Even PW□32 Vineeta had deposed that she had gone to Muradabad and did not find any Mother Dairy Booth from where the recovery of girl "R" was shown. It has also come on record that local police station of Muradabad was not informed about any such visit by HC Dilip Singh Chauhan or about any such alleged recovery of girl "R". The alleged recovery of girl CC No.10/2019 State Vs. Dilip Singh Chauhan etc. "R" from Muradabad was only on papers. In such circumstances, any such appreciation by the SHO concerned regarding efforts of the accused Dilip Singh Chauhan points towards the fact that the SHO was also in conspiracy with the accused Dilip Singh Chauhan.

XIII. CONCLUSION :

250. For the forgoing reasons and the above discussion, I am of the view that prosecution has succeeded in proving its case beyond any reasonable doubt that accused Dilip Singh Chauhan hatched criminal conspiracy with co-accused Shashtra Bahu Yadav, the then SHO to extort the bribe from the complainant Naresh Gupta and had demanded and accepted bribe from the complainant Naresh Gupta and PW□25 Ratan Lal and thus committed offence punishable under section 120B IPC. The prosecution has also proved that the accused Dilip Singh Chauhan being the IO of rape case in FIR no.540/09, PS Jahangirpuri had demanded and accepted Wheat, Rice and Gram etc. worth Rs.10,000/- to Rs.12,000/- from Ratan Lal for his house consumption and had got replaced five tyres of a Santro car and thus, committed offence punishable under section 7 of PC Act 1988 read with section 120B IPC. The prosecution has also proved that the accused Dilip Singh Chauhan in the month of July 2010 being the IO in FIR No.540/09, PS Jahangirpuri being a public servant in collusion with the co-accused S.B. Yadav demanded, accepted and thus, obtained Rs.20,000/- and CC No.10/2019 State Vs. Dilip Singh Chauhan etc. Rs.2,50,000/- from Ratan Lal for exonerating Naresh Gupta, his brother in law in FIR No.540/09 and again after 2□3 days obtained amount of Rs.3 lakh other than legal remuneration from Ratan Lal on the pretext of delivery of said amount to the mother of girl "R" and also obtained Rs.50,000/- afterwards for exonerating Naresh Gupta after issuance of notice under section 160 Cr.P.C. and further accepted Rs.50,000/- for lodging a DD entry as a pecuniary advantage by corrupt or illegal means or otherwise by abusing his official position and thus, committed offence punishable under section 7 read with section 120B IPC as well as 13(1)(d) and under section 13(2) of PC Act read with section 120B IPC.

251. The prosecution has however, failed to prove that the accused Shashtra Bahu Yadav has conspired with the co-accused Dilip Singh Chauhan as part of conspiracy while demanding and

accepting wheat, rice and grams etc. and also failed to prove that the accused Shashtra Bahu Yadav @ S.B. Yadav was part of conspiracy in getting replaced the five tyres of Santro Car.

252. The prosecution has also proved beyond reasonable doubt that accused Shashtra Bahu Yadav hatched criminal conspiracy with co-accused Dilip Singh Chauhan to extort the bribe from the complainant Naresh Gupta who was named as accused in case FIR No.540/09, U/s 363/376(2)(g) IPC and handed over the investigation of the case FIR No.540/09 to co-accused Dilip Singh Chauhan against rules at the relevant time and both being public CC No.10/2019 State Vs. Dilip Singh Chauhan etc. servants demanded and accepted bribe from the complainant and his brother in law Ratan Lal and thus, committed offence punishable under section 120B IPC. The prosecution has also proved that in the month of July 2010, accused Shashtra Bahu Yadav while working as SHO, PS Jahangirpuri in connivance with co-accused HC Dilip Singh Chauhan who was IO of FIR No.540/09 being a public servant demanded bribe from the complainant in the presence of his brother in law on 16.07.2010 by saying "mote paise lagenge" to sort out the case and further the bribe was obtained through HC Dilip Singh Chauhan of Rs.20,000/- and Rs.2,50,000/- from Ratan Lal, brother in law of the complainant Naresh Gupta who was named in case FIR No.540/09 and further at the instance of Shashtra Bahu Yadav, accused Dilip Singh Chauhan demanded and accepted amount of Rs.3 Lakhs from Ratan Lal on the pretext of delivery of the said amount to the mother of the girl "R". Prosecution has also proved that at the instance of accused Shashtra Bahu Yadav, accused Dilip Singh Chauhan had also demanded and accepted Rs.50,000/- several times for the release of Naresh Gupta after issuance of notice under section 160 Cr.P.C. and Rs.50,000/- were also demanded and accepted to lodge the DD entry as pecuniary advantage to the accused persons by corrupt or illegal means or otherwise by abusing his official position and thus, committed offence punishable under Section 7 read with Section 120B IPC as well as 13(1)(d) and punishable under section 13(2) of CC No.10/2019 State Vs. Dilip Singh Chauhan etc. PC Act read with section 120B IPC.

253. Accordingly, the court holds accused Dilip Singh Chauhan and Sashtra Bahu Yadav @ S.B. Yadav guilty for the offence under Section 120B IPC, Section 7 read with section 120B IPC as well as 13(1)(d) punishable under section 13(2) of Prevention of Corruption Act, 1988 read with section 120B IPC. Both the accused namely Dilip Singh Chauhan and Sashtra Bahu Yadav @ S.B. Yadav are accordingly convicted for the offence under Section 120B IPC and Section 7 read with section 120B IPC as well as 13(1)(d) punishable under section 13(2) of Prevention of Corruption Act, 1988 read with section 120B IPC.

Announced in the open court

KIRAN

by KIRAN

on this 31st March, 2021.

BANSAL

Date: 2021.04.01
10:32:05 +0530

(Kiran Bansal)

Special Judge (PC Act) (ACB)-01

RADC, New Delhi

31.03.2021

